

Cc No. 271/2019 Cbi vs Sanjiv Kumar And Others Page 1 Of 352 on 22 January, 2021

IN THE COURT OF SH. AJAY GULATI
SPECIAL JUDGE (PC ACT), CBI-12,
ROUSE AVENUE DISTRICT COURTS, NEW DELHI.

CC No. 271/2019
CNR No. DLCT11-001371-2019
RC No. 3(A)/2005/ACU-IX/CBI/ND
U/s 109 IPC, Sec 13(2) r/w 13 (1)(e) of PC Act

Central Bureau of Investigation

Versus

- 1 Sanjiv Kumar S/o Dr. Maheshwar Kumar
R/o Flat No. 6360, Sector-C, Pocket 6 & 7,
Vasant Kunj, New Delhi.
2. Smt. Abha Sinha D/o Sh. Gupteshwar Prasad Singh
R/o Flat No. 6360, Sector-C, Pocket 6 & 7,
Vasant Kunj, New Delhi.
3. Dr. Maheshwar Kumar S/o Late Srinarayan Singh
R/o Flat No. 6360, Sector-C, Pocket 6 & 7,
Vasant Kunj, New Delhi. (since expired)
4. Smt. Kanak Lata D/o Late Kishore Mohan Singh
R/o Flat No. 6360, Sector-C, Pocket 6 & 7,
Vasant Kunj, New Delhi.

.....Accused

CC No. 271/2019 CBI Vs Sanjiv Kumar and others	Page 1 of 352
Date of Institution	: 30.08.2008
Arguments heard on	: 16.01.2021
Date of Judgment	: 22.01.2021

JUDGMENT

1. Accused Sanjiv Kumar (A□), a former IAS officer of the 1985 batch belonging to the Haryana cadre being the prime accused, has faced the present trial along□with his wife (accused) Ms. Abha Kumar (A□2), father (accused) Dr. Maheshwar Kumar (A□3) and mother (accused) Mrs. Kanak Lata (A□4), with the Charge of having amassed assets/wealth beyond his known sources of income. The

precise amount of disproportionate assets alleged to have been amassed by A□ is Rs. 4,08,81,202 during the period 1.4.96 to 16.2.2005. The alleged role of A□2 to A□4 is that of abetment. Accused no. 3 Dr. Maheshwar Kumar, however, expired during the pendency of trial.

2. The check period was taken from 1.4.96 to 16.2.2005.

3. As per the investigation/charge□sheet, the combined total income of accused Sanjiv Kumar and his family members (A□2 to A□

4) during the check period was calculated as Rs. 71,70,176 whereas the total expenditure during this period was assessed as Rs. 3,62,65,245.

4. The total value of the assets held by A□ to A□4 at the start of the check□period was Rs. 29,11,329 whereas the value of combined assets at the end of the check period was put at Rs. 1,46,97,372.

5. The alleged disproportionate assets include numerous bank accounts which had significant deposits and withdrawals during the check period, massive investment in shares, and considerable immovable properties. The percentage of disproportionate assets to the known sources of income of Sanjiv Kumar was thus worked out at 570%, as alleged in the charge□sheet.

6. Accused Sanjiv Kumar is alleged to have been in possession of disproportionate assets in his own name and in the name of his dependents i.e. wife, children as also his parents, the crux of the allegation being that the 'disproportionate assets' were though amassed by accused Sanjiv Kumar but held 'benami' in the name of his wife and parents who abetted the acquisition of assets by accused Sanjiv Kumar beyond his legitimate sources of income, ostensibly to obscure the true source.

7. Consequently, accused Sanjiv Kumar was Charged under section 13 (2) read with section 13 (1) (e) of the Prevention of Corruption Act whereas accused Ms. Abha Kumar, accused Dr. Maheshwar Kumar and accused Mrs. Kanak Lata were Charged u/s 109 IPC read with section 13 (2) read with section 13 (1) (e) of the Prevention of Corruption Act

8. Before proceeding ahead to detail the facts as enumerated in the charge□sheet, it is important to highlight an important fact. Out of the total of Rs. 4,08,81,202 which is the alleged disproportionate asset value ascribed to accused Sanjiv Kumar, bulk of it pertains to (alleged) investment in equity market/shares i.e. Rs. 2,51,71,200 by accused Sanjiv Kumar and Rs. 75 lacs by accused Abha Kumar.

9. The defense plea revolves around the assertion that the investment in shares which has been attributed to Sanjiv Kumar was never made by accused Sanjiv Kumar, and that the investment ascribed to Abha Kumar was actually the investment of one Sh. Tika Hasan Mustafa who was a family friend of the accused persons. Additionally, it was pleaded that income of none of the accused persons has been correctly calculated by the Investigating Officer. Not only legitimate income was deliberately left out by the Investigating Officer while calculating the respective incomes of the accused persons but with a mala fide intention, there are multiple examples where same entries

which have been shown under the head of expense were also shown under the head of assets, thereby significantly pushing up the alleged disproportionate asset value.

10. Another very relevant fact needs a highlight at the outset. Some of the allegedly disproportionate assets which include movable as well as immovable assets have a direct link with Dr. Rajiv Kumar who happens to be the real brother of accused Sanjiv Kumar. He is a doctor by profession and is settled in UK. Despite this, Dr. Rajiv Kumar was never associated in any capacity during the investigation. The IO never bothered to examine him or question him. It is interesting to further highlight that 2 flats situated in Vasant Kunj, New Delhi were purchased during the check period, allegedly 'benami' by accused Sanjiv Kumar. One of these was purchased by accused Dr. Maheshwar Kumar whereas the other was purchased by Dr. Rajiv Kumar. Even though IO made Dr. Maheshwar Kumar an abettor by concluding that the flat purchased by him was 'benami' of Sanjiv Kumar, Dr. Rajiv Kumar was left untouched even though the evidence led was that it was Sanjiv Kumar who had paid the entire amount for both the flats. It remained an unexplained mystery as to why was the IO so kind towards Dr. Rajiv Kumar so as to leave him out altogether from the ambit of his detailed investigation but scuffed Dr. Maheshwar Kumar by his neck when the role of both appeared to be identical. It was repeatedly argued by accused Sanjiv Kumar (in person) that had the IO recorded the version of Dr. Rajiv Kumar, a considerable number of allegedly disproportionate assets would have been easily explained and legitimately accounted for, and that is the reason, out of mala fide, that the IO deliberately did not question Dr. Rajiv Kumar.

11. Prosecution examined a total of 47 witnesses to prove the Charge. Accused Sanjiv Kumar examined 20 witnesses in his defense.

Charge Sheet:

12. The investigation in the present case resulted from the Hon'ble Supreme Court's order dated 25.11.2003 passed in Writ Petition (Crl.) No. 93 of 2003 inter alia directing CBI to take up from the State Vigilance Bureau, Haryana Enquiry No. 16 dated 3.9.2002, Chandigarh regarding disproportionate assets of the petitioner i.e. Sanjiv Kumar, IAS In compliance of the said order, CBI registered PE 3 (A)/2004/ACU-X on 27.1.2004. During the course of inquiry sufficient material came on record indicating commission of offence U/s 13 (2) r/w 13 (1) (e) of PC Act and thus Preliminary Enquiry was converted into present RC on 16.2.2005.

13. The allegations appearing against accused Sanjiv Kumar, an IAS Officer were that while discharging functions as a public servant in Government of Haryana in different capacities from 1998, had amassed assets both immovable and movable at Gurgaon, Faridabad, Ranchi, Dhanbad and New Delhi etc. worth about Rs. 80,33,673/- in his name or in the names of his dependent family members. During the check period from 1.4.1998 to 31.3.2003, assets to the tune of Rs. 46,17,370/- were found to be disproportionate to his known sources of income. The check period was thereafter expanded from 1.4.96 till 16.2.2005.

14. Though the check period was taken to be from 1.4.96 till 16.2.2005, accused Sanjiv Kumar was under suspension from 4.12.2001 on various charges alleged by the Haryana Government and

continued to be so till his conviction in the JBT Recruitment scam of which Sanjiv Kumar was the whistle blower.

15. Accused Mrs. Abha Singh w/o Sanjiv Kumar was a housewife with no independent source of income though she was enrolled as an advocate with the Bar Council of Punjab, Haryana and Chandigarh since 1999.

16. Accused Dr. Maheshwar Kumar, father of Sanjiv Kumar took voluntarily retirement on 1.9.1988 from the post of Chief Medical Superintendent and Chief Surgeon, Indian Railway Medical Services, Eastern Railway, Dhanbad. He was practicing as a private surgeon in Dhanbad after taking voluntary retirement. He frequently came and stayed in New Delhi at C-6/6360, Vasant Kunj since November 1999.

17. Accused Smt. Kanak Lata w/o Dr. Maheshwar Kumar (and mother of accused Sanjiv) was a Hindi literature writer and had written various books for which she had been receiving some amount as royalty.

18. Since investigation had revealed that accused Sanjiv Kumar had acquired assets, movable and immovable in the name of his wife Mrs. Abha Kumar, his father Dr. Maheshwar Kumar and his mother Mrs. Kanak Lata during the check period 1.4.1996 to 16.2.2005 hence, investigation was conducted into the income, assets (movable & immovable) and expenditure of Mrs. Abha Kumar, Dr. Mahesh Kumar, Smt. Kanak Lata and two children of accused Sanjiv Kumar, namely Miss Snigdha Kumar and Master Ananya Praherish. After detailed investigation, respective income, expenditure and assets charts were prepared. Assets at the beginning of check period, assets at the end of check period, income during check period and expenditure during check period were given in Statement A, B, C & D respectively, which are reproduced as under:

Statement "A"

Assets held at the beginning of Check period - Before 1.4.1996.

Sl.N o	Details of Assets	Asset Holder	Date/year	Amount Rs.
1	Flat No. 15, Hope Sh. Sanjiv Kumar Apartment, Part II, Gurgaon		5.1.1996	9,82,40 0/-
2	SB A/c No. 15469 in Sh. Sanjiv Kumar Oriental Bank of Commerce, New Railway Road, Gurgaon		31.3.1996	194/-
3	Account no. 7617 Sh. Sanjiv Kumar opened on 16.6.95 in		31.3.1996	1,552/-

Allahabad Bank,
Panipat

4 A/c no 6765 opened Sh. Sanjiv Kumar 31.3.1996 102/-
on 15.9.1995 in
Canara Bank, Panipat
Main

Total Assets in the name of Sanjiv Kumar (Individual) ₹ 9,84,248/₹ 5 Abha Sinha w/o Sh. Mrs. Abha 31.3.96 8,71,917/₹ Sanjiv Kumar in her Kumar income tax return for AY 1996-97 has mentioned assets and property worth of Rs.

8,71,917/₹ as on 31.3.1996 6 Plot No. 1995 of 350 Mrs. Abha Sept, 94 19,163/₹ sq. yds, Sector 28, Kumar Faridabad, HUDA, Haryana Oriental Bank of Kumar Commerce, New Railway Road Gurgaon 8 PPF A/c No. 11/1810 Mrs. Abha 31.3.96 20,100/₹ in SBI PB Division, Kumar Dhanbad w.e.f.

14.2.1995 9 Jewellery found in Locker in the Prior to 4,00,000/₹ locker no. 609, ICICI name of Mrs. 1996 Bank, Vasant Kunj, Abha Delhi evaluated by Kumar, Smt. Govt. approved Kanak Lata valuer Vijay Goel of and Dr. M. M/s Zevrat, 2192 Kumar Gurudwara Road, Karol Bagh, Delhi Total Assets in the name of Abha Kumar (Individual) - Rs.

13,11,680/₹ New Maheshwar to March No.01P00900557 in Kumar 1993 SBI, PB Division Dhanbad 11 Building in Dhanbad Dr. 1988 ₹ 5,50,000/₹ which was Maheshwar constructed by Dr. Kumar Maheshwar Kumar, on the basis of power of attorney executed by his daughter in law Ms. Abha Kumar and Ms. Meena Kumar w/o Dr. Rajiv Kumar in 1988 of Dr. Maheshwar Maheshwar Kumar in Allahabad Kumar Bank, Dhanbad Total Assets in the name of Maheshwar Kumar (Individual) ₹ Rs.

5,73,645/-

name of Dr. M. Kumar and
Kumar and Smt. Kanak Lata
Kanak Lata in
Allahabad Bank,
Hirapur Branch,
Dhanbad

Joint Total Assets in the name of Dr. M. Kumar & Kanak Lata ₹ 22503/₹ sq. yds, Sector 28, Lata 1994 Faridabad, HUDA Haryana.

Total Assets in the name of Kanak Lata Rs. 19,163/□Kumar Kumar Maheshwar Kumar & Mrs. Kanak Lata Lata G. Total Total 29,11,239 Rs.29,11,23 9/□Statement B Assets at the end of Check Period Check period 1.4.96 to 16.2.2005 Sl.N A/c No. Name & Date Balance o Address of amount as on Depositor 28.2.2005 1 SB A/c No. 1410, Sh. Sanjiv Balance 1,08,729/□Vijaya Bank, Sector Kumar as on 34A, Chandigarh 16.2.2005 Allahabad Bank, Kumar as on Panipat 16.2.2005 OBC, Gurgaon Kumar as on 16.2.2005 Allahabad Bank, Kumar(HUF Hirapur Br., Dhanbad) 5 Six IDBI Flexi Bonds Sanjiv 23.4.2001 30,000/□dated 23.4.01; No. Kumar 000679582□000679587 6 Two ICICI Tax Sanjiv Date of 10,000/□Saving Bonds Date Kumar investmen 30.4.03, Date of t Maturity 30.8.2006 18.3.2003 Allahabad Bank, Kumar Hirapur, Dhanbad (HUF) 8 National Saving Sanjiv 25.3.2000 5,000/□Certificate Kumar 9 National Saving Sanjiv 30.3.1999 5,000/□Certificate No. Kumar 21DD001593 10 Sanjiv Kumar (HUF) Sanjiv 2004□50,000/□in his IT Return for Kumar 2005 assessment year (HUF) 2000□01 to 2004□05 has mentioned one flat Gurgaon (DLF) for Rs. 50,000/□Total Assets in the name of Sanjiv Kumar □Rs. 3,54,788/□

11	National Saving 1	Sanjiv 24.3.2001 5,000/-
	Certificate Kumar	
	6NS/20DD 850782 2	Kanak
		Lata

Total joint assets in the name of Sh. Sanjiv Kumar & Kanak Lata □Rs. 5,000/□12 SB A/c No. 6000 Abha Kumar Balance as 40,033/□Oriental Bank of on Commerce. 16.2.2005 13 PPF A/c No. 11/1810 Abha Kumar 24.10.04 3,35,100/□w.e.f 14.2.95 in SBI, PB Division, Dhanbad Allahabad Bank, Hirapur Branch, Dhanbad Oriental Bank of on Commerce, Gurgaon 16.2.2005 16 Assets movable & Abha Kumar March immovable held at 2002□2003 the end of check period as shown in the income tax return filed by Smt. Abha Kumar for the Rs. 30,000/□assessment year 2002□03. Rs. 70,000/□

1. Land at Ranchi Rs. 2,93,170/□1,93,170/□

2. Building at Dhanbad.

3. Land & house at Gurgaon 17 Special Term Deposit Abha Kumar 19.11.199 20,000/□78 months 18 DCM Estate plot of Abha Kumar July 1996 3,00,000/□Smt. Abha Kumar w/o Sh. Sanjiv Kumar purchased in July 19 Plot no. 1995 of 350 Abha Kumar 16.2.2005 19163 sq. yds, Sec□28 Faridabad, HUDA, Haryana 20 Jewellery found in Locker in 16.2.2005 14,79,084/□locker no. 609 ICICI the name of Bank, Vasant Kunj, Abha Delhi evaluated by Kumar, Smt. Govt approved valuer Kanak Lata Sh. Vijay Goel of M/s and D.r M. Zevrat, Karol Bagh, Kumar.

Delhi.

- 21 Flat No. 6357, Ist In the name 19.11.199 14,00,000/-
Floor, Sector-C, of Dr. Rajiv 9
Vasant Kunj, N. Kumar
Delhi (Brother of
In income tax return Sanjiv
for assessment year Kumar who
2000-01, Mrs. Abha lives in UK)
Kumar has shown Rs. Purchased
6,50,000/- as advance on 19.11.99
for Flat to Sh. K. K.

Lal

- 22 SB A/c No. 19594 Abha Sinha 17.2.2005 1,393/-
(New A/c No. (A/c opened
90432010057225) in on
the name of Mrs. 22.12.1999)
Abha Sinha at
Syndicate Bank,
Khan Market, New
Delhi.

Total Assets in the name of Mrs. Abha Kumar ₹. 38,97,056/₹23 ICICI Bank A/c no. Smt. Abha
Balance as 10,07,365/₹000701501139, Kumar & on Vasant Kunj, Delhi Sanjiv 16.2.2005 A/c
opened on Kumar 21.3.2003 24 SB A/c No. 6064, Sh. Sanjiv Balance as 6,18,671/₹Oriental Bank of
Kumar & on Commerce, Smt. Abha 16.2.2005 Panchkula Kumar Total joint Assets in name of Sanjiv
Kumar & Abha Kumar ₹. 16,26,036/₹25 Pension A/c no. 2268 Dr. 31.1.2005 55,901 of Dr.
Maheshwar Maheshwar Kumar in Allahabad Kumar Bank, Dhanbad (New SB A/c No. Maheshwar
01190007742) in SBI, Kumar PB Div., Dhanbad (New No. Maheshwar t during 01P00900557) in
Kumar the period SBI, PB Division April 1991 Dhanbad to March 28 Six ICICI Tax saving Dr. M.
Date of 30,000 bonds Kumar investment Date of maturity 18.2.03 30.8.2006 29 Allahabad Bank,
Dr. Date of 3,50,000/₹Hirapur, Dhanbad A/c Maheshwar investment No. DDP 110044 Kumar
11.7.2002 Allahabad Bank, Kumar Hirapur, Dhanbad.

31 Flat No. 6360, Vasant Dr. December 10,00,000/₹Kunj, Pocket 6&7, Maheshwar 1999 New Delhi
purchased Kumar in the year December 32 National Saving Dr. 25.3.2000 10,000/₹Certificate
Maheshwar 6NS/16EE 492062 Kumar 33 National Saving Dr. 30.3.1999 10,000/₹Certificate No.
16EE Maheshwar 459885 Kumar 34 Dr. Maheshwar Dr. IT return Kumar in his ITR for Maheshwar
for assessment Year Kumar assessmen 2004₹5 has t mentioned following year 2004₹immovable
properties 5,50,000/₹

1. Building at Rs. 50,000/₹Dhanbad * 6,32,500/₹

2. Flat at Gurgaon Rs. 3,000/₹ (DLF)

3. Cordless Phone set Rs. 29,500/□

4. Microwave * Sushant Lok, Maheshwar Gurgaon, Haryana, in Kumar, Mrs. the name of Dr. Kanak Lata, Maheshwar Kumar Ms. Snigdha Dt. 26.4.96 Kumar (under natural guardian Sanjiv Kumar.

Total Assets in the name of Dr. Maheshwar Kumar □Rs. 29,31,152/□36 SB A/c No. 3609, Mrs. Kanak 16.2.2005 4,949/□Allahabad Bank, Lata Hirapur Branch, Dhanbad 37 Two ICICI Tax Kanak Lata Date of 10,000/□saving bonds investme□nt 18.3.2003 38 DDP No. 11232, Kanak Lata 16.10.02 1,50,000/□Allahabad, Bank, Hirapur Dhanbad Allahabad, Bank, Hirapur Dhanbad 40 DDP No. 10154, Kanak Lata 5.2.2001 1,25,000/□Allahabad, Bank, Hirapur Dhanbad 41 Rs. 4,25,000/□has Kanak Lata 30.6.97 4,25,000/□been shown in the sale deed of land in Vill. Dhumuspur, Gurgaon; plot purchased in the name of Kanak Lata 42 Valuation report by Kanak Lata 1997 10,50,000/□General Design & Planning, 62, Jaina Building, Roshanara Road, Delhi□7, dt.

3.11.05 43 Plot No. 1997 of 350 Kanak Lata 16.2.1994 19,163/□sq. yds, Sector 28, Faridabad, HUDA, Haryana in the name of Kanak Lata 44 DCM residential plot Kanak Lata Jan 1997 5,00,000/□booked in the name to May of Mrs. Kanak Lata 1997 M/o Sh. Sanjiv Kumar during January 1997 to May 45 00853575 SB Vasant Kanak Lata 5.10.04 6,000/□Kunj Post office, Delhi 46 00483817 MIS Kanak Lata 4.9.04 3,00,000/□Vasant Kunj Post Office, Delhi.

47 00411659 RD Vasant Kanak Lata 5.10.04 12,500/□Kunj Post Office, Delhi Total assets in the name of Kanak Lata (individual) □Rs. 26,52,612/□

Allahabad Bank, Lata & Hirapur Br, Dhanbad. M. Kumar 49 A/c No. 16887, OBC, Dr. M. Balance as 19,052/□Rly Road, Gurgaon; Kumar, Smt on A/c opened on 2.6.97 Kanak Lata 16.2.2005 & Smt. Abha Kumar 50 SB A/c Kanak Lata 31.12.200 2,47,486/□Dr. (16.2.2005 Maheshwar) Kumar 51 Statement of SB A/c Dr. M. 16.2.2005 1,67,288/□No. 000701228511, Kumar, ICICI Bank, Vasant Kanak Lata, Kunj, New Delhi Abha Kumar Total Cost of the Flat Maheshwar during Rs.20,32,300/□Kumar & 19.5.2001 Mrs. Kanak to Total amount paid Rs.

	Lata	28.2.2003
20,73,000/-	(Rs.	
40,700/- is excess Power	Welfare	Statement
paid)	Organization upto	of account
	, Gurgaon	5.11.2003

Allahabad Bank Kumar &

	Hirapur, Dhanbad	Kanak Lata
54	National Saving Dr. M. 24.3.2001 5,000/-	
	Certificate Kumar &	

6NS/20DD 850780 Kanak Lata

- 55 National Saving Dr. M. 24.3.2001 5,000/-
Certificate Kumar &
6NS/20DD 850781 Kanak Lata
- 56 National Saving Dr. M. 18.3.2002 5,000/-
Certificate Kumar
6NS/20DD 236404 & Kanak
Lata
- 57 National Saving Dr. M. 18.3.2002 10,000/-
Certificate Kumar
6NS/37EE 949346 & Kanak
Lata
- 58 National Saving Dr. M. 10.3.2003 5,000/-
Certificate Kumar
6NS/31DD 230529 & Kanak
Lata
- 59 National Saving Dr. M 10.3.2003 5,000/-
Certificate Kumar
6NS/31DD 2305230 & Kanak
Lata

961314 purchased Kumar and
from Vasant Kunj Kanak Lata
Post Office, Delhi

961315 purchased Kumar and
from Vasant Kunj Kanak Lata
Post Office, Delhi

- 62 4 ICICI Tax Saving Dr. M. Date of 20,000/-

Bonds; maturity on Kumar and investment 28.2.2003 for Rs. Kanak Lata 30.10.199 Total assets in the name of Dr. M. Kumar, Kanak Lata and Abha Kumar □Rs. 25,57,291/□63 SB 00853328 Vasant Snigdha Date of 11,333/□Kunj Post office, Kumar opening Delhi. d/o Abha 21.7.2004 Kumar 64 00411564 RD Vasant Snigdha 31.7.2004 8,000/□Kunj Post Office, Kumar Delhi. d/o Abha Kumar 65 00411553 RD Vasant Snigdha 21.7.2004 12,000/□Kunj Post Office, Kumar Delhi. d/o Abha Kumar 66 0043390 MIS, Vasant Snigdha 24.7.2004 2,00,000/□Kunj Post Office, Kumar Delhi. d/o Abha Kumar 67 00483427 MIS Snigdha 2.8.2004 1,00,000/□Vasant Kunj Post Kumar Office, Delhi. d/o Abha Kumar 68 00411571 RD Vasant Ananya 31.7.2004 20,000/□Kunj Post Office, Praherish Delhi. s/o Sanjiv Kumar 69 00483431 MIS Ananya 3.8.2004 3,00,000/□Vasant Kunj Post Praherish s/o Office, Delhi. Sanjiv Kumar 70 SB 00853345 Vasant Ananya 21.7.2004 10,000/□Kunj Post Office, Praherish Delhi.

s/o Sanjiv
Kumar

000701239298 in Kumar
ICICI Bank, Vasant under
Kunj, N. Delhi guardian
Abha

Kumar

Total assets in name of Snigdha Kumar & Ananya □Rs. 6,73,437/□Grand Total of All Assets of
Statement B. Kanak Lata Kumar Kumar & Sanjiv Kumar Maheshwar Kumar Lata 7 Sr. 48 to 62
Family 2557291 Members of Dr. M. Kumar Kumar & Ananya G. Total Sr. No. 1 to 1,46,9737 Total Rs.

71

2

1,46,97,372

Statement- 'C'

Income during the check period
Check Period 1.4.1996 to 16.2.2005

Sl. No.	Particulars	Date	Amount (Rs)
1	Salary income of Sh. April 1996 Sanjiv Kumar received during April 1996		8,363/-
2	Salary of Sanjiv May 1996 to Kumar for the period 9.6.96		
3	Salary statement of 10.6.96 to 24.7.97 71,355/- Sh. Sanjiv Kumar received from Haryana Civil Secretariat		
4	Salary statement of 25.7.97 to 2.11.98 1,20,210/- Sh. Sanjiv Kumar received from the O/o Administrative Officer/Director Primary Education (HR)		

11

Total Salary income of Sh. Sanjiv Kumar during the check period ₹ 8,65,123/₹ Income on account 1. 1997₹ 26,940 of Rental/Agriculture 2. 1998₹ 61,315 of Sh. Sanjiv Kumar

3. 1999₹ 78,500 (HUF) reflected in IT returns of HUF 4. 2000₹ 65,337 for assessment years. 5. 2001₹ 74,666

6. 2002₹ 65,830 In assessment year 7. 2003₹ 44,754 1999₹ 2000 Sh.

8. 2004₹ 45,031 Sanjiv Kumar mentioned advance 9. 2005₹ 2006 40,077 against flat of Rs. Total 5,02,450 25,000/₹ In ITR of assessment year 2001₹ 2 he mentioned sale consideration amount of Rs.

3,25,000/₹

14 Patna flat sold by 1997 to 2000 10,75,000/ whole family i.e. Dr. M. Kumar, Smt. Kanak Lata, Sh.

Sanjiv Kumar during
the period 1997 to

- | | | | |
|----|---|-----------|------------|
| 15 | Survival benefit of Rs. 40,000/- was received on 28.4.2002 by the policy holder, Sh. Sanjiv Kumar against his LIC policy no. 171578323. | 28.4.2002 | 40,000/- |
| 16 | Price of flat no. 15, Hope Apartment sold by Sh. Sanjiv Kumar in year 2003 to Sh. Subhash Saini. | 2003 | 10,71,000/ |
| 17 | Interest earned from 4.8.99 to 5.2.2004 savings of salary account no. 1410 in name of Sanjiv Kumar maintained in Vijaya Bank, br. | | 12,036/- |

Chandigarh.

Total income of Sh. Sanjiv Kumar (individual) □Rs. 35,65,609/□

18	2 ICICI Tax Saving Bond vide certificate no. 12274-12275 invested on 30.11.99 in name of Sh. Sanjiv Kumar and Kanak Lata.	28.2.2003	13,983/-
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Joint Income of Sh. Sanjiv Kumar & Kanak Lata □Rs. 13,983 19 Income on account of rental etc of Smt. Abha Sinha as reflected in income tax returns.

Asst. Year

1. Income for the year 1996□97 1997□98 74,683/□

2. Income for the year 1997□98 1998□99 65,355/□

3. Income for the year 1998□99 1999□00 1,03,281/□

4. Income for the 2000□01 62,725/□year 1999□00

5. Income for the 2001□02 65,886/□year 2000□01

6. Income for the 2002□03 78,361 year 2001□02

7. Loans raised in 1999 5,75,250/□1999 from sister Poonam Singh

8. Income for the year 2004□05 2005□06 1.34.206 Total 11,59,747 60341988 HLY dated 10.4.1980 matured and Rs.

104900.00 was
received by the
policy holder, Smt.
Abha Sinha from
LIC

21	Survival benefit of 23.4.2002 Rs. 20,000/- was received on 23.4.2002 by the policy holder, Smt.	20,000
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Abha Kumar against
her LIC policy no.
171578339

Total Income of Mrs. Abha Kumar (Individual) Rs.. 12,84,647/- 22 Dr. M. Kumar in his 1998-99 1,50,920/- IT returns, has 1999-2000 1,54,845/- mentioned income 2000-01 1,76,229/- from all sources 2001-02 2,21,238/- 2002-03 1,99,215/- 2003-04 2,12,945/- 2004-05 2,13,163 Total 13,28,555/- 23 Dr. M. Kumar has 2004-2005 92,000/- shown loans and advance taken as per IT return for assessment year 2004-05 24 Interest earned by 28.2.02 to 31.8.04 3867 Dr. Maheshwar Kumar in his pension account 2268 maintained in Allahabad Bank Dhanbad Total income of Dr. Maheshwar Kumar (individual) Rs.

14,24,422/-

25	Mrs. Kanak Lata in 1998-1999	78,785/-
	her IT return has 1999-2000	1,11,798/-
	mentioned the	
	2000-2001	84,720/-
	following income	
	including 2001-2002	79,496/-
	agricultural income 2002-2003	72,004/-
	for assessment years.	
	2003-2004	59,374/-
	2004-2005	73,688
	2005-2006	1,17,702
	Total	6,74,567
26	Mrs. Kanak Lata has 2003-2004	
	also mentioned the	
	following gifts and	
		65,000/-
	loans received in IT	
	return for assessment	1,00,000/-
	year 2003-2004	Total
	1. Rajiv Kumar	1,65,000/-
	(HUF)	
	2. Loan against FDR	
	with Allahabad Bank	

Total income of Mrs. Kanak Lata (individual) ₹. 8,39,567/₹27 4 ICICI Tax saving 28.2.2003 27,965/₹bonds vide certificate no. 12276₹12279 invested on 30.11.99 in name of Dr. Maheshwar Kumar and Kanak Lata.

28	2 ICICI Tax saving 28.2.2003 bonds vide certificate no. 12280-12281 invested 30.10.1999 in name of Kanak Lata and Dr. Maheshwar Kumar.	13,983
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Joint income of Dr. Maheshwar Kumar and Kanak Lata ₹. 41,948/₹Grand Total of all Assets of Statement 'C' & Kanak Lata Kanak Lata Total 71,70,176 Statement₹D Expenditure During the Check Period Check Period 01.04.1996 to 16.2.2005 Sl. Detail of Expenditure Name Date Amount No 1 1/3 expenditure Sh. Sanjiv During 2,88,374/₹against non₹verifiable Kumar check expenditure of Sh. period Sanjiv Kumar from his salary of Rs.

8,65,123/₹during the check period.

2	Expenditure incurred Sh. Sanjiv During 40,440/- by credit card during Kumar June 99-	
	Credit Card No. 5425568602050009 in the name of Sh. Sanjiv Kumar for the period 23.6.99 till closure)	
	113007203-YLY, Kumar 2001 to Branch Unit 11F, 2004 Date 28.6.01	
4	LIC policy no. Sh. Sanjiv Nov 550644860-YLY Kumar 1999 to Nov	17,815/-
5	LIC policy no. Sh. Sanjiv April 1,00,996/- 171578323-YLY Kumar 1998 to April	

6 Expenditure on Ms. April 3,95,280/-

education of children Snigdha 1996 to of Sh. Sanjiv Kumar Kumar & Jan 2005 during the check Mr. period from March Ananya 1998 to Jan 2005. Praharsh Rs. 1,99,345/□for Ms. Snigdha d/o of Sanjiv Kumar.

Rs. 1,95,935/- for
Ananya Praharsh s/o
Sanjiv Kumar

7 Payment towards fees Sh. Sanjiv 11.6.200 1,10,000/-
of Sr. Advocate in the Kumar 33
matter of Sanjiv
Kumar listed on
12.6.2003 before
Supreme Court

8 Payment of electricity Sh. Sanjiv March 87,994/-
bill of flat no. 15, Kumar 1999 to
Hope Apartment, Sept
Sector 15, Part II, 2003
Gurgaon.

9 Maintenance charges Sh. Sanjiv 08/98 to 54,600/-
against flat no. 15, Kumar 06/03
Hope Apartment,

Sector 15, Part II
Gurgaon.

10	Sh. Sanjiv Kumar has Sh. Sanjiv 2002-	9,224/-
	mentioned the Kumar 2003	14,791
	following expenses in (HUF) 2003-	7,025
	his IT return for 2004	
	assessment year.	14,486/-
	2004-	45,526

2005-

Total

11	Payment against Sanjiv 25.5.98 77,885/- mobile no. Kumar to 9814088370 26.7.200
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12	Sh. Subhash Chander Sanjiv 1999- 2,22,71,200/- Gupta received Rs. Kumar 2001 2,51,71,200/- from
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Sanjiv Kumar and his
men in cash as well
as cheque for the
investment in the
share market during
the period 1999-2001
and he invested

2,33,71,200/- in the
share market for
Sanjiv Kumar.

13	Payment of water bill Sanjiv of flat No. C- Kumar 6&7/6357 Vasant	15.11.20 7,953 00 to 22.12.20
----	---	-------------------------------------

the name of K. K. Lal
which was sold
during-1999 in the
name of Dr. Rajiv
Kumar (occupied by
Sanjiv Kumar)

14	Payment of electricity Sanjiv bill of flat No. C- Kumar 6&7/6357 Vasant Kunj, New Delhi sold to Dr. Maheshwar Kumar (occupied by Sanjiv Kumar)	Jan 2002 44,170 to Feb 2005
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Total Expenses of Sh. Sanjiv Kumar (individual) ☐Rs.

2,36,96,961/-

15	2 ICICI Tax Saving Sanjiv Bonds Kumar	Date of 10,000 Investme
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and Kanak nt
Lata 30.10.19

Joint Expenses of Sanjiv Kumar and Mrs. Kanak Lata ☐Rs.

Indian Kanoon - <http://indiankanoon.org/doc/22241715/>

- | | | |
|----|--|------------|
| 22 | Loan advanced to Smt. Abha During
Vibha Sinha as Kumar 2002-
shown in ITR of Smt. 2003
Abha Sinha for the
assessment year

2002-03. | 6,000/- |
| 23 | Loan advance to G. Smt. Abha During
P. Singh, as per IT Kumar 2002-
return of Smt. Abha 2003
Kumar for
assessment year
2002-03 | 2,37,000/- |
| 24 | An amount of Rs. Smt. Abha Jan 2000 75,00,000/-
75,00,000/- was paid Sinha to July
by Smt. Abha Sinha 2000
to M/s Cosmos
Management Services
Pvt., Khan Market,
New Delhi. | |
| 25 | Account no. 16887, Mrs. Abha 02.09.19 1,81,727/-
Oriental Bank of Kumar 97
Commerce, New Rly
Road, Gurgaon. | |

Total Expenses of Mrs. Abha Kumar (individual) □Rs. 92,49,638/□

- 26 SB a/c no. 6064 OBC, Sanjiv 1.3.2001 14,00,000/-
Panchkula in the Kumar &
name of Sanjiv Abha
Kumar & Abha Kumar

Kumar for preparation
of CDR/Folio No.
59354/-

Joint Expenses of Sh. Sanjiv Kumar & Abha Kumar ₹Rs.

14,00,000/-

- 27 LIC policy no. Dr. 28.3.2001 24,270
542268876 Maheshwar
Kumar
- 28 Stamp duty paid by Dr. 20.12.1999 80,000/-
Dr. Maheshwar Maheshwar
Kumar for the Kumar
registration of flat
No. 6360, Sector- C,
Pocket 6-7, Vasant
Kunj, New Delhi.
- 29 Payment of water bill Dr. 12.11.2992 2,583/-
of flat No. 6360 Maheshwar to
Vasant Kunj, New Kumar 22.11.2004
Delhi in the name of
Sh. Prasanna Kumar
which was sold in
1999 to Dr.
Maheshwar Kumar
- 30 Payment of electricity Dr. M. Nov 2000 1,46,070/-
bill of flat No. 6360 Kumar to 2005
Vasant Kunj, New
Delhi in the name of
Sh. Prasanna Kumar
- 31 Payment against Dr. M. 24.4.2001 35,214/-
telephone no. Kumar to
26123876 installed at 28.1.2005
flat no. 6360, C-6&7
Vasant Kunj, New
Delhi
- 32 Insurance of Car No. Dr. 14.11.2002 9,126/-
BR-17C 9991 in the Maheshwar to
name of Dr. Kumar 17.2.2005
Maheshwar Kumar
- 33 Payment to Oriental Dr. 28.6.1999 2,177
Insurance Company Maheshwar
Ltd Chandigarh as Kumar
Mediclaime
Worldwide for policy
no. 231200/2000/66
- 34 Purchase of Foreign Dr. 19.07.2001 43,627/-

Currency from M/s Maheshwar
PherozeFramroze & Kumar
company Pvt Ltd.

- 35 Certificate U/s 68 (2) Dr. M. November 3,33,000/-
of the voluntary Kumar 1997
disclosure of income
scheme, 1997, issued
by O/o Commissioner
of Income Tax,
Dhanbad dated
6.12.1997 in favour
of Dr. Maheshwar
Kumar.
- 36 Dr. Maheshwar Dr. M. 1998-1999 No details
Kumar in his IT Kumar 1999-2000 79,645/-
returns has mentioned
2000-2001 83,650/-
the following
expenditures. 2001-2002 66,390/-
2002-2003 1,82,841/-
2003-2004 71,775/-
2004-2005 1,01,559/-
Total 5,85,860

Total expenditure of Dr. M. Kumar (individual) □Rs. 12,61,927/□37 LIC policy no. Smt. 28.03.2001
24,100 542268677 Kanak Lata 38 Purchase of foreign Kanak 19.7.2001 44,417/□currency from M/s
Lata PherozeFramroze & company Pvt Ltd.

- 39 Stamp duty paid by Kanak 03.06.1997 53,125/-
Mrs. Kanak Lata for Lata
the registration of 8
Kanal Land at
Dhumuspur village.
- 40 Payment to Oriental Mrs. 28.06.1999 2,177/-
Insurance Company Kanak
Ltd. Chandigarh as Lata
Mediclaime
Worldwide for policy
no. 231200/2000/67
- 41 Mrs. Kanak Lata has Mrs. 2001-2002 57,359/-
mentioned the Kanak
following Lata
2002-2003

expenditures in her IT returns.	2003-2004	1,10,336/-
	2004-2005	
	2005-2006	39,253/-
	Total	28,344/-

81,213

3,16,535

Total Exp. Of Mrs. Kanak Lata (individual) □Rs. 4,40,354/□42 Dr. Maheshwar Dr. M. During 1,02,687/□kumar and Smt. Kumar June 99 Kanak Lata had and Smt. purchased two air Kanak tickets on 26.6.1999 Lata.

of Rs. 1,02,687 from
Travel Heights
Barakhamba Road,
New Delhi for Air
travel Delhi-London-
Delhi on Air India.

- 43 Dr. Maheshwar Dr. M. During 1,03,678/-
Kumar and Smt. Kumar July 1999
Kanak Lata had and Smt.
visited United Kanak
Kingdom in the Lata.
month of July 1999
for which they had
purchased foreign
currency of Rs.
49,757/-, Rs. 2,082/-,
Rs 49,757/- and Rs.
2,082/- (Dollar &
Pounds) from M/s

New Found Land
Enterprises Pvt Ltd
against cash memos
i.e. 2.7.1999

Joint expenses of Dr. Maheshwar Kumar & Mrs. Kanak Lata □Rs. 2,06,365/□Grand Total of All Assets of Statement D Kumar Kumar & Kanak Lata Abha Kumar Kumar &Abha Kumar Kumar Kanak Lata Kumar & Kanak Lata Total 3,62,65,245/□

19. Thus from the above, the total assets acquired during the check period by Sh. Sanjiv Kumar, his family members and parents were found to be worth Rs. 1,17,86,133/□(1,46,97,372 - 29,11,239). The expenditure during check period was found to be of Rs. 3,62,65,245. The income of Sh. Sanjiv Kumar, his family members and parents was found to be Rs. 71,70,176/□ Thus, the disproportionate assets in the name of Sh. Sanjiv Kumar, Mrs. Abha Kumar w/o Sh. Sanjiv Kumar, Dr. Maheshwar Kumar and Mrs. Kanak Lata (parents of Sh. Sanjiv Kumar) during 1.4.1996 to 16.2.2005 were to the tune of Rs. 4,08,81,202/□which worked out to be 570.15%.

Calculation of DA
Check period 1.4.1996 to 16.2.2005

Sr. No.	Detail	Amount
1	Assets at the end of check period 1,46,97,372/- (Statement B)	
2	Assets at the beginning of check 29,11,239/- period (Statement A)	
3	Assets acquired during check period 1,17,86,133/- (B-A)	
4	Expenditure during check period 3,62,65,245/- (Statement D)	
5	Assets + expenditure during check 4,80,51,378/- period (Sl.No. 3 + 4)	
6	Income during check period 71,70,176/- (Statement-C)	
7	DA during check period (Sl. No. 5- 4,08,81,202/- 6)	

Percentage of DA - 570.15%

20. During investigation, explanation had been sought from Sh. Sanjiv Kumar and his family members about the assets but they could not satisfactorily account for the same. Further, Govt. of Haryana had informed that Sh. Sanjiv Kumar had not intimated to the government authorities any of the immovable or moveable assets acquired by him in his own name or in the name of his wife

during the check period. Sanjiv Kumar being a public servant while functioning under various capacities of Haryana Government, during the period 1.4.1996 to 16.2.2005 acquired assets which were disproportionate to his income. On 16.2.2005, he and his family members were found in possession of assets to the extent of Rs. 4,08,81,202/— which were disproportionate to his known sources of income for which he could not satisfactorily account for. Thus, Sh. Sanjiv Kumar committed an offence punishable U/s 13 (2) r/w 13 (1) (e) of PC Act.

21. It was further alleged in the charge sheet that there was evidence to show that Mrs. Abha Kumar w/o Sanjiv Kumar, Dr. Maheshwar Kumar and Smt. Kanak Lata, parents of Sh. Sanjiv Kumar engaged in conspiracy with Sh. Sanjiv Kumar, and in furtherance of the same facilitated and aided in the acquisition of illegal assets thereby, committing offence U/s 109 IPC r/w 13 (2) r/w 13 (1) (e) of PC Act.

CHARGE:

22. On 5.6.2010, ld. Predecessor framed Charge against accused Sanjiv Kumar u/s 13 (2) read with section 13 (1) (e) of Prevention of Corruption Act and against accused Ms. Kanak Lata, Ms. Abha Kumar and Dr. Maheshwar Kumar U/s 109 IPC r/w 13 (2) r/w 13 (1) (e) of PC Act.

Prosecution Evidence

23. In order to prove the Charge, prosecution examined 47 witnesses. A brief resume of the witnesses to highlight the purpose of their testimony would be relevant:

PW 1 - from Allahabad Bank, Panipat to prove the savings account statement of accused Sanjiv Kumar when he was Deputy Commissioner, Panipat.

PW 2 - Jewellery valuer who carried out the valuation of jewellery found in the joint ICICI Bank locker of accused A¹ to A⁴ PW 3 - the then Under Secretary, Ministry of Personnel, GOI reg. legality of order granting sanction for prosecution of accused Sanjiv Kumar.

PW 4 - from Oriental Bank of Commerce (OBC), Rly rd. Br., Gurgaon to prove account statement of Savings a/c no. 15666 in the name of Abha Kumar and Savings a/c no. 15469 in the name of Sanjiv Kumar.

PW 5 - also from OBC, Rly. rd. Gurgaon to prove documents in regard to savings a/c in the name of accused Abha, Sanjiv and joint a/c No. 16887 in the name of A¹ to A⁴.

PW 6 — ITO from Gaya, Bihar to prove IT Returns of Sanjiv Kumar (HUF) from 1999¹ to 2005¹.

PW 7 - Dy. Supdt., HUDA (Haryana Urban Development Authority), to prove allotment of plots to accused Abha and accused Kanak Lata in Faridabad (Hry.).

PW 8 - Kanoongo in Gurgaon, to prove certified copy of jamabandi in respect of property measuring 8 kanals owned by Kanak Lata in Dhumuspur village.

PW 9 - to prove salary of accused Sanjiv as Director of Haryana Prathmik Shiksha Pariyojana Parishad, from 3.11.98 to 15.6.99 and from 17.5.2000 to 14.01.2001.

PW 10 - to prove sale transaction of agri. land in Village Dhumuspur, Gurgaon to accused Kanak Lata.

PW 11 - from Haryana Bhawan, New Delhi, to prove the stay of Sanjiv Kumar in Delhi on specific dates to co-relate with SC Gupta's statement u/S 161 Cr. PC that he received money from accused Sanjiv in Haryana Bhawan.

PW 12 - from Delhi Jal Board but discharged unexamined. PW 12 - also testified regarding sale of Dhumuspur agricultural land to accused Kanak Lata.

PW 13 - from Vijaya Bank, sector 34 Chandigarh to prove statement of a/c no. 1410 in name of Sanjiv Kumar.

PW 14 - from Vijaya Bank but discharged as not competent. PW 15 - to prove statement of ICICI Jt. a/c of Kanak Lata and Dr. Maheshwar from 1.8.2004 to 17.2.2005, specifically in relation to deposit of 1000 GBP on 12.8.2004 and 2000 GBP on 28.9.2004.

PW 16 - Architect to prove the valuation report of Dhumuspur village property of Kanak Lata.

PW 17 - from LIC, to prove details of 13 LIC policies seized by the CBI.

PW 18 - was a property dealer, to prove that 2 Vasant Kunj flats were actually bought benami by Sanjiv Kumar.

PW 19 - from Ansal Properties, to depose regarding purchase of plot by Kanak Lata in Sushant Lok.

PW 20 - Proprietor of Pandit clinic, Dhanbad having 12 bed facility to prove whether or not Dr. M. Kumar had income from private practice as a surgeon.

PW 21 - from Pureearth Infra.Ltd, to prove allotment of one flat each to Kanak Lata and Abha at Bara Hindu Rao, Delhi.

PW 22 - Witness from OBC, Panckula to prove credit transfer vouchers and debit vouchers in 2 accounts - of accused Sanjiv and accused Abha.

PW 23 - from DHBVN (Elec. Board), Haryana to prove that Rs. 87994/- was paid as electricity bills of flat no. 15, Hope Apartments from March 1999 to September 2003, in the name of Sanjiv Kumar. PW 24 - Witness from OBC Gurgaon, Rly rd. br. to prove account opening forms of a/c no. 15666 in the name of Abha, a/c no. 15469 in the name of Sanjiv Kumar and joint a/c no. 16887 in the name of Abha Kumar, Kanak Lata and Dr. M. Kumar PW 25 - To prove that accused Sanjiv dabbled in share market with the aid of SC Gupta (PW 41).

PW 26 - From Syndicate Bank, Khan Market to prove account statement from 1.6.2004 to 31.01.2005 of a/c no. 90432010057525 in the name of Abha Kumar.

PW 27 - had worked as a clerk in Hope Apartments Society, Gurgaon; brought in to prove the maintenance charges statement for flat no. 15 HOPE Apartments from June 1996 till Dec. 2003. PW 29 - from M/s PherozFramroz and Co. Ltd. which deals in foreign exchange to prove purchase of GBP 500 and US \$ 200 by Maheshwar Kumar for Rs. 43,627 in cash, and further to prove purchase of GBP 300 and US \$ 500 by Kanak Lata for Rs. 44,417.

PW 30 - from Airtel, to prove subscriber details of 13 mobile nos. PW 31 - from Canara Bank, Panipat to prove a/c no. 6765 of Sanjiv Kumar PW 32 - Proved the elec. Bills for the period Nov. 2K to Feb. 2005 for flats no. 6357 and 6360 Vasant Kunj, New Delhi. PW 33 - was a private practicing Doctor in Dhanbad; knew Dr. M. Kumar who had his private practice and used to conduct minor operations at the clinic of witness.

PW 34 - from MTNL to prove telephone bills of phones installed in flat no. 6357 and 6360, Vasant Kunj, New Delhi. PW 35 - to prove transaction of agricultural land in vill. Dhumuspur. PW 36 - to prove transaction of agricultural land in vill. Dhumuspur. PW 37 - was Tehsildar Gurgaon; proved a document pertaining to Dhumuspur property.

PW 38 - was search witness to the raid conducted at the flat of Sanjiv Kumar in Vasant Kunj.

PW 39 - was also search witness to the raid conducted at the flat of Sanjiv Kumar in Vasant Kunj.

PW 40 - from Cosmos Mngmnt., to prove deposits to the tune of Rs. 75 lacs by Abha Kumar for share trading.

PW 41 - to prove that accused Sanjiv paid Rs. 2.51 crores for trading in shares.

PW 42 - was from Ansals; to prove allotment of a plot in Sushant Lok in the name of accused Kanak Lata.

PW 43 - Manager from Jharsa Grameen Bank, to prove transfer entries of Rs. 10 and 5 lacs from the account of Hawa Singh to Sanjiv Kumar's account in OBC, Pkl branch.

PW 44 - Assisted the first Investigating officer PW 45 - IST IO PW 46 - 2ND IO PW 47 - to prove that he paid bribe of Rs. 90 lacs to Sanjiv Kumar but handed over the same to SC Gupta (PW 41) for

trading in shares.

Detailed testimonies □

24. PW 1 Sh. Sidhu Ram Batra: Witness was from Allahabad Bank, Panipat Branch and deposed about opening of Saving bank A/c No. 7617 in the name of Sanjiv Kumar, the then Dy. Commissioner, Panipat in the said branch. This account was opened on 16.6.95 with the initial amount of Rs. 100/□ Witness proved the statement of account as Ex. PW1/A which bore his signatures at point A along with seal of the Bank. He had also proved the account opening form cum specimen signatures in respect of the above□mentioned bank account, as Ex. PW1/B. In cross□examination, PW1 deposed that apart from Statement of Account and Account Opening Form, no other document bearing his signature was seized by IO in his presence.

25. PW 2 Sh. Vijay Goel: Was government approved jewellery valuer since 1998. On 10.5.07 he was called at ICICI Bank, Vasant Kunj, N. Delhi by Insp. A. K. Pandey of CBI. Locker bearing no. 609, ICICI Bank which was in the joint names of Dr. Maheshwar Kumar, Smt. Kanak Lata and Smt. Abha was opened in his presence and in the presence of bank officials. Locker operation memo was proved as Ex. PW2/A. 44 jewellery items were taken out from the said locker. He took the gross weight of the jewellery items, net weight in grams, description of stones & weight of stones and thereafter, assessed the value of thereof as also of total value of jewellery items and prepared his valuation report which was proved as Ex. PW2/B. The value of jewellery items was assessed at Rs. 14,79,084/□on the basis of market rate prevalent at the relevant time i.e. end of check period □ 16.2.2005. Witness had assessed that 30% of the jewellery found in the locker was of pre□check period i.e. pre□1996.

In cross□examination, PW2 admitted that assessment in respect of the period of manufacturing of jewellery is a guess work, that assessment might be incorrect and that there are 50:50 chances in regard to the correctness or the incorrectness of the assessment done by the Witness. The Witness deposed that in last about five years from the date of his deposition, generally 'Hallmarks' are being 'made' by the jewellers however, he could not recollect if the jewellery items assessed by him, had any 'Hallmarks'. The Witness could not admit or deny the suggestion that none of the jewellery items assessed by him had any Hallmark of any jeweller. PW 2 further deposed that weight of the gems was taken on the basis of assessment of size of stones but the stones were not separated from the jewellery items for assessing the weight. The Witness denied the suggestion that assessment given by him in regard to the weight of gems and metal as also the period is based only on subjective assessment and that the report prepared by him is not correct and reliable.

26. PW 3 Sh. Vijay Kumar: Deposed that in August, 2008 he was working as Under Secretary in the Ministry of Personnel, Public Grievances and Pensions, Department of Personnel and Training, Govt of India, N. Delhi and was dealing with the work of disciplinary matters as well as proposals for sanctions for prosecution of IAS officers. A proposal for sanction for prosecution of Sh. Sanjiv Kumar, IAS (HY 85) was received from CBI in January 2008. The said proposal was accompanied with copies of documents and statements of witnesses relied upon by CBI. On receipt of proposal, reference was made to the Govt of Haryana for their comments. In April 2009, the Govt. of Haryana

recommended the grant of sanction. Thereafter, the matter was referred to the Central Vigilance Commission for their advice which also advised for grant of sanction for prosecution against Sh. Sanjiv Kumar. Thereafter, he (PW3) submitted a note for consideration and decision of sanctioning authority i.e. to The Prime Minister, being the Minister in charge of the Ministry of Personnel, Govt of India. The decision of the sanctioning authority for grant of sanction for prosecution was conveyed by the Prime Minister's office. Thereafter, he submitted a draft sanction order which was approved by the Joint Secretary of Ministry of Personnel. After approval of the draft order for sanction, the final order was signed by him i.e. PW 3 in accordance with the approval and conveyed the same to CBI. Witness proved the sanction order dated 26.8.2008 as Ex. PW3/A. In cross examination conducted by A1 Sanjiv Kumar, PW3 denied that sanction for prosecution was accorded on the same format which was sent by the CBI voluntarily stating that as per requirement, certain modifications were made. The Witness could not recollect if the documents in regard to raids conducted by CBI at 17 places were also there in the bunch of documents sent by the CBI. PW3 further deposed that his noting along with prima facie view to accord the sanction was prepared on the basis of material sent by the CBI. The Witness admitted that neither Sanction order Ex. PW3/A was approved or signed by the Minister In charge nor draft Sanction Order was sent to the Minister In charge along with the noting however, he clarified that the approval was given by Minister In charge on the file, below his noting. The Witness admitted about having no knowledge as to who examined the entire material or assisted the Minister In charge while giving approval on the file. The Witness denied that 'Sanction' for prosecution has not been granted by the competent authority or that the same has been granted without going through the material on record or independent application of mind by the concerned Authority. PW3 admitted that draft Sanction Order was not approved by the Minister In charge along with the approval of noting for according sanction for prosecution. The Witness also denied that matter pertaining to the sanction of prosecution was not properly dealt with in accordance with business rules of Govt. of India or that he is not a proper and competent witness to depose on the question of sanction for prosecution against the accused as he was not the Sanctioning Authority, rather only had conveyed the sanction in accordance with the approval of the Minister In charge.

The Witness PW3 was not cross examined on behalf of A2 Smt. Abha Kumar, A3 Dr. Maheshwar Kumar and A4 Smt. Kanak Lata.

27. PW 4 Sh. Krishan Lal Rana: Was witness from Oriental Bank of Commerce, New Railway Road, Gurgaon, Haryana and proved the statement of account Ex. PW4/A of account No. 15666 in the name of Smt. Abha Kumar for the period 5.6.99 to 6.1.2007 which was prepared by him on the basis of records. The account was opened on 30.3.1996. He further deposed that the statement of account Ex. PW4/B of account No. 15469 for the period 24.9.98 to 6.1.2007 in the name of Sh. Sanjiv Kumar IAS was also prepared by him on the basis of records. The account was opened on 19.01.1996.

In cross examination, PW4 deposed that except the stamp of the bank visible on Ex. PW4/A and Ex. PW4/B, there is no separate certificate under Banker's book of Evidence Act issued by him with regard to these statements, voluntarily stating that his stamp 'suffices'.

28. PW 5 Sh. Ashok Dhall: Was also a witness from Oriental Bank of Commerce, New Railway Road, Gurgaon. He did not remember whether he had handed over any documents to CBI. Witness stated that none of the documents contained in files D□3, D□14 and D□5 bore his signatures nor had he dealt with the same in any capacity.

Ld. Defense counsel gave a statement stating that he did not want to cross□examine PW5 Ashok Dhall.

29. PW 6 Sh. Tarun Roy: Was witness from the Income Tax department, posted in Dhanbad at the relevant time. He deposed that pursuant to the letter received from the IO, he had personally submitted income tax returns of Sh. Sanjiv Kumar (HUF) for the AY 1999□2000, 2002□2003, 2004□05 and 2005□06 along with his covering letter which was proved as Ex. PW6/A. He proved the income tax returns of Sanjiv Kumar (HUF) for the AY 1999□2000, 2002□2003, 2004□05 and 2005□06 as Ex. PW6/B, Ex. PW6/C, Ex. PW6/D and Ex. PW6/E. In cross□examination conducted by accused Sanjiv Kumar, PW6 admitted that the investigating officer requested for the income tax record for the assessment years starting from 1999□2000 to 2005□2006. The Witness deposed that since the office was under

shifting, some record was not found traceable at that time for which reason the record pertaining to the ITRs of all the years was not traceable, and that whatever record was found, the same was submitted by the Witness to the investigating officer. The Witness further deposed that as per rules, record of ITR for ten years used to be maintained. The Witness admitted that the above□said ITRs were accompanied by balance sheet showing income and expenditure and that for the same, no proceedings for any penalty had been initiated under any provision of Income Tax Act. The Witness deposed that being the Income Tax Officer, he assessed the ITR Ex. PW6/E for the Assessment Year 2005□2006 after referring to the records.

In cross□examination conducted on behalf of other three accused persons, the Witness deposed that these ITR's have not been filed by Smt. Abha Sinha, Dr. Maheshwar Kumar and Smt. Kanak Lata, rather the same have been filed by Sanjiv Kumar (HUF).

30. PW 7 Sh. Ram Chander: Witness was from the Govt. Of Haryana, Haryana Urban Development Authority (HUDA) at Faridabad. He stated that on 30.6.2006 file D□4 was seized from him by the IO vide seizure memo Ex. PW7/A. As per file D□4 (proved as Ex. PW7/B), vide letter dated 14.9.94 plot No. 1995, Sector 28, HUDA, Faridabad was offered to Smt. Abha Kumar (w/o Sanjiv Kumar) by Chief Administrator, HUDA. The offer was accepted and an amount of Rs. 19,163/□i.e. 25% of the total price was deposited by the allottee Abha Kumar vide receipt No. 102647 dated 22.9.1994. The remaining 75% cost of the plot was to be deposited in the next 06 years in instalments. As per file D□3 (proved as Ex. PW7/C) Plot No. 1997, Sector 28, HUDA, Faridabad was offered to Smt. Kanak Lata (w/o M. Kumar r/o D.C. residence, Hissar) which was accepted by her and as per the terms and conditions of allotment, 25% price of the plot i.e. Rs. 19,163 was deposited by her vide receipt no. 102648 dt 22.9.1994 while the remaining instalments were to be deposited in next 6 years.

In cross-examination, PW7 admitted that pursuant to the orders passed in Civil Writ Petition No. 5851, all the plots including the above two plots, allotted from the CM discretionary quota were cancelled. However, subsequently the above two plots were again restored in view of the orders passed by Hon'ble Supreme Court of India. The Witness deposed that since notice of cancellation of the plots was not sent, hence notice in regard to restoration of plot was also not sent. However, as per file Ex. PW7/B (D-4), notice dated 3.5.2002 and as per file Ex. PW7/C (D-3), notice dated 28.3.2002 were sent for payment of due instalments to Smt. Abha Kumar and Smt. Kanak Lata, respectively.

31. PW 8 Sh. Surinder Bhardwaj: Was also a witness from the Govt. of Haryana, Revenue Department and was posted as Kanoongo in District Gurgaon. On 23.5.2006, he had issued a certified copy of Nakal Jamabandi in respect of Mustakil (Rectangle) No. 17 and Kila No. 12 having an area of 8 kanal pertaining to the year 2003-04. As per the certified copy of jamabandi proved as Ex. PW8/A, Smt. Kanak Lata w/o M. Kumar was the recorded owner of the land.

In cross-examination, PW8 deposed that recordings in the Jamabandi are on the basis of mutation, duly approved by the Tehsildar. He admitted that in Ex. PW8/A, there is no mention of any such order of the Tehsildar.

32. PW 9 Sh. B. L. Kapoor: Was retired Chief Accounts Officer from the Finance deptt., Govt. of Haryana. Witness deposed that Sanjiv Kumar had worked as Director in HPSPP during the period 1998 to 2001. On the request of CBI, he had prepared the salary statement/details (proved as Ex. PW9/A) of Sanjiv Kumar during the period he remained in HPSPP, and handed over the same to CBI officer. He also wrote a letter (proved as Ex. PW9/B) to Haryana Civil Secretariat enclosing copy of the salary statement Ex. PW9/A. PW 9 was not cross-examined.

33. PW 10 Sh. Phire Ram: Witness was a resident of Dhumuspur Village, Gurgaon where accused Kanak Lata had purchased an 8 kanal land piece. He deposed that he knew Sh. Rajpal, Sh. Gaje Singh, Sh. Balraj and Sh. Hans Raj as they belonged to his family and also were natives of the same village. He stated that Sale Deed (proved as Ex. PW10/A) had the photographs of Sh. Rajpal, Sh. Gaje Singh, Sh. Hans Raj, Sh. Balraj and also of Dharamvir. They all were real brothers, were having agricultural land in village Dhumaspur and had sold the land through this sale deed. The deal was finalized through Sh. Sumer Arora and the sale deed was executed by the five brothers who had put their thumb impressions and signatures on the sale deed in his presence. He (i.e. PW10) had signed the sale deed as a witness at point A on page no. 2. He further stated that payment was made in cash however, he did not know as to for how much was the land sold.

In cross-examination, PW10 deposed that he had not witnessed any other writing except the Sale Deed on the day of its execution which was recorded by the Deed Writer. He denied the suggestion that the Sale Deed Ex. PW10/A was not executed in his presence or that he had put his signatures on the same later on. He admitted that the Sale Deed contains photographs of all the sellers as also of the purchaser on its first page.

34. PW 11 Sh. Manohar Lal: Was a Govt. of Haryana official, working in the record office of PWD, Haryana Bhawan, New Delhi. On 6.8.2007, he had handed over to CBI four registers containing entries regarding the visitors to Haryana Bhawan which were seized vide seizure memo (proved as) Ex. PW11/A. In the visitor register for the month of May 2000 at page no. 28, there was an entry regarding the visit of Sanjiv Kumar and booking of Suite No. 406 at 3.20 PM on 16.5.2000. The time of departure was mentioned as 10.00 PM. Photocopy of page no. 28 of the register duly certified by the witness was proved as Ex. PW11/B. In cross-examination, PW11 deposed that the entries at page No. 28 were not made in his presence. He admitted having been cited as a witness in a case against accused Sanjiv Kumar before the court of Special Judge, CBI, Chandigarh where original registers were shown to him, and that Ex. PW11/B is one of the pages of the said registers.

35. PW 12 Sh. Parveen Sharma: Was witness from Delhi Jal Board, posted in Vasant Kunj at the relevant time. He deposed that computer summary statement of flat No. C-67/6&7, Vasant Kunj, Delhi did not bear his signatures. This witness was declared incompetent by the court as he had not signed the statement nor his signature appeared on any of the documents.

36. PW 12 Sh. Jagat Singh: This witness was also given PW number 12. Witness was a resident of Village Dhumus Pur and knew Sh. Raj Pal, Sh. Gaje Singh, Sh. Hans Raj, Sh. Balraj and Sh. Dharamvir (all sons of late Roshan Lal) who were natives of the same village. Witness identified the photographs at point 'A' on Ex. PW10/A (sale deed) as being of those five persons. Witness deposed that they had sold the land to Smt. Kanak Lata whose photograph was identified at point 'B' on Ex. PW10/A (sale deed). He had appeared before the Sub Registrar and put his signatures at point 'D' on the Sale Deed in the presence of Sub Registrar. Witness stated that the 'payment' had already been made by Kanak Lata to the sons of late Roshan Lal and nothing was due.

PW 12 was not cross-examined.

37. PW 13 Sh. Rajiv Kumar: Was a witness from Vijaya Bank, Sector 34, Chandigarh. He proved statement (of account no. 1410 in the name of Sanjiv Kumar, IAS) from 12.2.99 to 16.2.2005 as Ex. PW13/A which was attested by him with the seal of the bank. As per this statement, there was a credit balance of Rs. 108729.73/- in the said account as on 8.2.2005.

In his cross-examination, PW13 admitted that statement of account Ex. PW13/A had not been certified as per the Banker's Book of Evidence Act. He further admitted that after August 2001, all the credit entries relate to credit of periodical interest.

38. PW 14 Sh. Abhijeet Sorte: Was also a witness from Vijaya Bank, Sector 34, Chandigarh. He deposed that on the instruction of the then branch head Sh. Sunil Kumar Dhar, he had visited the CBI office at New Delhi and handed over to CBI the letter along with documents as was given to him by the bank manager.

This witness was also declared incompetent after Court Observation was recorded that the witness has simply handed over whatever has been given to him and not dealt with any of the documents.

39. PW 15 Sh. Satish Newatia: Was witness from ICICI Bank, Shastri Nagar, Dhanbad, Jharkhand. He proved statement of joint account in the name of Kanak Lata & M. Kumar bearing a/c No. 019601507407 as Ex. PW15/A. The account statement was for the period 1.8.2004 to 17.2.2005. Witness stated that the term deposit credit balance was Rs. 2,35,000/□ and operative account balance was Rs. 12,486/□ making it a total of Rs. 2,47,486/□ as on 31.12.2004. Witness further deposed that on 12.8.2004, 1000 British Pounds at exchange rate of Rs. 83,570 amounting to Rs. 83,570/□ were deposited in the bank and on 28.9.2004 British Pounds 2000 at exchange rate of Rs. 82.37 amounting to Rs. 1,64,740/□ was deposited in this account.

In cross□ examination, PW15 admitted about statement of account Ex. PW15/A not being certified as per Banker's Book of Evidence Act. PW15 deposed that 1000 British pounds and 2000 British pounds might have been credited via transfer or through foreign demand draft, however the same could not be deciphered from the statement of account. Witness clarified that the said British pounds were processed at Borivalli Processing Centre of ICICI Bank, Mumbai. He further stated that as per his knowledge, British Pounds cannot be deposited in cash. The Witness also stated that he could not say as to who had transferred the British pounds in the account and from where were the same transferred, the record of which might have been available at Borivalli Centre.

40. PW 16 Sh. Gita Prakash Gujral: Was a qualified architect and had retired as Dy. General Manager (Architect) from the NBCC Ltd, Govt. of India. After retirement, he was having his own practice. Witness stated that he was approached for carrying out valuation of property No. 9, Khasra No. 123/104, Village Dhumuspur, Gurgaon. Accordingly, he visited the site on 29.10.2005, examined the property and prepared its valuation report dated 3.11.2005 (which was proved as) Ex. PW16/A. Signature of the owner of property Smt. Kanak Lata was also obtained on the valuation report Ex. PW16/A at point B by delivering the valuation report at her residence at Vasant Kunj. Witness also pointed out that the declaration dt. 29.10.2005 (proved as) Ex. PW16/B was signed by him, at point A. In cross□ examination, PW16 deposed that he had carried out the valuation as per National Building Code and that all the calculations were carried out as per the rates prevailing at the relevant time.

41. PW 17 Smt. Jyoti Vermani: Was witness from the LIC of India, and was summoned to prove the details of LIC policies seized/found from the accused persons during the investigation. She deposed in March 2006, CBI had sought details in respect of 13 Life Insurance Policies. Vide letter dt. 5.4.2006 proved as Ex. PW17/A, details of 11 policies contained in 21 sheets, proved as Ex. PW17/B1 to Ex. PW17/B21 were sent to the CBI. The sheets contained the details of premium paid to and the payments made by the LIC upto 5.4.2006.

In cross□ examination, PW17 deposed that she could not tell as to who had paid the premium in respect of these policies. The Witness could not admit or deny whether payment in respect of policies mentioned at serial Nos. 3, 4, 6 and 9 of Ex. PW17/A (file D□

39) were made by Shri G.P. Singh. The Witness admitted that payment details mentioned in Ex. PW17/B□5 in respect of policy mentioned at serial No. 3 of Ex. PW17/A (file D□39), in Ex. PW17/B□11 in respect of policy mentioned at serial No. 6 of Ex. PW17/A and in Ex. PW17/B□7 in respect of

policy mentioned at serial No. 4 of Ex. PW17/A were not from the date of initiation of the policy. The Witness denied that the details mentioned in the sheets Ex. PW17/B□ to Ex. PW17/B□21 were incorrect.

42. PW 18 Sh. Sunil Choudhary: Was a property dealer in the Vasant Kunj area under the name and style of M/s Chaudhary Properties. Witness claimed to have known Sanjiv Kr. since 1999 when Sanjiv Kr. came to his office in connection with purchase of a flat. He had requested for purchase of two flats at Vasant Kunj, Pocket C□6. Witness stated that the market price of these flats at that time was Rs. 28 or 29 lac and that the deal was finalized for Rs. 28 lac per flat. The flats in respect of which the deal was finalized were flat no. C□6/6357 and flat no. C□6/6360, and those were duplex flats. Witness detailed that Sh. K. K. Lal was owner of flat No. C□6/6357. Rs. 05 lac was paid in cash by Sanjiv Kumar to him which he had handed over to K. K. Lal. The property was purchased in through GPA the name of Dr. Rajiv Kumar, brother of Sh. Sanjiv Kumar. Out of the balance of Rs. 23 lac, Rs. 9 lac was paid in cash and Rs. 14 lac was paid through demand drafts. Witness further testified that the balance payment was also made by Sanjiv Kumar, that Dr. Rajiv Kumar was not present at any point of time and that he (PW18) had not met him till date. Witness was one of the witnesses to GPA Ex. PW18/A1, SPA Ex. PW18/A2 and Will Ex. PW18/A3 executed by K. K. Lal in favour of Dr. Rajiv Kumar.

Witness further detailed that the second flat i.e. flat no. C□6/6360 was owned by Sh. Prasanna Kumar who was a resident of USA and one Sh. Rajeev Goyal had negotiated the deal on his behalf. The power of attorney in respect of this flat was in the name of Sh. Pramod Kumar Aggarwal. Rs. 05 lac was given as advance to Sh. Rajeev Goyal by Sh. Sanjiv Kumar through him. Out of balance of Rs. 23 lac, Rs. 10 lac was paid through demand draft and Rs. 13 lac was paid in cash which payment was also made by Sh. Sanjiv Kumar, as per PW

18. Sale deed of the flat (proved as) Ex. PW18/B was executed by Pramod Kumar Aggarwal in the name of Dr. Maheshwar Kumar, father of Sh. Sanjiv Kumar. Witness asserted that all the negotiations and payments were made by Sh. Sanjiv Kumar in respect of both these flats and further that possession of both the flats was handed over to Sanjiv Kumar.

In cross□examination, PW18 deposed about raid having been conducted once by the CBI at his premises No. C□6/6353, Vasant Kunj, New Delhi and that as per his knowledge, no search list or seizure memo was prepared in regard to that search. However, CBI had taken some registers and office records from his office which later on were returned to him. The Witness deposed that the raid was conducted in his premises prior to him being called by the CBI for inquiry and recording of his statement. The Witness admitted that the raid was conducted at his premises on 17.2.2005. The Witness could not recollect the date when he was called by the CBI for recording his statement but stated that it might be 19.2.2005. No cash or any dubious document was recovered from his premises during that raid. The Witness denied the suggestion that some dubious documents involving him in a criminal case were recovered from his premises but in order to save himself, he had given a statement before CBI under pressure. The Witness admitted about there being no mention of any monetary consideration, in cash or through demand draft, in GPA Ex. PW18/A□ (file D□40), SPA Ex. PW18/A□2 (file D□40) or in Will Ex. PW18/A□3 (file D□40). The Witness

denied that no cash was paid at the time of purchase of flat but however admitted that no receipt was executed in respect of the said cash payment. The Witness further deposed that it is not always necessary that receipt be executed in respect of cash payments but it depended on the mutual understanding of the parties, and that in case of parties being acquainted to each other, generally the receipts were not executed for cash payments. Witness then clarified that the parties were not acquainted to each other in the present case.

43. PW 19 Sh. T. Rajan: Witness was from the sales department of M/s Ansal Properties & Constructions Ltd. He did not remember whether his statement was recorded by CBI officer on 21.6.05 nor that he had visited the CBI office in connection with the investigation of this case. Witness was declared hostile by Ld. PP for CBI.

In cross-examination by ld. PP, witness stated that file pertaining to plot No. B-103 was not in his custody and he was not handling the said file. He was looking after the commercial properties and the files relating to residential plots used to come only on the directions of super officer of the company. Ld. Predecessor denied permission to the ld. PP to put to the Witness the file pertaining to B-103, Sushant Lok since the witness asserted that he was dealing with commercial properties whereas B-103 was a residential plot.

The Witness was not cross-examined on behalf of the defense.

44. PW 20 Sh. Sarabjeet Pandit: Witness deposed that he was proprietor of M/s Pandit Clinic situated at Dhanbad, Jharkhand having a 12 bed facility. He did not know (accused) Dr. M. Kumar. The letter dated 30.1.2007 proved as Ex. PW20/A was admitted to have been written by him as per the information made available to him by her mother late Smt. Snehlata Pandit. Witness clarified that he had no personal knowledge as to what was written in Ex. PW20/A. PW 20 was not cross-examined by the defense.

45. PW 21 Sh. Ajay Khanna: Witness was working as Company Secretary in DCM Estates & Infrastructure Ltd. He deposed about land in Kishan Ganj, Bara Hindu Rao being given for development by DCM Ltd. to Ansals and Kailashnath Associates respectively. Some of the bookings were carried out by Kailashnath Associates whereas some were done by Ansals. Eventually however, the land could not be developed and DCM Ltd. again took over the land. The name of this company was changed to M/s Purearth Infrastructure Ltd. somewhere in the year 2005. Witness deposed that the customer files were taken over by him from M/s DCM Ltd. which included the files pertaining to allotment to Mrs. Kanak Lata and Abha Sinha. (The allotment to Mrs. Kanak Lata had been admitted by ld. Counsel for accused persons). The witness proved one booklet of allotment including allotment letter and 08 receipts which were proved as Ex. PW12/A1 to PW21/A9. Witness further deposed that as per letter dated 17.7.96 proved as Ex. PW21/B, the provisional booking transfer was done in the name of Abha Sinha, as accepted by M/s Kailash Nath & Associates on 17.7.96. Witness also clarified that the file brought by him relating to booking transfer in the name of Abha Sinha did not depict any payment by Abha Sinha after acceptance of the provisional booking on 17.7.96 by Kailash Nath Associates.

In cross-examination, PW21 deposed that he had not handed over any document to CBI in regard to arrangement between M/s. DCM Ltd., M/s. Kailash Nath and M/s. Ansals Properties. The Witness was not aware whether the three parties used to share information regarding bookings done by them. The Witness deposed that the details of all the payments made by the provisional booking holder used to be kept in the respective files of that booking holder and that sheet (proved as) Ex. PW21/DA (put to the witness in cross-exam.) reflects the payment made by the original booking holder. The Witness was having no knowledge whether at the time of transfer of provisional booking executed vide letter dated 17.7.1996 Ex. PW21/B, any payment was made by accused Abha Sinha or not.

46. PW 22 Sh. N. K. Raheja: Was witness from the Oriental Bank of Commerce, Panchkula, Haryana. Witness deposed that vide receipt memo dated 2.8.2005 (proved as) Ex. PW22/A, he had handed over to the CBI original transfer voucher for Rs. 1,60,000/- in the name of Sanjiv Kumar (proved as) Ex. PW22/A1, original credit voucher for Rs. 1,60,000/- in the name of Sanjiv Kumar (proved as) Ex. PW22/A2, Original debit bill purchase voucher in the name of Sanjiv Kumar (proved as) Ex. PW22/A3, Original credit voucher of bill in the name of Sanjiv Kumar (proved as) Ex. PW22/A4, Original debit bill purchase voucher in the name of Sanjiv Kumar (proved as) Ex. PW22/A5, original credit voucher in the name of Sanjiv Kumar (proved as) Ex. PW22/A6, Original cheque No. 954441 for Rs. 6,50,975/- drawn by Smt. Abha Kumar on account no. 6000 (proved as) Ex. PW22/A7 and original credit voucher in the name of Sanjiv Kumar (proved as) Ex. PW22/A8. Witness further deposed that on 8.10.2005 vide letter proved as Ex. PW22/B, he had delivered debit and credit vouchers to the CBI.

PW 22 was not cross-examined.

47. PW 23 Sh. Harish Kumar: Witness was from Dakshin Haryana Bijli Vitran Nigam (formerly Haryana State Electricity Board) and his job profile included maintaining the ledger regarding the bills raised and payments received. As per the report of the Witness dated 4.5.2007 (proved as) Ex. PW23/A, Rs. 87,994/- had been paid against electricity bill for the period March 1999 to September 2003 in respect of Flat No. 15, Hope Apartment, Sector 15-II, Gurgaon in the name of Sanjiv Kumar.

In cross-examination, PW 23 denied that pages 1 to 6 handed over by him along with report Ex. PW23/A (in file D-47) were not the photocopies of the original ledger. Witness deposed that the billing in regard to that flat had started only from February 1999. He admitted that on page 1, there is an endorsement reflecting that first billing started in 12/1997 or 2/1998. Witness clarified that the ledger account is maintained flatwise and not owner-wise. The Witness denied that the documents handed over by him to CBI were forged documents and that the same were not borne out from the original ledger.

48. PW 24 Sh. Samir Suman: Witness was from the Oriental Bank of Commerce, New Railway Road, Gurgaon. He stated that vide seizure memo dated 7.9.2007 he had handed over to CBI original account opening form of SB A/c no. 15666 in the name of Smt. Abha Kumar (proved as) Ex. PW24/B, account opening form in respect of SB a/c no. 15469 in the name of Sanjiv Kumar (proved

as) Ex. PW24/C and account opening form in respect of SB a/c No. 16887 in the joint names of Ms. Abha Kumar, Kanak Lata and Dr. M. Kumar (proved as) Ex. PW24/D. In cross-examination, PW24 deposed that he had not prepared the details Ex. PW24/D though the same was prepared in his presence and that he had not signed the same at the time of its preparation but rather signed the same in the office of CBI at the asking of CBI officer. The Witness admitted that Ex. PW24/D had not been certified in any manner.

49. PW 25 Sh. Ram Avtar Aggarwal : Was a crucial witness for the prosecution to prove the Charge, in part, that accused Sanjiv Kumar had invested Rs. 2.51 crores in share market. Witness deposed that he was a practicing chartered accountant and also running a company in the name of M/s Ramanuj Finance & Investment Ltd at Faridabad. He stated that he knew accused Sanjiv Kumar and had met him for the first time in the year 2001-2002 when he was posted as Commissioner, Rehabilitation Department, Govt of Haryana, Chandigarh in connection with allotment of a piece of land at Faridabad in which department of Rehabilitation was also to play some role. However, he asserted that he did not know any Subhash Chand Gupta but knew that owner of M/s Vandana Investments is one Mr. Gupta. He admitted to have gone to M/s Vandana investments in connection with purchase of shares. Witness further stated that he did not know any firm by the name of Cosmos Management. Witness admitted letter of undertaking dt 1.4.2001 which was proved as Ex. PW25/A and that the same was given by him to M/s Vandana Investment in connection with purchase of 22,000 shares of Raymonds Ltd. Witness further admitted the Memorandum of Understanding (proved as) Ex. PW25/B, also dated 1.4.2001, with M/s Vandana Investment and that the same was in his hand writing. He claimed to have made payment of Rs. 25 to 27 lacs towards purchase of these shares to M/s Vandana Investment through two or three cheques. Witness further clarified that through the payment of Rs. 29 lacs, 22000 shares of Raymonds and some other shares of Infosys, Satyam and few other companies were purchased, and that M/s Vandana Investments had purchased those shares for him. This witness was declared hostile by the ld. PP for CBI.

In cross-examination conducted by ld. PP, CBI, Witness denied that he met Sh. Subhash Gupta of Vandana Investment for the first time at the residence of Sh. Sanjiv Kumar at Vasant Kunj. He stated that after he had purchased shares from Vandana Investment for Rs. 29 lacs, Sh. Gupta incidentally met him at the residence of Sh. Sanjiv Kumar. The Witness further stated that when he met Mr. Gupta at the residence of accused Sanjiv, both of them recognized each other and that Mr. Gupta happened to be the same person who had signed the memorandum Ex. PW25/B (D-35) at point B. He then admitted that he knew Mr. Gupta of M/s Vandana Investment since 1992 when he was working with M/s M. R. Soni Share Broker but he did not have any dealing with him. He denied stating before CBI officer that Mr. Gupta had shared with him any problem faced by him in connection with purchase of shares of Rs. 30 lacs at the behest of Sanjiv Kumar as also for someone else whose name he did not disclose. In this regard, he was confronted with his statement recorded u/s 161 Cr. P. C. (proved as) Ex. PW25/C. Witness further denied that the shares which he had purchased for Rs. 29 lacs from Mr. Gupta of M/s Vandana Investments were purchased by Mr. Gupta for Sanjiv Kumar and that he knew this fact.

He further deposed that the reference of accused Sanjiv Kumar in this dealing of shares between him and M/s. Vandana Investments came up when incidentally the Witness met Mr. Gupta at the residence of accused Sanjiv Kumar, both of whom were furnishing the guarantee of accused Sanjiv Kumar as there was a deadlock as to whether the shares have to be transferred first or the payment will made first.

The Witness further stated that he was not aware whether accused Sanjiv Kumar had any Demat account as he never had any financial dealing with him and that he was in touch with accused Sanjiv Kumar for one or two years from the date of his first meeting with the accused. Witness clarified that there was no transaction with M/s. Vandana Investments after completion of this transaction. Witness did not recollect whether he had any dealing with M/s. Vandana Investments prior to this transaction. He denied that he had been won over by the accused or that he was not stating the truth under the pressure of accused persons.

The Witness was not cross-examined on behalf of the defense.

50. PW 26 Sh. Surjeet Chopra: Was witness from the Syndicate Bank, Khan Market Branch, N. Delhi. He had handed over to the CBI, statement of account (proved as) Ex. PW26/A in respect of a/c no. 90432010057525 in the name of Ms. Abha Sinha for the period 1.6.2004 to 31.1.2005 in which, as on 31.1.2005, there was a credit balance of Rs. 1393.36.

The Witness was not cross-examined on behalf of the defense.

51. PW 27 Sh. Anil Kumar: Was earlier working as a clerk in Hope Apartments Society, Sector 15-II, Gurgaon. He used to maintain record of the Society's maintenance charge collections from the residents. Witness proved as Ex. PW27/A the statement of maintenance charges from June 1996 to Dec. 2003 in respect of Flat No. 15 Hope Apartments which was in the name of Sh. Sanjiv Kumar. This statement was prepared by the Witness on the basis of record available in the office of society.

In his cross-examination, PW 27 deposed that he was not aware that till the control of the flats were handed over to the Society, the maintenance was done by the development authority. The Witness further deposed that as per statement Ex. PW27/A (in file D-12), during the period May 2000 to December 2003, the payment towards maintenance charges were made to the society by different persons. Witness clarified that the name of owner is changed only after the flat is transferred through instruments of transfer of property. The Witness admitted that maintenance charges are levied and have to be paid by the occupants of the flats though receipt is issued in the name of the owner.

52. PW 28 Sh. R. K. Shrivastava: He was working in CFSL as Sr. Scientific Officer and deposed regarding forensic examination of five sealed parcels which were received from the CBI through forwarding letter (proved as) Ex. PW28/A. The parcels contained two CPUs, six CDs, two hard disks and one power book (laptop). The power book was returned unexamined due to technical reasons but the rest of the exhibits were examined by him. He conducted forensic examination using Encase Forensic Software on all the exhibits to retrieve the data. He detached the two hard disks installed

inside the two CPUs and marked them as Q1 and Q5, and the two hard disks received separately were marked as Q2 and Q4. The two CPUs were marked as Exh□ and Exh□5. The six CDs were marked as CD□ (Exh□

1) to CD□6 (Exh□) respectively. The forensic images of hard disks Q1 and Q2 were prepared in the laboratory and were marked as IQ1, IQ2 and IQ4 respectively. Hard disk Q5 was examined in write blocking mode as its forensic image could not be prepared on account of bad sectors in the hard disc or corrupted data. On the basis of forensic images of hard disks, the data was retrieved and transferred on a CD in corresponding folders and marked as Annexure I to his report. The report prepared by him running into four pages was forwarded by him on 10.2.2006 along with sealed exhibits. Witness proved photo copy of his report as Ex. PW28/B. PW 28 was not cross examined by the defense.

53. PW 29 Sh. Hemender Kumar: Witness was summoned to prove foreign currency purchase transactions by A□3 and A□4. He was working as Area Manager in M/s PheroZFramroz & Company Pvt Ltd. Witness proved as Ex. PW29/A, Receipt No. 6010 dated 19.7.2001 which was issued by his company in the name of Sh. Maheshwar Kumar who had purchased foreign currency of 500 British Pounds and 200 US Dollars and paid a sum of Rs. 43,627.65 in cash. Witness further proved as Ex. PW29/B, Receipt No. 6009 dt. 19.7.2001 was also was issued by his company in the name of Mrs. Kanak Lata who had purchased foreign Currency of 300 British Pounds and 500 US Dollars and paid a sum of Rs. 44,417.65 in cash.

In cross□examination, PW 29 clarified that the receipts Ex. PW29/A and Ex. PW29/B were not signed by him but by cashier Santosh Tiwari. The Witness denied that receipts Ex. PW29/A and Ex. PW29/B were authenticated by him at the instance of CBI without verifying the company's record.

54. PW 30 Sh. R. K. Singh: Was Nodal Officer with M/s Bharti Airtel Ltd. and was summoned to prove subscriber details of certain mobile numbers. He deposed that Letter dated 26.6.07 (proved as) Ex. PW30/A was written by him in response to the queries made by CBI in respect of subscriber details of 10 mobile phone numbers for the period 1998 to 2001. He had provided subscriber details in respect of three mobile numbers i.e. 9810235130, 9810044148 and 9810336722. No details in respect of mobile no. 9818301800, 9810167193 and 9810143777 were available in the system for the said period and as such no details were provided to CBI. The Mobile nos. 9812034121 and 9812031121 were not of Bharti Airtel Ltd and belonged to Idea, Haryana, and mobile no. 9814006874 was also not of Bharti Airtel but was of M/s Spice, Punjab.

PW 30 was not cross□examinated on behalf of the defense.

55. PW 31 Sh. Shekhar Chandra: Witness was from Canara Bank, Panipat, Haryana and was summoned to prove statement of account (proved as) Ex. PW31/A in respect of account no. 6765 in the name of Sanjiv Kumar, for the period 25.9.95 to 30.3.2003. As per this statement, there was a credit balance of Rs. 102 as on 1.4.1996 and there was 'Nil' balance in the account as on 30.3.2003.

PW 31 was not cross□examinated on behalf of the defense.

56. PW 32 Sh. Mukesh Mishra: Was summoned from BSES Rajdhani Power Limited and was posted at Vasant Kunj Office of the company as Commercial Officer. The issuance of bills and receipt of payments used to be under his supervision. Vide letter dt. 2.3.2007 (proved as) Ex. PW32/A, Witness had submitted to CBI the details of payments made in respect of flat nos. 6357 and 6360, Pocket C, Vasant Kunj, N. Delhi for the period November 2000 to February 2005. The details of the payments were proved as Ex. PW32/B1 to PW32/B8.

In cross-examination, PW 32 admitted that except statements Ex. PW32/B1 and Ex. PW32/B5, others were computer generated statements and that he had not given any certificate as to their authenticity. The Witness deposed that he had not brought the record from which these statements were prepared and also was not aware as to who actually had paid those electricity charges.

57. PW 33 Dr. Krishna Pratap Singh: Witness was a private practicing doctor from Dhanbad and was summoned to prove his professional relationship with A3 Dr. Maheshwar. He deposed that he was running a six bedded polyclinic with facilities for minor operations. He knew Dr. Mahesh Kumar who was also having his own private clinic at his residence. Witness stated that Dr. Maheshwar Kumar used to occasionally refer patients to his clinic of which he used to maintain the records. Dr. Maheshwar Kumar used to conduct minor operations in his clinic of the patients referred by him. Witness clarified that there was no facility of any major operation in his clinic. Vide Ex. PW33/A1 to Ex. PW33/A13, he had handed over to CBI photocopy of the record maintained by him highlighting the patients referred to him by Dr. Maheshwar Kumar.

In cross-examination, PW 33 deposed that Ex. PW33/A1 to Ex. PW33/A13 (D68) were the photocopies of Admission Register. The Witness clarified that D/A stands for "Date of Admission" whereas D/O stands for Date of Discharge. The witness admitted that his statement was recorded by the CBI in which he stated that he knew Dr. Maheshwar Kumar for 67 years. The Witness deposed in a contradictory manner about his acquaintance with Dr. M. Kumar. He denied stating before the CBI officer about his acquaintance with Dr. Maheshwar Kumar for the last about 67 years since he started the clinic only in the year 2002. He also deposed that he knew Dr. M. Kumar during his internship days when Dr. M. Kumar was Medical Supdt. Of Railway Hospital, Dhanbad. The Witness also deposed that he had heard about Dr. Maheshwar Kumar referring the patients for major surgery to M/s. Pandit Clinic where he (Dr. Maheshwar) used to perform major surgeries. However, the witness stated that neither had he seen Dr. Maheshwar performing major surgeries in M/s. Pandit Clinic nor had any knowledge about any fee charged by Dr. Maheshwar. The Witness denied that Dr. Maheshwar used to regularly refer the patients to his clinic and also regularly performed minor surgeries in his clinic.

58. PW 34 Sh. Radhe Shyam: Witness was from Chanakyapuri office of Mahanagar Telephone Nigam Ltd. The details of payment in respect of telephone No. 26123864 installed in the name of Dr. Rajiv Kumar was proved as Ex. PW34/A and the details of payment in respect of telephone no. 26123876 installed in the name of Dr. Maheshwar Kumar was proved as Ex. PW34/B. As per details of Ex. PW34/A, total payment of Rs. 38,052/- was received by the MTNL for the period 30.4.2001 to 20.1.2005 and as per details of Ex. PW34/B, total payment of Rs. 35,214/- was received by MTNL for the period 24.4.2001 to 28.1.2005.

In cross-examination, PW34 deposed that from the details contained in Ex. PW34/A and Ex. PW34/B (file D-62), he could not state as to who actually had made the payment. However, as per practice, anyone could make the payment at the counters but the same are always made on behalf of the subscriber of the telephone.

59. PW 35 Sh. Rajpal: Witness was an agriculturist of Village Dhumspur and was co-owner of agricultural land in village Dhumuspur along with his brothers Hans Raj, Gaje Singh, Dharambir and Sh. Balraj. He deposed that vide sale deed proved as Ex. PW10/A, they had sold their land through Sh. Jagat Singh, Sh. Dewan Chand, Sh. Rampat and Sh. Phire. Witness further deposed that the sale deed was executed in favour of a lady who was either the mother or wife of the Dy. Commissioner. The land was sold for Rs. 12 to 12.5 lacs and the entire payment was made in cash. However, witness did not know as to how much amount was mentioned in the sale deed. Witness clarified that photograph at point 'B' was already affixed on the sale deed Ex. PW10/A when the same was brought before them for signature and further that the stamps for execution of sale deed was purchased by the buyer.

In cross-examination, PW 35 deposed that he had gone to the office of CBI only once along with his brothers. He further stated that the CBI made inquiries from him only once but did not know whether his statement was recorded or not. The Witness further deposed that he had not told the CBI officer that the land was sold for about Rs. 4 to 5 lacs, and voluntarily stated that he had told the CBI officer that the land was sold for Rs. 12 to 12.5 lacs. The Witness also deposed that he could not say whether he had stated to the CBI in his statement recorded on 16.5.2005 that the land was sold between Rs. 4 to 5 lacs. The Witness stated that Indira Vikas Patra were purchased from his share of the sale consideration amount and subsequently, the land was purchased after 2-3 years after encashing the Indira Vikas Patra.

60. PW 36 Sh. Hansraj: This witness was also a co-owner of the 1 acre land situated in Village Dhumaspur which was sold by him along with his brothers Rajpal, Gaje Singh, Balraj and Dharambir to A-4 Kanak Lata. Witness stated that the land was sold for Rs. 12.50 lacs to a lady through the dealers Sh. Rampat, Sh. Phire, Sh. Diwan Chand and Sh. Jagat Singh. Witness identified his photograph on Sale deed Ex. PW10/A and also the photographs of his brothers at point A. He also identified the photograph at point B to be of that lady in whose name the land was registered. Witness asserted that the sale consideration of Rs. 12.50 lac was paid in cash.

In cross-examination, PW 36 deposed that he had visited the office of CBI once when he was shown Ex. PW10/A when the CBI officer made inquiries from him but could not recollect whether his statement was recorded or not. The Witness deposed that though some writing work was done by the CBI Officer while asking questions from him but he was not aware about the same. The Witness also deposed that he purchased Kisan Vikas Patra from the money which he received as his share out of the total sale consideration and later on the proceeds of said Kisan Vikas Patra were used in the construction of the house. The Witness denied that he had stated the amount of Rs. 12.50 lacs as sale consideration at the asking of the CBI, voluntarily stating that 'that much amount was received by him'.

61. PW 37 Sh. Narender Singh Kadyan: Was a Revenue Official in Haryana and at the relevant time was working as Tehsildar Cum Registrar in Gurgaon. Vide seizure memo dated 23.11.2007 which was proved as Ex. PW37/A, witness had handed over to CBI copy of document no. 3265 dated 3.6.97 which was Ex. PW10/A i.e. sale deed of Dhumaspur property.

PW 37 was not cross examined on behalf of the defense.

62. PW 38 Sh. Lal Singh: Was Witness to the search/raid conducted at the residence of accused Sanjiv Kumar. He deposed that in the year 2005, he was posted in Sales Tax Department as Statistical Assistant. On 17.2.2005 he had visited the CBI office at about 5.00 am and then accompanied the CBI team to Vasant Kunj for conducting search of a flat. The occupant of the flat was available and his name was Sanjiv Kumar but was not able to identify Sanjiv Kumar in court due to lapse of time. The search continued till 4.00 PM. Thereafter, search list Ex. PW38/A was prepared which had his signatures at point 'A'.

In cross examination, PW 38 deposed that the CBI had not called him directly on phone, voluntarily stating that the CBI had requested his superiors in the office where after he was deputed to visit the office of CBI by giving a written order. The Witness further deposed that as a token of his having visited the office of CBI, his signatures were obtained in the CBI office but could not recollect whether his signatures were taken in a register at the entry gate or at some other place. The Witness also could not recollect as to with whom had he met in the office of CBI. PW stated that neither had he gone through the search list (proved as) Ex. PW38/A (in file D-36) before signing the same nor noticed the serial number of the items mentioned therein. The Witness however denied that he was not present with the search team.

63. PW 39 Sh. B. B. Malhotra: Was also a witness to the search carried out at the premises of accused Sanjiv. He deposed that in February 2005, he was posted as JE in Dwarka Zone of DDA. On 17.2.2005 he had visited the CBI office on the instructions of his superior, early in the morning. From the CBI office, the CBI team went to Vasant Kunj and conducted search of a residential flat. He did not know the name of the occupant of the flat who was present there nor could he recognize him due to lapse of time. The search continued till late afternoon. The Witness further deposed that the search list (proved as) Ex. PW38/A was prepared at the flat itself which bore his signatures at point B. In cross examination, PW 39 deposed that he could not recollect about the number of members in the search team and was not aware about the name of the CBI officer, heading the search team. The Witness also deposed that though he had seen the sealed packets at the time of signing the search list but had not seen the contents of the said packets. The Witness denied that he only had seen the process of sealing. He remained present on the ground floor and was relieved from the spot itself. The Witness denied that all the 35 items mentioned in the search list were not seized from the flat and that some of the items were taken by the CBI officers from their side and implanted in the recovery during the search. The Witness could not tell as to how many entry and exit gates were there in the flat and admitted that from the place where he was sitting on the ground floor of the flat, it was not possible to see all the entry and exits of the flat.

64. PW 40 Seema Malhotra: Was a very crucial witness for the prosecution to prove one of the major limbs of prosecution allegation which was that accused Abha had deposited Rs. 75 lacs with Cosmos Investments for dabbling in share trading. This witness deposed that she had worked with M/s Cosmos Management Service Pvt Ltd., Khan Market from 1998 to 2007. This company was dealing in financial investments and instruments and sale and purchase of shares as a sub-broker. She was one of the Directors of M/s Cosmos Management Service Pvt Ltd. from the date of her joining. The company was working under the supervision of Sh. J. L. Malhotra who was a Chartered Accountant by profession.

She further deposed that Sh. Devender Kumar Sharma was an accountant in the company and she could identify his writing and signature as he was working under her. It was further deposed by her that for individual client registration, a form is required to be filled up by the person concerned who used to get his signature verified from the bank in which he maintained his account. The photograph of the person concerned also used to be affixed on the client registration form. Whenever any client used to hand over cash towards the purchase price of shares or as margin money, it used to be accepted by Sh. Davender Kumar or by her, against a proper receipt and the cash used to be handed over to Sh. J. L. Malhotra. She further testified that she knew Abha Sinha through Tika Mustafa, who was a walk-in client and who got registered himself with the company and later on introduced his wife Sabiha Mustafa and Abha Sinha who were also registered as clients of the company.

This witness then deposed that somewhere in 2005, CBI conducted search in their office and seized certain documents through a search list, a copy of which was handed over to her against receipt. She proved the client registration form of Sh. Tika Mustafa with his photograph and signature duly verified by the bank as Ex. PW40/A1 but the form did not bear signature of anyone from her company. She similarly proved the client registration of Abha Sinha as Ex. PW40/A2 and that of Sabiha Mustafa as Ex. PW40/A3.

She also deposed that subsequently, CBI asked for certain documents which were forwarded to CBI vide forwarding letter dated 19.2.2005 (proved as) Ex. PW40/B, under her signature. She also stated that she had forwarded the acknowledgment portion of the receipt book from Serial No. 101 to 200. Witness then proved each of the receipts issued in the name of Abha Sinha □

1. Receipt No. 156 dt. 5.1.2000 Ex. PW40/C1 for Rs. 04 lac paid in cash, in the name of Smt. Abha Sinha.
2. Receipt No. 157 dt. 6.1.2000 Ex. PW40/C2 for Rs. 02 lac paid in cash, in the name of Smt. Abha Sinha.
3. Receipt No. 158 dt. 7.1.2000 Ex. PW40/C3 for Rs. 02 lac paid in cash, in the name of Smt. Abha Sinha.
4. Receipt No. 161 dt. 10.1.2000 Ex. PW40/C4 for Rs. 4,50,000 paid in cash, in the name of Smt. Abha Sinha.

5. Receipt No.164 dt. 12.1.2000 Ex. PW40/C5 for Rs. 03 lac paid in cash, in the name of Smt. Abha Sinha.

6. Receipt No. 167 dt. 18.1.2000 Ex. PW40/C6 for Rs. 05 lac paid in cash, in the name of Smt. Abha Sinha.

7. Receipt No. 169 dt. 19.1.2000 Ex. PW40/C7 for Rs. 4,50,000/- paid in cash, in the name of Smt. Abha Sinha.

8. Receipt No. 198 dt.13.3.2000 Ex. PW40/C8, for Rs. 05 lac paid by cheque, in the name of Smt. Abha Sinha.

Witness deposed that signature of the person in whose name receipt had been issued was available on the back of the receipt.

She further deposed that she had also forwarded an analytical statement for the year 1999-2000 Ex. PW40/D1 running into five pages and for the year 2000-2001 Ex. PW40/D2 running into 10 pages reflecting the amounts received from and paid to Smt. Abha Sinha during this period. Vide seizure memo proved as Ex. PW40/DE, she had handed over to the CBI, difference bills in respect of shares traded in futures running into 101 pages for the period 30.4.2000 to 30.9.2000 which were proved as Ex. PW40/E1 (in file D-67) and highlighted that at Page No. 1 and 3 of Ex. PW40/E1, the signature of Smt. Abha Sinha appear at point 'A'. She also deposed that during the search, certain receipt books for the receipts from Sr. No. 301 to 400 and from Sr. No. 401 to 500 were also seized by CBI vide search list dated 17.2.2005. Witness further proved certain more receipts issued in the name of Abha Sinha □

1. Receipt No. 305 dt. 24.3.2000 Ex. PW40/C9 for Rs. 04 lac paid in cash, in the name of Smt. Abha Sinha.

2. Receipt No. 306 dt. 24.3.2000 Ex. PW40/C10 for Rs.1 lac paid through cheque, in the name of Smt. Abha Sinha.

3. Receipt No. 309 dt. 25.3.2000 Ex. PW40/C11 for Rs. 11 lac paid in cash, in the name of Smt. Abha Sinha.

4. Receipt No. 411 dt. 28.4.2000 Ex. PW40/C12 for Rs. 05 lac paid in cash, in the name of Smt. Abha Sinha.

5. Receipt No. 416 dt. 04.5.2000 Ex. PW40/C13 for Rs. 02 lac paid in cash, in the name of Smt. Abha Sinha.

6. Receipt No. 417 dt. 06.5.2000 Ex. PW40/C14 for Rs. 02 lac paid in cash, in the name of Smt. Abha Sinha.

7. Receipt No. 420 dt. 15.5.2000 Ex. PW40/C15 for Rs. 01 lac paid in cash, in the name of Smt. Abha Sinha.
8. Receipt No. 421 dt. 16.5.2000 Ex. PW40/C16 for Rs. 02 lac paid in cash, in the name of Smt. Abha Sinha.
9. Receipt No. 423 dt. 18.5.2000 Ex. PW40/C17 for Rs. 02 lac paid in cash, in the name of Smt. Abha Sinha.
10. Receipt No. 429 dt. 29.5.2000 Ex. PW40/C18 for Rs. 03 lac paid in cash, in the name of Smt. Abha Sinha.
11. Receipt No. 443 dt. 23.6.2000 Ex. PW40/C19, for Rs. 01 lac paid in cash, in the name of Smt. Abha Sinha.
12. Receipt No. 444 dt. 27.6.2000 Ex. PW40/C20 for Rs. 02 lac paid in cash, in the name of Smt. Abha Sinha.
13. Receipt No. 447 dt. 12.7.2000 Ex. PW40/C21 for Rs. 01 lac paid in cash, in the name of Smt. Abha Sinha.
14. Receipt No. 455 dt. 20.7.2000 Ex. PW40/C22 for Rs. 01 lac paid in cash, in the name of Smt. Abha Sinha.

PW40 further deposed that through these receipts, total of Rs. 68 lac was paid by Smt. Abha Sinha. A further sum of Rs. 07 lac was received in the account of Abha Sinha from Tika Mustafa through transfer and Abha Sinha was paid back Rs. 06 lac through cheque. Thus, a total sum of Rs. 69 lacs was paid by Smt. Abha Sinha after adjusting total amount received and paid back as reflected in the analytical statement Ex. PW40/D□. She also deposed that during the search, a delivery instruction book relating to Demat account of their company maintained with M/s Abhipra Capital Limited was also seized by the CBI and through which the shares in Demat account of their company used to be transferred to the accounts of the clients of their company. The delivery instruction slips proved as Ex. PW40/F1 to Ex. PW40/F4 dated 28.2.2001 were signed by her and through these slips the shares mentioned therein were transferred in the account with client ID No. 10994415. She clarified that the slips were issued as per the instructions of Sh. J. L. Malhotra.

She further deposed that during the search CBI had also seized two Client Ledgers mentioned at Sr. No. 6 & 7 of the search list dated 17.2.2005. In the client registers, the record of shares transferred through the delivery instruction slips used to be maintained with the name of the client. The account of Smt. Abha Sinha was proved as Ex. PW40/G1 (in file D□75A) and Ex. PW40/G2. During the search, CBI also seized Party Ledger Computer print running into five pages proved as Ex. PW40/H1 to Ex. PW40/H5 in the name of Abha Sinha for the period 4.12.1999 to 31.3.2000. Witness also stated about seizure by the CBI of Party Ledger Computer print running into 11 pages proved as Ex. PW40/H6 to Ex. PW40/H16 in the name of M/s AVI Capital Service Pvt Ltd for the

period 01.4.2000 to 27.2.2001. She further proved the two cheques as Ex. PW40/J1 and Ex. PW40/J2 through which the payment was made vide receipt Ex. PW10/C8 and Ex. PW40/C10 respectively.

In cross-examination, PW 40 deposed that she had appeared as a witness before a Court at Chandigarh where accused Sanjiv Kumar was also present, certified copy of which running into 5 pages (was proved as) Ex. PW40/A1/DA. The Witness admitted that she was having 5% shares in M/s. Cosmos Investments and her duty was to interact with the clients and to facilitate them in trading. The Witness deposed that the finalization of any account after trading of the day was being dealt with by Sh. J.L. Malhotra for which the clients used to directly interact with Sh. Malhotra who was keeping all the records relating to trading, accounts and final settlement. The Witness also deposed that she and other official of the accounts branch were only receiving the cash or cheques and issued receipts, and that they did not know the other details of the transaction. The Witness admitted that usually a person is not allowed to trade in the name of other without him having specific authorization to that effect. The Witness deposed that she was not in a position to state if Tika Mustafa had given any authorization in favour of accused Abha Sinha for trading on his behalf whereafter the Witness was shown a document Ex. PW40/A1/DB after which the Witness stated that it might be the authorization. At this stage of cross-examination, a Court observation was recorded to the effect that the letter was not containing the seal of M/s. Cosmos nor signature of anyone from M/s. Cosmos as a token of having received it in M/s. Cosmos. The Witness then deposed that whenever payments in cash were received either through accused Abha Sinha or through somebody else, it used to be verified the next day from Shri T. Mustafa and then Abha's signatures used to be obtained on the receipts. PW stated that accused Abha had once or twice come to deposit the cash/cheque in the company.

The Witness further deposed that some of the shares of M/s. Morgan Stanley sold by Sh. Tika Mustafa resulted in 'bad delivery twice' on which account there was some dispute between Sh. Mustafa and J.L. Malhotra whereupon the shares bought were accumulated and were to be transferred vide delivery instruction slips as per the instructions received by her from Shri Malhotra. The Witness also deposed that she had stated before the Court at Chandigarh that authorization was given by Sh. Tikka to accused Abha Sinha for the transfer of the shares which was kept in safe custody by Shri Malhotra and was not traceable. The Witness clarified that while shifting the office from 3A Khan Market to 48 Khan Market, some of the documents were got misplaced and that while forwarding certain documents to the CBI, it was mentioned that the documents had been misplaced while shifting and that efforts were going on to trace the same.

The Witness explained her ignorance as to who were the Directors in M/s. Abhipra Capitals. PW also deposed that separate 'machines' used to be maintained for daily trading activity which were recorded therein immediately when the transaction was done. She deposed that print out of the sheets collectively (proved as) Ex. PW40/E1 were taken out by the person managing the computer system, and that if any dividend was paid or bonus shares issued in the name of accused Abha Sinha, the same would be there in the statement of the account. The Witness deposed that she did not have any personal knowledge about any such payment or issuance of bonus shares to accused Abha Sinha.

65. PW 41 Sh. Subhash Chander Gupta: Was another crucial witness since the entire alleged money trail of Rs. 2.51 crores to link up accused Sanjiv circled around this witness. However, this witness turned hostile at the outset. He deposed that he did not know Sanjiv Kumar. He admitted to have gone to the CBI office after searches were conducted at his residence A-96, Shyam Park Extn, Sahibabad, Ghaziabad somewhere in yr. 2005-2006. Witness further deposed that once he was told by Tika Hassan Mustafa that he i.e. PW 41, had to do some work for Sanjiv Kumar but he was never introduced to said Sanjiv Kumar. He further clarified that accused Sanjiv Kumar was not the same Sanjiv Kumar for whom Tika Hasan had asked him to work. He denied knowing any person named Abha Kumar though he admitted that the name of Abha Kumar was mentioned in the documents which were maintained in his office. Witness sought to clarify that Tika Hasan Mustafa had given him certain names including the name of Sanjiv Kumar and Abha Kumar and asked him to do the work of sale and purchase of shares for forward trading in their names stating that they were very big persons and if at all any difficulty arose, they will sort it out. He had visited the CBI office several times but did not remember the dates of his visit and further admitted that his statement was recorded by CBI but could not confirm as to whether his statement was recorded on 19.2.2005 and 3.1.2008. Witness further admitted that he had received cash and cheques on various occasions from Tika Hasan Mustafa in the name of Sanjiv Kumar. However, he could not remember the names in which the shares used to be purchased and sold at the instance of Tika Hasan Mustafa. This witness was declared hostile by Ld. PP.

In cross-examination conducted by Ld. PP, witness admitted that file (proved as) Ex. PW41/Z was taken by the CBI at the time of raid at his residence. He further admitted that documents Ex. PW41/A1 to Ex. PW41/A4 (file D-50) were in his hand writing but the details stated therein were mentioned at the instance of Tika Hassan. He denied that the amounts mentioned in Ex. PW41/A1 to PW41/A3 were given to him by Abha Kumar, Arun Sharma and Sanjiv Kumar. PW 41 asserted that all the amounts had been received from Tika Hasan and as per the instructions of Tika Hasan Mustafa, had reflected the same in different names. Witness also admitted that the List of forwarding trading in shares (proved as) Ex. PW41/A6 was in his hand writing wherein the name of Abha Kumar was mentioned but witness clarified that it was as per the instructions of Tika Hasan. Witness further admitted that name of Abha was mentioned in the list Ex. PW41/A7.

PW 41 admitted ownership of M/s Vandana Investments and further that the computer generated sheets (proved as) Ex. PW41/A8 to Ex. PW41/A22 from the computer installed in the o/o Vandana Investments relates to 'difference' resulting from forward trading of shares in the account of Abha. In regard to Ram Avtar Aggarwal PW 25, PW 41 deposed that he was sent to his office by Tika Hasan Mustafa and that all the shares of Tika Hasan were transferred in Ram A. Aggarwal's account when dealings with Tika Hasan ended.

Witness further admitted ownership of M/s AVI Capital Services Pvt Ltd. He also admitted that 3 Letters dated 19.2.2001 (proved as) Ex. PW41/B1 to Ex. PW41/B3 (in file D-35) and two letters dt. 26.12.2000 (proved as) Ex. PW41/B4 and Ex. PW41/B5 (in file D-35) were written by him to M/s Cosmos Management Services Pvt Ltd. PW 41 accepted that 'Forward Trade Register' (proved as Ex. PW41/C [file D-78]) was seized by the CBI vide production cum seizure memo dt 8.5.2007 (Ex. PW41/C) and that the entries in this register were in his hand writing. Witness further deposed that

the computer generated sheets from page no. 38 to 55 of the 'Daily Sauda Register' for the period 20.8.99 to 24.11.99 and computer generated sheets from page no. 17 to 37 of list of debtors/creditors of his company (proved as) Ex. PW41/D(colly) were seized by CBI from his office.

PW 41 admitted to have issued five drafts, each for Rs. 50,000/- in the name of K. K. Lal vide draft issuance applications forms (proved as) Ex. PW41/E1 to PW41/E5. The drafts were separately proved as Ex. PW41/E6 to Ex. PW41/E10. However, witness denied knowing any person by the name of K. K. Lal. He did not remember as to in what context these drafts were got prepared. He denied that these drafts were prepared on the instructions of Sanjiv Kumar but did not remember as to on whose instructions did he get the drafts prepared.

In his cross-examination conducted on behalf of all the accused persons, PW41 admitted that as per the instructions of Shri Tikka Hassan Mustafa, M/s. Cosmos Management transferred the shares to his firm M/s. AVI Capital Services.

It needs a highlight here that an application under Section 311 Cr.PC moved by A/c Sanjiv Kumar for further cross-examination of PW41 was allowed by Id. Predecessor vide order dated 15.11.2019 whereafter PW41 Subhash Chander Gupta was again summoned for his cross-examination by accused Sanjiv Kumar. The background to this application was that at the stage of final arguments way back in 2017, Prosecution moved an application seeking to examine 2 witnesses - RK Sharma and Devender Kumar. The application qua RK Sharma was allowed. In his chief-testimony RK Sharma claimed to have paid close to Rs. 90 lacs to SC Gupta as bribe money share of accused Sanjiv. Consequently, it was only logical that SC Gupta had to be summoned again since accused Sanjiv had to clear the air generated by RK Sharma's hugely belated testimony. It needs a highlight that accused Sanjiv also went against the order of Id. Predecessor before the Hon'ble High Court of Delhi highlighting that RK Sharma had already deposed against accused Sanjiv in another CBI investigated trial regarding the same issue of alleged bribe money but had been found to be completely without credibility by the concerned special court at Chandigarh, but before the matter could be taken up on merit by the Hon'ble High Court, RK Sharma completed his testimony as PW 47.

In further cross-examination of PW 41 conducted on 13.2.2020, Witness deposed that he could not recollect if he had stated in his previous statement which was recorded on 24.2.2015 about him not knowing any person by the name R.K. Sharma. Witness also stated that except for M/s. Vandana Investments he had no other firm. Witness admitted that he was also summoned as a prosecution witness in a case before Special Judge, CBI, Chandigarh where he had deposed about one R.K. Sharma. The Witness deposed that in his statement recorded before the Special CBI Court at Chandigarh, he had stated that he knew R.K. Sharma who used to trade in the share market individually in his own account. The witness was shown copy of his deposition dated 24.2.2015 recorded before this Court in which he had stated that he did not know any R.K. Sharma whereas in his deposition recorded before the Special CBI Court, Chandigarh, he had stated that he knew R.K. Sharma whereupon the Witness was asked as to which of his statement is correct to which the Witness responded that his statement recorded before Special Judge, CBI, Chandigarh was correct.

The Witness was further asked that why did he depose before this Court that he did not know any R.K. Sharma to which the Witness replied that since he was being repeatedly asked if he knew Sanjiv Kumar and whether he knew 'that Sanjiv Kumar who used to give money to R.K. Sharma' in which context, he had stated that he did not know any R.K. Sharma who was being given money by Sanjiv Kumar. Further, on being asked as to whether he was collecting the cash personally by visiting the clients, the witness replied in negative stating that since he was a chronic patient of arthritis, the cash used to handed over either by the clients themselves in his office or through any of their authorized persons.

66. PW 42 Sh. Pankaj Chaturvedi: Was a witness summoned from Ansal Properties and Infrastructure to prove the allotment of plot in the name of accused Kanak Lata in Sushant Lok. Vide seizure memo dated 7.9.2007 (proved as) Ex. PW42/A, witness had handed over to the Investigating Officer application form no. 4738 and 4346 which were proved as Ex. PW42/2 and Ex. 42/3. Witness deposed that Application form Ex. PW42/2 was in the name of Mrs. Kanak Lata, Mrs. Abha Kumar, Sanjiv Kumar and Miss Snigdha Kumar for allotment of plot No. B□02, Sushant Lok, Phase□, and application form Ex. PW42/3 was in the name of Mrs. Kanak Lata, Dr. M. Kumar and Miss Snigdha Kumar for allotment of Plot in Sushant Lok, Phase□. As per his knowledge, no allotment was made pursuant to Ex. PW42/3. The documents Ex. PW42/2 and Ex. PW42/3 were handed over by him to CBI on the instructions of Sh. P. L. Mandola vide letter dt. 6.9.07 which letter was proved as Ex. PW42/4.

In cross□examination, PW 42 admitted that the company allots the plots only to the persons whose names have been mentioned in the application form. The Witness admitted that in document Ex. PW42/A1, which is a plot buyer agreement in regard to plot No. 103, Sushant Lok, Phase I, buyers were stated to be Kanak Lata, Dr. M. Kumar and Snigdha Kumar which plot was not allotted to the applicants on the basis of application form Ex. PW42/2. Witness further stated that it might be possible that afterwards the applicant may have come to the office and had requested for allotment to be done in favour of a new person for whom form Ex. PW42/3 was filled up and signed. After confronting the Witness with the two receipts (proved as) Ex. PW42/A2 and Ex. PW42/A3 (in file D□38) issued in the name of Kanak Lata, he was asked if he could state that payment was made only by Kanak Lata or by all the co□owners to which the Witness expressed his inability to reply.

67. PW 43 Sh. Kanwaljit Singh: Deposed that he was working as Sr. Manager in Jharsa Branch of Gurgaon Grameen Bank. He had delivered certain original documents to CBI vide letter marked as PW43/A. The documents which he had handed over through letter marked PW43/A were transfer credit slip dated 21.2.2000 (proved as) Ex. PW43/1, cheque dt. 3.3.2000 of Gurgaon Grameen Bank of A/c no. 4967 for an amount of Rs. 05 lac in favour of Sanjiv Kumar (proved as) Ex. PW43/2, Cash deposit slip for an amount of Rs. 6,50,000/□deposited in the account of Hukam Singh on 29.5.2000 proved as Ex. PW43/3, Cash deposit slip dt. 30.5.2000 whereby an amount of Rs. 3,02,000 was deposited in the account of Hukam Chand (proved as) Ex. PW43/4, debit slip dated 31.5.2000 whereby a demand draft for an amount of Rs. 10,02,000/□was issued in favour of Sanjiv Kumar (proved as) Ex. PW43/5, withdrawal slip whereby an amount of Rs. 1,50,000/□was withdrawn from a/c no. 4967 on 17.10.2000 (proved as) Ex. PW43/6 and ledger folio for saving bank account no. 4967 from 18.5.90 to 14.8.2001 (proved as) Ex. PW43/7.

PW 43 was not cross-examined on behalf of the defense.

68. PW 44 Sh. Ram Nath Azad, retired Asst. Director, IPCC, CBI: He deposed that the present case was registered by the Branch SSP Sh. Harbhajan Ram vide FIR Ex. PW44/1 and the investigation was assigned to Sh. M. K. Bhatt, the then Addl. SP of the branch. In the year 2005, he was Addl. SP CBI AC Zone III, New Delhi and had assisted Sh. M. K. Bhatt in the investigation of this case. During this period, he had examined about 18 witnesses and collected documents vide seizure memo Ex. PW7/A dated 30.6.2006. He further deposed that he had also collected documents vide letter dated 30.5.2006 from Sub Registrar X, District South, West Delhi vide memo Ex. PW44/2. He also collected documents vide seizure memo proved as Ex. PW44/3 from Sh. R. C. Gupta, Asst. Director SFS (Housing) DDA, New Delhi and had conducted a search on 17.2.2005 at A-96, Shyam Park Extension, Sahibabad, Ghaziabad which belongs to Sh. Subhash Chander Gupta. He also deposed that during the period of investigation case diaries were prepared by him, the original of which was marked to the SSP and the carbon copy was given to the IO.

In cross-examination, PW44 deposed that so far he remembered, while conducting investigation of the present case, he had conducted search only at one premises of which the seizure/search memos were prepared at the spot after the raid/search. Since the independent witnesses involved in the search were arranged by the branch in-charge, hence he could not tell whether entry regarding the names and other particulars of the witnesses were made in any register. The Witness denied the suggestion that the final decision with regard to filing of charge-sheet was taken by the then Director, CBI. The Witness also denied that the investigating officer merely conducted a formality since the real decision in the present case was being taken by the Director of CBI. The Witness further denied having not examined any witness of the case or that he had not conducted any search in any premises during investigation of the present case.

69. PW 45 Sh. M. K. Bhatt, Retired SSP, CBI: He deposed that FIR of this case Ex. PW44/1 was registered by Mr. Harbhajan Ram SSP and as per endorsement No. 5, the investigation of the case was marked to him during the year 2005 when he was posted as Addl. SP CBI AC-II Branch, New Delhi. He further deposed that during the investigation he had recorded statement of about 24 witnesses, conducted searches and also collected/seized certain documents. He then deposed that vide search list Ex. PW38/A, he had conducted search at Flat No. 6360/6357, Sector C-6 and C-7, Vasant Kunj, New Delhi. He also deposed that vide receipt memo Ex. PW22/A dated 02.8.2005, he had collected some bank records from Sh. N. K. Raheja, Sr. Manager, Oriental Bank of Commerce Panchkula. He also deposed about seizure of documents from Oriental Bank of Commerce, Panchkula vide letter Ex. PW22/B. Vide letter Ex. PW45/1, he had received documents from Syndicate Bank, Khan Market, New Delhi and he had also received certain documents from Standard Chartered Bank, Sansad Marg Branch, New Delhi vide letter Mark PW45/A and Mark PW45/B. Similarly, vide letter Mark PW45/C he had received documents from Manager Customer Care, Citi Bank and vide letter Mark 43/A he had received some documents from Gurgaon Grameen Bank.

He further deposed that documents collected by him were deposited in the malkhana. He conducted the investigation of this case from 16.2.2005 till middle of November 2005. During the investigation

of this case he was assisted by Insp. B. S. Chauhan, Dy. SP R. N. Azad, DSP R. Singh and Insp. Dhiraj Kheterpal.

In cross-examination, PW 45 deposed that while investigation was being conducted by him, Ms. Sonali Mishra, SSP took over the charge of the Branch in April 2005. The Witness admitted that during his investigation, after writing the case diary, original of the same used to be submitted to SSP/Branch In-charge and that a carbon copy of the same used to be kept by him. Witness explained that after registration of the case, line of action/points to be investigated were proposed by the investigating officer which were approved by the branch in-charge/SSP. The Witness also deposed that during investigation, once the original case diary is submitted to the SSP, the same is not returned to the investigating officer. PW further stated that it is not necessary that before filing of the charge-sheet, the investigating officer has to take back the original case diary. The Witness denied that if the branch in-charge is inimical to the accused, he might make manipulation in the case diary without knowledge of the investigating officer. The Witness also denied that he had not conducted a fair investigation or that it was a motivated investigation under the directions of his superior i.e. SSP Harbhajan Ram.

70. PW 46 A. K. Pandey, Dy. SP CBI: He deposed that in the year 2005, he was posted as Inspector in AC III/ACU/IX Branch and had taken over the investigation of this case in August, 2006 from Sh. R. N. Azad, Addl. SP. During the investigation, he had examined around 35 to 40 witnesses and had taken over and seized number of documents details of which are as under:

1. Vide letter Ex. PW46/1 of State Bank of India, Dhanbad Branch, he had received statement of account of PPF account No. 1810 in the name of Abha Kumar for the period 14.2.1995 to 3.1.2007.
2. Vide letter Ex. PW46/2 of Chief Manager, State Bank of India, Dhanbad Branch he had received Statement of SB Account No.01190007742 for the period 20.1.2001 to December 2005.
3. Vide collection memo dated 17.3.2004 Ex. PW46/3 he had collected one correspondence file of flat No. 15, Floor No. IV, in the name of Sh. Sanjiv Kumar from Sh. Anil Kumar, Clerk, HOPE Co-operative Society, Sector 15, Part II, Gurgaon.
4. Vide letter dated 3.1.2008 Ex. PW46/4 he had collected vouchers sent by Chief Manager, Oriental Bank of commerce, Gurgaon.
5. Vide seizure memo dated 23.1.2008 Ex. PW46/5, he had seized original pay in slip dated 22.4.1998 of Oriental Bank of Commerce, New Rly. Road Branch, Gurgaon for Rs.8,91,396.25 deposited in SB account No. 16887 in the name of Abha Singh.
6. Vide seizure memo Ex. PW46/6, he had seized the original account opening form of A/c No. 7617 in the name of Sanjiv Kumar with Allahabad Bank, Panipat.

7. Vide letter Ex. PW46/7 of Allahabad Bank, GT Road, Panipat, he had received statement of Account of SB Account No. 7617 in the name of Sanjiv Kumar.

8. Vide letter Ex. PW46/8 of Infotec, he had received details of bonds held in the name of Sanjiv Kumar, Dr. Maheshwar Kumar and Kanak Lata in the public issue of ICICI Bank Ltd.

9. Vide production cum seizure memo Ex. PW46/9, he had seized some documents from Sh. Alok Kumar Kedia, Sr. Managar Allahabad Bank, Haripur Branch, Dhanbad.

10. Vide letter Ex. PW46/10, he had received statement of account of SB account No. 470 in the name of Kanak Lata and Dr. Maheshwar Kumar, account No. 3610 in the name of Sanjiv Kumar HUF, account no. 3638 in the name of Rajiv Kumar HUF, account No.3609 in the name of Kanak Lata and account No. 119 in the name of Abha Kumar.

11. Vide letter Ex. PW46/11 of ICICI Bank, he had received statement of account of A/c No. 000701228511 for the period 10.4.2004 to 20.2.2007 and link term deposit statement for the period 31.3.2004 to 2006 and another link term deposit statement as on 31.1.2006 for the period 1.4.2006 to 31.1.2007.

12. Vide seizure memo Ex. PW46/12, he had collected original application of membership no. 301 of Dr. Maheshwar Kumar/Kanak Lata mentioning address for communication c/o Sanjiv Kumar IAS C/6, 6360 Vasant Kunj, New Delhi, certified copy of ledger no. 301 in the name of Dr. M. Kumar and Smt. Kanak Lata and certified copy of possession letter dated 1.3.2003 in respect of flat No. B-2/301, Power Welfare Organization, Sector 43, Gurgaon.

13. Vide letter Ex. PW46/13, statement of account of Sanjiv Kumar from the date of opening of account till 16.2.2005 was sent to him by Vijaya Bank, Chandigarh.

14. Vide letter Ex. PW46/14 of Sr. Managar Allahabad Bank, Hirapur Branch, Dhanbad some information regarding DDs No. 10154 in the name of Kanak Lata and No. 10155 in the name of Sanjiv Kumar HUF was given.

15. Vide letter Ex. PW46/15 of Allahabad Bank, Hirapur Branch, Dhanbad, original account opening form of SB A/c No. 470 in the name of Dr. Maheshwar Kumar and Kanak Lata, original account opening form of A/c No. 3609 in the name of Dr. Maheshwar Kumar and Kanak Lata, another account opening form of account No. 3610 of Sanjiv Kumar (HUF), original account opening form of A/c No. 119 of Abha Sinha, original account form of DDP 11044 in the name of Dr. M. Kumar for Rs. 3,50,000, another DDP No. 11209 dated 3.10.2009 in the name of Dr. Mahesh Kumar for Rs. One Lac, another DDP No. 11188 dated 17.9.2009 in the name of Maheshwar Kumar for Rs.

59,742, another DDP No. 11232 dated 16.10.2002 in the name of Mrs. Kanak Lata for Rs. 1,50,000/□ and another DDP No. 297 dated 30.11.2002 in the name of Mrs. Kanak Lata for Rs. 50,000/□ were received.

16. Vide letter dated 7.9.2007 Ex. PW46/16, original documents pertaining to booking of plot by Mrs. Kanak Lata and Abha Sinha in Park Square, formerly known as Green Acre and Central Square, also formerly known as Techno Plaza at Kishan Ganj and Bara Hindu Rao were sent to him.

17. Vide letter dated 30.1.2007 of Dr. K. P. Singh, Physician and Surgeon, Dhanbad (proved as Ex. PW46/17) he had received the documents as requisitioned by him.

18. Vide production cum seizure memo, he had seized some documents from Sh. S. C. Gupta, A□6, Shyam Park Extn, Sahibabad, Ghaziabad.

19. Vide seizure memo Ex. PW46/18, he had seized some documents from Sh. Atul Gokhle, Asst. Manager IDBI Bank, Indian Red Cross Society Building, New Delhi.

20. Vide letter Ex. PW46/19 Manager, Customer Care, Citi Bank had sent to him one original application form of Credit Card number 5425568602050009 belonging to Sanjiv Kumar.

21. Vide letter Ex. PW46/20, Neetu Sharma of Indusind Bank Ltd, 28, Barakhamba Road had intimated regarding Subhash Chander Gupta holding DP A/c No. 10042744 which also contained holding statement of this account number as on 1.3.2007 and transaction statement from the opening of the account from 7.7.1998 to 6.1.2007.

PW 46 further deposed that documents which were collected by other IOs viz Sh. R. Singh Dy. SP, Insp. D. S. Chauhan and Dheeraj Kheterpal Insp were also taken over by him and investigation was conducted in respect to those documents also. He also deposed that documents as mentioned in the letter Ex. PW40/B addressed by Ms. Seema to Dheeraj Kheterpal were also considered by him during investigation. He further deposed that vide memo Ex. PW46/1 Sh. D. S. Chauhan, the then Inspector, CBI had collected the documents from Sh. Saurab Sodhi, Legal Executive, Pure Earth Infrastructure Ltd. After analyzing the evidence collected, he prepared the asset, income and expenditure chart of accused Sanjiv Kumar, Abha Kumar, Dr. Maheshwar Kumar and Smt. Kanak Lata. As per his investigation, assets of accused Sanjiv were of the value of Rs. 4,08,81,202 which was disproportionate to the extent of 570.15% to his known sources of income.

In cross□examination, PW 46 was shown file Ex.

PW46/D1 named as M 202/7/215/7 and M 217/7 and was asked if the said file was seized by him to which the witness, after going through the entire file, responded that the same was seized by him. Thereafter, PW46 was shown a document i.e. memorandum of partition from the file Ex. PW46/D1 from page Nos. 51 to 54 on which M 217/07 had been inscribed and was asked whether he had considered/examined this document during investigation to which the Witness replied that he could not recall whether he had considered/examined this document. The Witness also stated that he

could not recollect whether during investigation, vide page No. 51 to 54 of Ex. PW46/D1, he had come to know that after family partition, accused Sanji Kumar had got some agricultural land or that from that land, he used to have agricultural income. The Witness denied that during investigation, it had come to his knowledge that from the year 1978 to 1996 accused Sanjiv Kumar had an agricultural income of Rs. 8,60,000/-. The Witness was shown assessment order Ex. PW46/D2 of Asstt. Commissioner of Income Tax, District Patna dated 3.3.1993 for the year 1990-91 and was asked whether he had seized the said document during investigation to which the Witness replied in the affirmative but clarified that he had not considered/examined the same. He denied that he had concealed the income prior to the check period. The Witness also denied that during investigation, he had been informed that from a property at 438/B, Boring Canal Road, Patna, accused Dr. M. Kumar was receiving monthly rental income of Rs. 4250/- and Rs. 5000/- for different floors of the said property from the year 1982 to 1997. PW 46 further denied that during investigation, he was provided copy of rent receipts Mark PW46/DA and DB. The Witness clarified that he had never gone to the house at Boring Canal Road, Patna for verifying the ownership or the occupancy or the tenancy or to have it investigated through somebody else.

The Witness was shown seizure memo dated 20.12.2007 Ex. PW46/D3 which the Witness admitted vide which he had seized photocopy of general power of attorney marked by the witness as 1818/07, and which was marked before the court as Mark PW46/DC. The Witness admitted that as per the said document, Dr. Rajiv Kumar had appointed Smt. Abha Sinha as his GPA in respect of flat No. 6357, 1st and 2nd floor duplex, Sector C, Pocket 6 & 7, SFS, Vasant Kunj, New Delhi on 1.5.2001 of which property the Witness had examined the title document. PW 46 stated that he had verified about the occupancy of this premises and it was found to be occupied by accused Sanjiv Kumar, voluntarily stating that a search was also conducted probably in the year 2005 in the said premises and at that time, accused Sanjiv Kumar was found present in the said property. The Witness had also verified as to in whose names the electricity and telephone connection of the said house existed. The Witness admitted that the telephone connection in that house was in the name of Dr. Rajiv Kumar, voluntarily clarifying that the same was being used by accused Sanjiv Kumar.

The Witness further admitted to having verified about the registered owner of telephone connection in premises No. 6360, Ground Floor, Pocket 6 & 7 C, Vasant Kunj and that the phone connection was in the name of Dr. Maheshwar Kumar. The Witness also admitted that the documents i.e. loan agreements between Dr. Rajiv Kumar and Hukam Singh seized vide memo (proved as) Ex. PW46/D3 at serial Nos. 2 & 3 i.e. Mark PW46/DD and DE are the same which were shown to the Witness in the court stating that the same were not considered by him as he was not convinced about their truthfulness but denied that he deliberately did not consider Mark PW46/DD and DE. The Witness admitted having issued order dated 1.12.2007 (proved as) Ex. PW46/D4 for producing the documents. The Witness was also shown a Power of Attorney (proved as) Ex. PW46/D5, in file D-5 (II) at pg. no. 2 to 6 executed by Dr. Rajiv Kumar in favour of his father Dr. M. Kumar for 'management of affairs of Dr. Rajiv Kumar HUF' but stated that neither had he verified nor considered the same during investigation.

The Witness was shown photocopy of letter dated 16.9.2000 of Haryana Officers & Public Enterprises Employee Welfare Co-operative Housing Society which letter (mark PW46/DF) was

seized by the Witness during investigation. The Witness also admitted to seizing letter dated 31.7.2008 (mark PW46/DG) of HUDA as also the photocopy of an affidavit (mark PW46/DH) of Kanak Lata. The Witness stated that all the above-said documents were seized by him vide seizure memo Ex. PW46/D3.

Specifically in regard to the role of Dr. Rajiv Kumar, the Witness denied the suggestion that purchase of foreign currency reflected in Ex. Z-2, 73, 74 and 75 (file D-63) was sourced from the funds of Dr. Rajiv Kumar or that the documents reflecting the sourcing of funds by Dr. Rajiv Kumar for purchase of foreign currency were provided to him. The Witness stated that during investigation, he could not find any evidence that Dr. Rajiv Kumar had started his practice in Dhanbad or that he had sold his medical equipment to Dr. B.K. Sinha of Patliputra Urological Centre, Patna in November 1997 for a sum of Rs. 4,93,000/- or that he had sold a plot of land to Dr. T.C. Shah, Consultant Gynecologist, Dhanbad in December 1997 for a sum of Rs. 1 lac or that he had sold his motorcar to Mrs. Rita Lala H.E. School Road, Dhanbad for a sum of Rs. 1,40,000/- in February 1998 or that he had sold all the aforesaid properties through his power of attorney/father Dr. M. Kumar or that he had authorized his father Dr. M. Kumar to utilize the sale consideration for construction of house at land in village Dhumus Pur, Haryana, in the name of his mother Mrs. Kanak Lata.

The Witness also stated that during investigation, he had come to know that Dr. Maheshwar Kumar and Mrs. Kanak Lata jointly owned a flat bearing No. B-2/301 in Power Welfare Organization Housing Complex, Sector 43, Gurgaon but did not know that this house was rented out to M/s. Citation Info Wares Ltd. w.e.f. 1.7.2004 at a monthly rent of Rs. 11,500/- and that a sum of Rs. 50,000/- was received as security amount. The Witness could not recollect whether copy of the lease deed regarding the aforesaid tenancy was provided to him.

The attention of the witness was also drawn to M-344 of 2005 from page No. 1 to 30 (mark PW46/DI) seized by him vide search memo dated 17.2.2005. After seeing the search memo, Witness stated that the same was prepared by him and that on verifying the documents mark PW46/DI, the same were found to be correct, which were then exhibited collectively as Ex. PW46/D7. Witness clarified that the same were not considered by him while preparing the charge-sheet.

Thereafter, the attention of the witness was drawn towards page No. 16 of M-377 of 2005 in file D-II, proved as Ex. PW46/D8 which was examined by the witness during investigation but he had not verified the land mentioned from point A to A on Ex. PW46/D8, voluntarily stating that the said document was prior to the check period pertaining to the financial year 1992-93, for which reason the contents of the same were not verified. The Witness admitted that he had not given the benefit of income as reflected in the income tax return of Abha Sinha for the AY 2003-04 and 2004-05, voluntarily stating that he had not received the ITRs for the said period. The Witness also admitted that he had not given the benefit of income as reflected in the income tax return of Smt. Kanak Lata for the AY 1997-98, voluntarily stating that he had not received the ITR of the said period. Similarly, the Witness admitted that he had not given the benefit of income as reflected in the income tax return of Dr. Maheshwar Kumar for the AY 1997-98 and 2005-06, voluntarily stating that he had not received the ITRs for the said period.

The Witness could not admit or deny whether accused Sanjiv Kumar had received a subsistence allowance of Rs. 1,77,926/- for the period from December 2001 to May 2004, voluntarily stating that the salary record received by the witness reflected that upto 31.5.2004, the accused had received a subsistence allowance of Rs. 1,01,075/- The Witness expressed ignorance whether from 21.5.2001 to 26.6.2001, accused Sanjiv Kumar was not under suspension and was receiving his regular salary and not subsistence allowance, voluntarily stating that he had prepared the charge sheet as per the record received from his department. He denied having deliberately concealed the correct subsistence allowance paid to accused Sanjiv.

The Witness admitted that Dr. M. Kumar was a Surgeon in Indian Railways and that the witness had not considered the retiral benefits in cash as received by Dr. M. Kumar at the time of his retirement from Indian Railways, voluntarily stating that it was much prior to the check period and there was no evidence as to how this money was utilized.

The attention of the witness thereafter was drawn to M255/05 i.e. GPA proved as Ex. PW46/D9 executed by accused Sanjiv Kr. in favour of Rajeev Kumar S/o of Kartar Singh. The Witness could not recollect whether he had verified the document Ex. PW46/D9 or considered the same during investigation. The Witness denied that from 2.6.2000 till the sale of flat No. 15, HOPE Apartment in October 2003, the entire maintenance and utility bills in respect of the said flat were paid by GPA holder Rajeev Kumar.

The attention of the witness was further drawn to M202/2007 to M214/2007 (part of Ex. PW46/D1) who then stated that he had given the benefits of royalties received by Smt. Kanak Lata vide aforesaid documents as all these incomes were reflected in her ITR's. The witness denied that this income was not considered by him.

The attention of the witness thereafter was drawn to M215/2007 and M216/2007 being part of Ex. PW46/D1 whereafter Witness admitted that Dr. M. Kumar was a private practicing surgeon.

After seeing the document Ex. PW40/A1/DB, the Witness stated that he had verified the same and found the same to be false. He denied the said document to be genuine and that vide the same, Abha Sinha had been authorized by Tika Hasan to deal with affairs of his shares in Cosmos. The Witness admitted that search had been conducted at the premises of Tika Hasan at R-32 South Extension Part II, New Delhi whereafter search and seizure memo was prepared. The Witness however denied that he had deliberately concealed Ex. PW40/A1/DB.

The attention of the witness was further drawn to M608/2005 at page No. 3. Witness admitted that the said document Ex. PW46/D10 (in file D-35) was seized and which was produced by share broker Subhash Gupta.

The Witness stated that since he was not aware, hence could not admit or deny that share transactions done by Abha Sinha on behalf of Cosmos had already been adjudicated upon by CBI Court at Chandigarh in RC No. 2A/2004/ACU/IX/New Delhi. He denied that he had deliberately concealed the same during investigation. He further denied that it was within his knowledge that in

the aforesaid FIR, Sanjiv Kumar, Sushant Kumar Swain, Nirmal Singh and Tika Hasan Mustafa were the accused or that Seema Gupta and Subhash Gupta were examined as witnesses or that all the accused in that case had been acquitted. The Witness denied that shares belonging to Cosmos were not the property of Abha Sinha. The Witness further denied that he had come to know that there was a dispute between Vivek Gupta s/o Subhash C. Gupta and Tika Hasan or that regarding this dispute, an FIR No. 3/2001 under Section 420, 120B IPC was pending investigation with PS Krishna Nagar, Delhi or that the said dispute was regarding the shares which have been attributed in the present case to Abha Sinha.

The Witness also denied that he had deliberately not given the benefit of the interest which had accrued on the bank deposits of Abha Sinha, Sanjiv Kumar and Kanak Lata, voluntarily stating that this benefit was given for the allowance and incomes which were considered legitimate. He further denied that he had deliberately concealed material evidence.

Witness admitted that the original investment of Ex. ZB (file D9) was for an amount of Rs. 10,000/ and after its maturity, ZB was created from the maturity amount of Rs. 20,000/. The Witness denied that accused had satisfactorily explained the assets.

71. PW 47 RK Sharma: Witness deposed that in the year 2000, he was running 3 companies in the name and style of Alternative Communications, Media Magnetics and Mahima Audio Visuals and that these companies were dealing with the Education Department of Govt. of Haryana. PW was printing academic and promotional material for District Primary Education Programme (DPEP) of which Sanjiv Kumar was the Director, and which work was awarded to the PW through open tender. The PW had frequent meetings with Sanjiv Kumar during the time of his working with DPEP. The payments used to be made to the PW through cheques/DD in the names of his companies when he visited the office of DPEP at Sector 7, Chandigarh.

The PW also deposed that though he didn't remember the exact period but in the month of February 2000 he had received payment of approx. Rs. 90 lacs and on receipt of the said payment, the PW arrived at a understanding with Sanjiv Kumar that some percentage of the said amount i.e. around 30 to 40 percent will have to be paid by the PW to Sanjiv Kumar. PW 47 had worked for the DPEP for about 1½ to 2 years and as per understanding with Sanjiv Kumar, he had paid around Rs. 90 lacs to Sanjiv Kumar through one Subhash Gupta at the places informed by Mr. Gupta. PW further deposed that a lot of times, the payments were made by him to Mr. Gupta at the inner circle of Connaught Place. Once or twice the payments were made at the studio of PW situated at South Extension Part II and that once or twice, Mr. Subhash Gupta had visited his house bearing Flat No. 64, Hope Apartment Gurgaon to collect the payments. Subhash Gupta used to maintain the accounts of the payments received from him but he himself was not maintaining any account of such payments. The PW also deposed that there was another person having office at Niti Bagh who also used to collect the payment from him on behalf of Sanjiv Kumar but the witness could not recollect his name. PW asserted that he had made all the payments in cash.

In cross-examination by accused Sanjiv Kumar, PW47 denied having never visited Niti Bagh to deliver the money or that he personally knew S.C. Gupta and used to invest his money with him. The

Witness admitted that in another CBI matter adjudicated by Chandigarh Court, he was made an approver and was granted pardon but denied that he was made an approver only because he had agreed to depose on the lines of CBI. The Witness also admitted that he had deposed about similar facts before CBI Court, Chandigarh regarding his meetings with S.C. Gupta and delivery of money to him. The Witness was not cross-examined on behalf of other three accused persons namely Abha Kumar, Dr. Maheshwar Kumar and Kanak Lata.

Statement of Accused U/S 313 Cr.PC:

72. After culmination of prosecution evidence, statement of accused persons were recorded u/s 313 Cr.P.C. Accused claimed to be innocent and to have been falsely implicated in this case. The response of accused persons to the incriminating evidence put to them was similar to the defense pleaded by each of them in cross-examination. Accused Sanjiv Kumar preferred to lead evidence and examined 20 witnesses in defense.

Defense Evidence: was led only by accused Sanjiv Kumar.

73. DW 1 Insp Ram Rakt, Malkhana In-charge, CBI, ACB New Delhi:

He had brought the summoned record i.e.

1. Locker operation memo dt. 10.5.2007 (proved as) Ex. DW1/1.

2. The valuation report attached to the locker operating memo (proved as) Ex. DW1/2.

3. Locker operation memo dt. 19.2.2005 in the present RC in respect of locker No. 430 of ICICI Bank, Vasant Kunj (proved as) Ex. DW1/3.

4. Locker operation memo dt. 24.1.2007 in respect of locker no.

81 with Allahabad Bank, Hirapur Branch, Dhanbad (proved as) Ex. DW1/4.

5. Copy of application dt. 16.2.2005 for issuance of search warrant U/s 93 Cr. P. C for conducting searches at 11 places (proved as) Ex. DW1/5, and

6. Copy of application (proved as) Ex. DW1/6 whereby information was given about the places searched by the CBI in the present RC.

DW 1 Insp. Ram Rakt was not cross-examined by the prosecution.

74. DW 2 Sh. Ajit Samvedi, Chief Manager, Vijaya Bank:

He proved the statement of account in respect of account no. 1410 in the name of Sanjiv Kr. w.e.f. 1.3.2000 to 8.2.2005 as Ex. DW2/1, and Certificate of interest accrued in this account from 7.8.2000 to 8.2.2005 as Ex. DW2/2 as per which total interest which accrued in this account during the said period was Rs. 15,536/-. Witness was not able to produce the details of the cheque credit in this account through clearing as details were not available, record of which being older than 08 yr. However, details of amount credited in this account through transfer from a/c no. 1165 of State Project Director, Haryana Prathamik Shiksha Priyojna Parishad were provided in letter (proved as) Ex. DW2/3. Witness further deposed that as per record, this account was opened in February 1999 and as per statement of account Ex. DW2/1, a cheque in favour of IDBI for an amount of Rs. 30,000/- was cleared on 2.3.2001.

In cross-examination, the Witness deposed that he has no personal knowledge of the case and that he has deposed on the basis of record.

75. DW 3 Sube Khan, Superintendent, O/o Chief Secretary, Haryana Service I Branch, Haryana Civil Secretariat, Chandigarh:

He had brought the salary statement of Sanjiv Kr. from 1995 to 2006 as available with Haryana Government. This statement was in the form of a file containing 25 pages and was proved as Ex. DW3/1. Witness stated that as per letter dated 19.5.1994 (proved as) Ex. DW3/2, a house building loan of Rs. 1.25 lacs was sanctioned to Sanjiv Kr. which was to be recovered in 100 monthly installments of Rs. 1250/- each which was disbursed vide letter dated 29.6.1994 (proved as) Ex. DW3/3. Vide letter dated 17.8.95 (proved as) Ex. DW3/4, car loan of Rs. 1.25 lacs was sanctioned to Sanjiv Kumar which was to be repaid in 100 equal monthly installments of Rs. 1250/- each. He further stated that no travelling allowance was either paid or reimbursed to Sanjiv Kr. from 10.6.96 to 25.7.97 and 21.5.2001 to 3.12.2001.

DW 3 was not cross-examined by the prosecution.

76. DW 4 Sh. Avdesh Kumar Verma, Asst. General Manager, Central Branch, SBI, Dhanbad:

Witness had not brought the details /ledger of saving bank account no. 01190007742 in the name of Dr. Maheshwar Kumar as it had been weeded out being a 10 yr. old record. He proved the photocopy of ledger of PPF account no. 11/1810 of Ms. Abha Kumar w.e.f. 1.4.96 to 16.2.2005 which was duly certified U/s 4 of Banker's Book of Evidence Act (proved as) Ex. DW4/1. As per Ex. DW4/1, as on 29.3.96 there was a credit balance of Rs. 22,009/- in this account and as on 10.4.2004 there was a balance of Rs. 4,74,889/- in this account.

The balance was forwarded and remained the same till 30.3.2005 as per statement of this account (proved as) Ex. DW4/2.

DW 4 was not cross-examined by the prosecution.

77. DW 5 Sh. Rohit Nain, Probationary Officer, OBC, Sector 11, Panchkula:

Witness proved letter dated 3.12.2016 issued by Chief Manager of the bank as Ex. DW5/1. The certificate of interest with respect to saving bank a/c no. SB 6000 in the name of Mrs. Abha Kumar for the period 30.6.2000 to 31.12.2004 was (proved) as Ex. DW5/2. As per this certificate, an interest of Rs. 5192 accrued in a/c no. 6000 during the said period. The certificate of interest with respect to SB A/c no. 6064 in the name of Sanjiv Kumar and Abha Kumar for the period 30.6.2000 to 31.12.2004 was proved as Ex. DW5/3. As per this certificate, an interest of Rs. 1,21,838 had accrued in this account during the aforesaid period. Witness stated that the details of cheque/original pay-in slip by which an amount of Rs. 6,93,460 had been credited in SB A/c No. 6064 in the name of Sanjiv Kumar and Mrs. Abha Kumar on 8.12.99, details of cheque/original pay-in slip by which an amount of Rs. 1,60,000 credited on 10.9.99, Rs. 4,40,000/credited on 10.9.99, Rs. 50000 credited on 11.11.99 and Rs. 30000 credited on 25.5.01 in SB A/c No. 6000 in the name of Mrs. Abha Kumar were not available being a 10 yr. old record.

DW 5 was not cross-examined on behalf of the prosecution.

78. DW 6 Sh. Anil Kumar Verma: He was from the Office of Chief Engineer, Central Water Commissioner, Patna. Witness deposed that as per record H. No. 438B West Boring Canal Road, Patna was under the tenancy of Central Water Commission w.e.f. 15.2.83 to 28.2.1999. The rent paid by Central Water Commission to the landlord w.e.f. 15.2.83 to 30.9.87 was Rs. 2,995/-per month, w.e.f. 1.10.87 to 30.9.92 was Rs. 4,250/-per month and w.e.f. 1.10.92 to 28.2.1999 was Rs. 5,954/-per month. These details were mentioned in letter (proved as) Ex. DW6/1. The treasury vouchers for the payment of rent and the other relevant documents as available were (proved as) Ex. DW6/2 (colly). The photocopy of bill register reflecting payment of rent by the department to Dr. M. Kumar was (proved) as Ex. DW6/3 (colly). Photocopy of letter dated 18.3.99 whereby a cheque of Rs. 47,632/-was sent to the landlord for rent for the period July 1998 to February 1999 was proved as Ex. DW6/4. Copy of letter dated 12.3.99 whereby the tenanted premises were vacated w.e.f. the afternoon of 27.2.99 was proved as Ex. DW6/5.

DW 6 was not cross-examined by the prosecution.

79. DW 7 Sh. Krishan Ram, Asst. Div. Manager, LIC D.O., Hazaribagh, Jharkhand: He deposed that he could not produce the summoned record since the policy Nos. 171578339 in the name of Ms. Abha Kumar and No. 171578323 in the name of Sanjiv Kumar belong to Hissar/Rohtak Division and that policy No. 170129360 in the name of Sanjiv Kumar belongs to Ambala/Karnal Division, record of which policy numbers was not available in Hazaribagh Division. The Witness proved the status report of policy No. 550573541 in the name of Ms. Abha Kumar, its payment history and the policy document, bearing seal of the company respectively as Ex. DW7/1, Ex. DW7/2 and Ex. DW7/3, stating that the said policy commenced on 28.2.1988 with maturity in February 2019. The Witness

deposed that as per record, payment of Rs. 71,159.40 had been made towards the premium of the policy upto 22.3.2016.

Similarly, the Witness proved the status report of policy No. 540418972 in the name of Ms. Abha Kumar, its payment history and the policy document, bearing seal of the company respectively as Ex. DW7/4, Ex. DW7/5 and Ex. DW7/6, stating that the said policy commenced on 28.2.1997 with maturity in February 2017. The Witness deposed that as per record, payment of Rs. 1,38,861.08 had been made towards the premium of the policy upto 22.3.2016 and that being money back policy, an amount of Rs. 20,000/□was paid to Ms. Abha Kumar on 28.2.2002.

Further, the Witness proved the status report of policy No. 550644860 in the name of Sanjiv Kumar, its payment history and the policy document, bearing seal of the company respectively as Ex. DW7/7, Ex. DW7/8 and Ex. DW7/9, stating that the said policy commenced on 14.11.1988 with maturity in November 2040. The Witness deposed that as per record, payment of Rs. 38,175/□had been made towards the premium of the policy upto 24.10.2016.

The Witness also proved the status report of policy No. 542268878 in the name of Dr. Maheshwar Kumar and its payment history, bearing seal of the company respectively as Ex. DW7/10 and Ex. DW7/11, stating that the said policy commenced on 28.3.2001 with maturity in March 2006. The Witness deposed that it was a single premium policy and an amount of Rs. 24,185/□had been paid by the policy holder and that Rs. 37,591.41 was paid to the policy holder in March 2006.

DW 7 was not cross□examined on behalf of the prosecution.

80. DW 8 Sh. Gurpreet Singh, Br. Manager, ICICI Bank, Dhanbad City Centre: Witness proved the statement regarding interest accrued during 23.6.04 to 16.2.2005 in respect of A/c No. 019601507407 in the name of Smt. Kanaklata and Sh. Maheshwar Kumar as Ex. DW8/1 as per which interest of Rs. 15/□had accrued.

DW 8 was not cross□examined on behalf of the prosecution.

81. DW 9 Sh. Trilok Nath Mishra, Head Assistant, District Transport Office, Dhanbad: Witness deposed that as per record Maruti Car bearing No. DR 17C 2299 had been registered on 11.7.94 in the name of Dr. Rajiv Kumar S/o Dr. M. Kumar. Thereafter, on 19.1.98 this vehicle was transferred in the name of Smt. Shalini Shrivastav and on 23.1.2001 this vehicle was transferred in the name of Rattan Lal Banerjee. These details were mentioned in letter proved as Ex. DW9/1 issued by District Transport Officer, Dhanbad.

In cross□examination, the Witness deposed that he had no personal knowledge of the case and that he had deposed on the basis of record.

82. DW 10 Sh. Zubair Riaz, Director Customs, Delhi:

Witness deposed that register containing the relevant entries for TOR allegedly issued to one Dr. Rajiv Kumar on 3.12.90 and 15.12.93 appears to have been issued from Kolkata Customs. As per Fax Mark DW10/A sent by Sh. P. K. Vohtra, Joint Commissioner of Customs, Kolkata this record could not be traced as unaccompanied baggage register for the year 1990 and 1993 could not be traced by Kolkata office being an old record.

DW 10 was not cross-examined on behalf of the prosecution.

83. DW 11 Sh. Anukul Anand, Inspector of Income Tax, Office of Principal Chief Commissioner Income Tax Bihar & Jharkhand, Patna: Witness proved the ITR return of Rajiv Kumar HUF for the assessment year 2002-03 as Ex. DW11/1. The annexures of this ITR running into 10 pages were collectively proved as Ex. DW11/2. The ITR return of Rajiv Kumar HUF for the assessment year 2004-05 was proved as Ex. DW11/3 and the annexures of this ITR running into 09 pages were collectively proved as Ex. DW11/4. The certified copy of the screen print of the ITR of Rajiv Kumar HUF for the assessment year 2006-07 was proved as Ex. DW11/5. Witness informed the court that the original ITRs of Rajiv Kumar HUF for the assessment year 1998-99, 2001-02, 2002-03 and 2005-06 had already been submitted to CBI vide letter dated 5.6.2007 along with its annexures which was proved as Ex. DW11/6.

In cross-examination, the Witness deposed that he has no personal knowledge of the case and that he has deposed on the basis of record.

84. DW 12 Sh. Madan Mohan Prasad, Asst. G.M., Allahabad Bank, H.O., Calcutta: Witness brought the record regarding various complaints made by Sh. M. Kumar for non-credit of 3000 GB pounds equivalent to Rs. 2,07,060/- remitted to his account through Allahabad Bank, Calcutta by his son Dr. Rajiv Kumar and the response of the bank to these complaints. Photo copies of all these documents were collectively exhibited as Ex. DW12/1.

In cross-examination, the Witness deposed that he has no personal knowledge of the case and that he has deposed on the basis of record.

85. DW 13 Sh. Sandeep Prasad, Sr. Manager, Allahabad Bank, Hirapur Branch, Dhanbad: Witness was summoned to produce records of 4 accounts - a/c no. 2268, a/c no. 119, a/c no. 3609 and a/c no. 470. Witness deposed that he had not brought the statement of a/c no. 2268 from the date of its opening till 16.2.2005 because due to computerization after the year 2000 and different agencies which were being used upto the year 2009, the record from the year 2000 to 2009 was not traceable. However, he had brought the records prior to the year 2000. The certified copy of statement of account from the date of opening of account i.e. 1993 upto 29.3.2000 was proved as Ex. DW13/1. Statement of interest which accrued in this account from 2.1.93 till March 2000 was proved as Ex. DW13/2.

Statement of interest in A/c No. 3609 from 28.10.97 till March 2000 was proved as Ex. DW13/3.

Statement of interest accrued in A/c No. SB 119 from 28.11.88 till March 2000 was proved as Ex. DW13/4.

The statement of interest accrued in A/c No. 470 from 25.5.1989 till March 2000 was proved as Ex. DW13/5.

In cross-examination, the Witness deposed that he has no personal knowledge of the case and that he has deposed on the basis of record.

86. DW 14 Sh. Parkash Kumar: Witness was summoned to produce certain revenue records from Dhanbad. As per revenue records of Property in Khata no. 80, having portion no. 2312 Mauza 8 Mauza Sarai Daila District Dhanbad, from 1994 upto the year 2000 was never mutated or stood in the name of Dr. Rajiv Kumar S/o Maheshwar Kumar. His letter in this regard was proved as Ex. DW14/1. Photocopies of Jamabandi running into four pages was Marked DW14/A colly.

DW 14 was not cross-examined on behalf of the prosecution.

87. DW 15 Ms. Shobha Singh: Witness was real sister of accused no. 2 Abha Kumar. She had brought the pass book for the period 1.3.2002 to 31.5.2005 of a joint a/c which she had with her husband bearing no. 01190009565 with SBI, Bokaro Steel City. The pass book was proved as Ex. DW15/1. Witness deposed about accused Abha taking care of her elder daughter when her daughter was in Chandigarh and of her younger daughter when she was studying in Delhi. Witness highlighted an entry dated 30.1.2003 in her pass book at point 'A' which reflects preparation of demand draft of Rs. 2,50,000 which was debited from her account. As per the witness, this demand draft was issued either in the name of Sanjiv Kumar or Abha Sinha and was claimed to be a repayment of loan/assistance which had been provided at the time of marriage of her elder daughter in the year 2000.

DW 15 was not cross-examined on behalf of the prosecution.

88. DW 16 Ms. Simanti Banerjee: Witness was Branch Manager, ICICI Bank, Vasant Kunj, N. Delhi and brought the summoned record i.e. statement of transaction in SB A/c No. 000701228511 in the name of Maheshwar Kumar for the period 1.4.2003 to 30.6.2003 which was proved as Ex. DW16/1; statement of account of Miss Snigdha Kumar under the guardianship of Abha Kumar in respect of A/c No. 0007011239298 from 1.1.2004 to 30.1.2004, proved as Ex. DW16/2; and statement of account of Ms. Abha Kumar and Sanjiv Kumar in respect of A/c No. 000701501139, proved as Ex. DW16/3. Witness deposed that the bank was not able to retrieve the cheque record as it was very old.

In cross-examination, the Witness deposed that she had no personal knowledge of the case and that she had deposed on the basis of record.

89. DW 17 Shri Shishir Gupta: Witness was from ICICI Bank, Borivali West, Mumbai and deposed that in the account statement (proved as) Ex. DW17/1 of a/c bearing No. 019601507407 in the name

of Ms. Kanak Lata and Maheshwar Kumar for the period 1.7.2004 to 28.9.2004, there are two credit entries of British Pound 2000 dated 12.8.2004 and 1000 dated 28.9.2004, respectively. The certificate to that effect was proved as Ex. DW17/2.

In cross-examination, the Witness deposed that the transactions as mentioned in his chief examination were completed in Veer Savarkar Marg Branch, Thane West. The Witness stated that he could not state whether any British Pounds were deposited with any supporting document or with any pay-in-slip at that time but as per statement of account, the deposit of British Pounds was direct deposit in the branch. However, he could not inform about the rules in regard to deposit of British Pounds in the year 2004. The Witness denied that for want of complete supporting documents, he could not explain the mode of deposit of amount of British Pounds in question.

90. DW 18 Sh. Varun Anand: Witness was summoned from ICICI Bank, Connaught Place, N. D. to prove the certified copies of statement of account bearing No. 000701501139 (79 pgs.) in the name of Abha Kumar and Sanjiv Kumar. The documents were proved as Ex. DW18/1. Similarly, he also proved the certified copies of statement of account bearing No. 000701239298 (22 pgs.) in the name of Snigdha Kumar (under guardianship of Abha Kumar) as Ex. DW18/2. The Witness further proved the certified copies of statement of account bearing No. 000701228511 (85 pgs) in the name of Maheshwar Kumar as Ex. DW18/3. The interest certificates in regard to above-said three accounts duly signed by the Witness and also containing seal of the Bank, were proved by him as Ex. DW18/4 to Ex. DW18/6 and the certificates under Section 65-B of Indian Evidence Act for the above-said three accounts were proved by the Witness as Ex. DW18/7 to Ex. DW18/9.

In cross-examination, Witness deposed that as per interest certificate Ex. DW18/4, the total interest paid by the bank to the account holder in respect of saving bank account was Rs. 251/- and that in regard to fixed/recurring deposit, it was only Rs. 389/-

The Witness also deposed that as per interest certificate Ex. DW18/5, the total amount of interest paid to the account holder for saving bank account was Rs. 15/- and in respect of financial year 2004-2005, was only Rs. 2081/-

Similarly, the Witness deposed that as per interest certificate Ex. DW18/6, the total amount of interest paid to the account holder for saving bank account was Rs. 394/- and for fixed and recurring deposit, the total amount of interest paid was Rs. 2351/-

91. DW 19 Sh. Shiv Kumar: Witness was summoned to produce the ITR's of accused Abha Kumar. He deposed that as per letter Ex. DW19/3 received from Income Tax Officer Ward (4) 1, Patna, the record pertaining to ITRs for the year 2003-04 and 2004-05 of Abha Sinha was not traceable and that reply to the said effect was also received by the Witness from ITO Ward 61 (3) vide letter proved as Ex. DW19/2. The Witness deposed that the documents Ex. DW19/3 to 19/5 were the ITRs however he could not state anything about the said documents as neither he was posted in the Income Tax Office, Patna nor could identify the signature of income tax official on the above-said three exhibits.

In cross-examination, Witness deposed that he could not opine about the authenticity of ITRs Ex. DW19/3 to Ex. DW19/5 as he never dealt with the same.

92. DW 20 Sh. K.P. Singh, Chartered Accountant: He deposed that he had been retained by Ms. Abha Sinha as a tax consultant since last more than 12 years and was looking after her tax matters. Abha Sinha had asked him to go through the ITRs files of Sanjiv Kumar HUF, Rajiv Kumar HUF, Dr. Maheshwar Kumar (now dead), Mrs Kanak Lata as also of herself. She also had given him the charge sheet of the present case whereafter he had gone through the ITRs, computation of income, statement of affairs and also statement A to D of charge sheet.

The DW further deposed that in all the ITRs of aforementioned persons, all the items mentioned in the capital and the liabilities has been balanced with assets and properties.

The DW had also gone through Ex. DW11/1, ITR return of Mr. Rajiv Kumar HUF for the assessment year 2004-05 wherein under the head of capital and liabilities, gift made to Kanak Lata for Rs. 34,000/- and telephone bill for Rs. 4647/- had been mentioned, and investment in power Welfare Organization for Rs. 5,05,000/- finds mentioned under the head of assets and properties.

The DW had also been shown ITR of late Dr. Maheshwar Kumar for assessment year 2005-06 Ex. Z47/2 wherein under the head of Capital and Liabilities, gift received from Dr Rajiv Kumar s/o Dr. Maheshwar Kumar for an amount of Rs. 1,98,420/- and gift received from Kanak Lata wife of Dr. Maheshwar Kumar for Rs. 3,14,942/- has been mentioned. Under the sub-heading of drawings, gift made to Snigdha Kumar d/o Sanjiv Kumar for Rs. 3,50,000/- finds mentioned. Under the head of assets and properties, building at Dhanbad for Rs. 5,50,000/- and investment in Power Welfare Organization for Rs. 5,81,000/- and investment with Ansal Properties disclosed in VDIS 97 for Rs. 7,76,000/- finds mentioned.

The DW had also been shown document Z51 (D2) which is ITR of Abha Sinha for financial year 1998-99 and assessment 1999-2000 wherein FDR of Rs. 20,000/- brought forward from previous years on completion of term has been encashed and same has been reinvested as FDR of new purchase worth Rs. 20,000/- In the ITR of Abha Sinha for assessment year 2005-06, no loan amount was shown as outstanding.

During his further examination in-chief, DW deposed that as per the assessment year 2005-2006, all the loan accounts have been settled with regard to Mr. Ranjit Singh and Ms. Vibha Sinha. DW further testified that whatever he had deposed in his statement was based on income tax returns filed by Mrs. Abha Sinha and Mrs. Kanak Lata, Late Dr. Maheshwar Kumar and admitted by the Income Tax Department of Government of India and that whatever money has come from Rajiv Kumar HUF and Sanjiv Kumar HUF, the same was duly reflected in the returns of their income. The money received from Rajiv Kumar individual, Rajiv Kumar HUF and Sanjiv Kumar HUF were duly reflected in the statement of affairs of Dr. Maheshwar Kumar and Mrs. Kanak Lata.

In cross-examination, the Witness deposed that he used to file ITRs on behalf of accused Abha Kumar in which he had mentioned her name as Abha Sinha D/o G.P. Singh. The Witness stated that

in the ITRs, always the name of father of assessee is mandatorily mentioned and that name of husband used to be never mentioned in the ITRs. The Witness admitted that neither had he stated in his examination in chief nor has brought any document reflecting that he used to file ITR for Abha Sinha @ Abha Kumar at any point of time, voluntarily stating that for the last approx. 7-8 years, the ITRs used to be filed online which were uploaded by the Witness through his own ID i.e. SKR.Associates@gmail.com. Thereafter, a question was put to the Witness by Ld. PP to specify the period for which the Witness had been asked by Abha Kumar to look into the ITR files of Sanjiv Kumar HUF, Rajiv Kumar HUF, Dr. Maheshwar Kumar (expired), Abha Sinha and Mrs. Kanaklata? The Witness replied that he had looked into the period as mentioned in the charge sheet.

The Witness further deposed that he had not filed the ITR return of any of the above said persons i.e. Sanjiv Kumar HUF, Rajiv Kumar HUF, Dr. Maheshwar Kumar (expired), Abha Sinha and Mrs. Kanak Lata during the period 1996 to 2006. He admitted that in the ITR returns, the information given in the ITR are voluntarily submitted by the assessee. Before filing the ITR returns, the professional who is assigned to file the ITR by the assessee, will check all the aspects and then only shall he file the ITR. Witness clarified that since there is no provision for physical verification of the information supplied to the professional by the assessee, hence the information supplied by the assessee to the professional to file ITR is the basis for filing ITR; however, at the same time the professional has an expertise to view information/documents as supplied by the assessee including the financial statement as well as bank statement of the assessee.

The Witness was further cross-examined in question-answer format.

Question. Is it correct that while filing any documentation with any public authority as a professional, you also tender a certificate to the effect that the details contained therein are solely based on the information/figures provided by your client and not on your own assumption ?

Ans. As a professional if I am required to certify any document then only I express my independent opinion.

Question. In case of the client giving you the wrong information for filing ITRs and you having filed the ITR of that person on the basis of such wrong information, whether you shall be liable for filing of wrong ITR?

Ans. It depends on case to case and subject to scrutiny of the IT Authorities. However, as a professional we are not liable for the same.

Witness further stated that he had never filed ITR returns on wrong information given by assessee. He explained that if some case is picked up for scrutiny, certain information is called for by the assessing officer and which is then replied by the professionals.

Witness asserted that it is a universal fact that every professional will file return of income on the basis of information supplied by the assessee. If it is not subjected to any scrutiny, the return stands accepted by the IT department.

The witness admitted that in his examination in chief, he had merely read out the figures/details mentioned in the ITRs of Sanjiv Kumar HUF, Rajiv Kumar HUF, Dr. Maheshwar Kumar (expired), Mrs. Kanak Lata and Ms. Abha Sinha @ Abha Kumar. He deposed that he had knowledge regarding the above said ITRs on the basis of facts and figures as mentioned in the said ITRs.

The Witness denied the suggestion that he had appeared as a defence witness in this court to depose as he had been paid by the accused persons or that he had no knowledge of any of the documents shown to him during his examination in chief.

ARGUMENTS ADDRESSED

93. Arguments were addressed over multiple dates through video conference. Prosecution opened the final arguments highlighting the assets allegedly acquired by accused Sanjiv, the role of other accused persons as abettors and how the said assets were 'disproportionate' to the known sources of income of accused Sanjiv Kumar as also the other accused persons taken collectively. Ld. Sr. PP also, very briefly, touched upon the defense pleas in relation to some of these assets, as culled out by him from the cross examination of the relevant prosecution witnesses. Prosecution arguments were followed by the defense submissions which were extremely detailed and aided by relevant judgments. Prosecution was given an opportunity for rebuttal arguments during the course of which Ld. Sr. PP cited certain relevant judgments, followed by an opportunity to the accused persons for their rebuttal.

94. Crux of the arguments addressed on behalf of the defense has already been highlighted at the outset. However, the key arguments addressed are being briefly recapitulated so as to provide continuity with the findings which shall follow immediately after this since all of these arguments shall be discussed in detail while returning the findings.

95. On the preliminary issue of grant of sanction for prosecution, defense assailed the evidence of relevant witness PW 3 Vijay Kumar, the then Under Secretary who signed the sanction order by contending that he had not brought the relevant file on which he had prepared the noting for the consideration of the Minister in Charge, after having received the entire incriminating material from CBI requesting for grant of sanction for prosecution of accused Sanjiv which meant that it was not proved to the satisfaction of the Court as to whether the 'noting' contained all the relevant facts/reference to relevant material for the consideration of the Minister in Charge.

96. So far as the 2 most high value 'disproportionate assets' are concerned - share market investment of Rs. 2.51 crores by Sanjiv Kumar and share market investment of Rs. 75 lacs by Abha Kumar, the plea taken respectively was that the prosecution has not been able to lead any evidence to show that accused Sanjiv paid Rs. 2.51 crores for investment in shares, and that alleged investment by accused Abha was actually the money supplied by a family friend, namely Tika Hasan Mustafa for whom Abha acted as a handler of his equities investment.

97. Apart from the above, other high value assets consisted of:

1. 2 flats in Vasant Kunj, one each in the name of Dr. Rajiv Kumar (brother of accused Sanjiv) and Dr. Maheshwar (also an accused but since deceased) in regard to which the arguments addressed were that these flats were purchased by Dr. Rajiv and Dr. Maheshwar respectively from their own financial resources and that prosecution deliberately withheld best evidence which would have shown that Sanjiv Kumar was not in any manner associated with the purchase of these flats.

2. Farmhouse of accused Kanak Lata at Dhumus Pur Vilage in Gurgaon in regard to which the argument addressed was that the prosecution was neither able to prove that the same had been financed by Sanjiv Kumar nor was able to prove that the land was sold for Rs. 12 lacs and not Rs. 4.5 lacs, which was the amount mentioned in the sale deed.

3. Flat at Bara Hindu Rao allotted to accused Abha in regard to which the argument addressed was that prosecution was unable to prove that accused Abha had actually paid up Rs. 3 lacs which was the amount shown standing to her credit by the Developer when the allotment of the flat was transferred in her name from a previous allottee.

4. Flat at Bara Hindu Rao in the name of Kanak Lata which was admitted by the accused but it was contended that the same had been purchased from HUF Funds and duly reflected in IT returns. It was contended that this property was HUF property in the name of Sanjiv Kumar, Kanak Lata, M. Kumar and Rajiv Kumar and hence, Rs. 5 lacs is to be divided amongst above mentioned 4 persons i.e. Rs. 1.25 lacs each and not be treated as sole asset/expense of Kanak Lata. Consequently, the expense for A□, A□2 and A□3 collectively should be taken as Rs. 3.75 lacs.

5. Allotment of plot at Sushant Lok in the name of accused Kanak Lata, Dr. Maheshwar Kumar and Snighda Kumar (daughter of accused Sanjiv under guardianship of accused Sanjiv) in regard to which the argument addressed was that prosecution has not been able to prove the allotment itself.

However, strangely enough, while submitting its own calculations on statement A,B,C&D, accused persons in statement B (at pg. 32, entry no. 35) contended that the purchase of this property was financed by the VDIS amount disclosure by M. Kumar and further, that out of Rs. 7,76,000, only Rs. 6 lacs should be taken as expense since Rs. 1,76,000 was the sale price component which was deposited immediately before the check period i.e. on 31.3.1996.

6. Flat at Power Welfare Organisation, Gurgaon in the name of M. Kumar and Kanak Lata which was admitted by the accused but with the clarification that it was financed jointly by accused Kanak Lata, Dr. Maheshwar and Dr. Rajiv Kumar and hence, this was also an HUF property.

7. Plot allotted to accused Abha Kumar in Faridabad by HUDA from CM Haryana's discretionary quota in regard to which argument addressed was that the allotment was prior to the check period

and further that except for payment of 1 installment, nothing had been paid thereafter which fact was proved by the prosecution witness itself.

8. Plot allotted to accused Kanak Lata in Faridabad by HUDA from CM Haryana's discretionary quota in regard to which also the argument addressed was that the allotment was done prior to the check period and further that except for payment of 1 installment, nothing had been paid thereafter which fact was proved by the prosecution witness itself.

9. Bank account in Syndicate Bank, Khan Market from which accused Abha allegedly cumulatively paid Rs. 6 lacs through 2 cheques to Cosmos Management in regard to which the argument addressed was that prosecution had neither been able to prove that the account from which the cheques were issued was in the name of Abha nor proved the relevant account statement reflecting the debit of those 2 cheques in favour of Cosmos Management.

10. Bank account no. 16887 in OBC, Gurgaon in the joint names of accused Kanak Lata, Abha Kumar and Dr. Maheshwar Kumar in which high value transactions of Rs. 18 lacs and Rs. 7 lacs towards share investments were allegedly executed by accused Kanak Lata in favour of Vandana Investments (related to PW 41), in response to which the argument addressed was that neither was the account proved to be in the name of accused persons nor was the account statement showing the alleged high value transaction by Kanak Lata proved by the prosecution.

11. Jewelry worth of Rs. 14 lacs found in the ICICI locker jointly held by accused Abha, Kanak Lata and Maheshwar Kumar was actually the street jewelry of accused Abha, accused Kanak Lata and wife of Dr. Rajiv Kumar (brother of accused Sanjiv who is settled in UK). The valuation report of govt. approved valuer PW 2 was assailed as being of no evidentiary value.

12. Transfer of Rs. 15 lacs by Hukum Singh to accused Sanjiv Kumar to which the accused responded by submitting that the said amount was actually a loan taken by Dr. Rajiv from Hukum Singh who was his old patient.

13. Investment in Post Office savings, Tax saving bonds, LIC policies were all financed through the legitimate sources of income of the accused.

14. Income of accused Sanjiv earned through salary/suspension allowance during the check period as also of the other accused persons through legitimate sources has either not been correctly computed in the charge sheet or has been deliberately ignored by the IO.

15. Certain expenditure entries have been doubled up by also showing the same entries as assets.

16. Certain entries which have been shown as assets e.g. interest income should have been shown as entries under the Head of income.

Following judgments were relied upon by the Ld. Sr. Public Prosecutor and by accused persons/ld. defense counsel, respectively:

Judgments Cited By The Prosecution On the issue of contradiction with previous statement of a witness:

In reference to the testimony of PW 47 RK Sharma before the Special Judge, CBI, Chandigarh in case no. CC No. 29 of 30.8.2008. All of the following judgments were in rebuttal to the legal submission of accused no. 1 that testimony of PW 47 RK Sharma should be ignored since he had already deposed on the same issue against accused Sanjiv in another trial conducted by the Special CBI Court i.e. issue estoppel.

The argument raised by the prosecution was that PW 47 RK Sharma should have been first shown his testimony recorded by the Special CBI Court at Chandigarh if the accused no. 1 wanted to contradict the witness.

1. Raveen Kumar Vs State of Himachal Pradesh Crl. Appeal Nos. 2187-88 of 2011 (decided by Hon'ble Supreme Court on 26.10.2020)

2. V.K. Mishra v. State of Uttarakhand 2015 AIR (SC) 3043

3. Chinnammal v. State of Tamil Nadu 1997 (1) SCC 145

4. Balakram v. State of Uttarakhand 2017 AIR (SC) 2375

5. Binay Kumar Singh v. State of Bihar 1997 AIR (SC) 322

6. Hira Lal Paswan @ Hira Lala Ram v. State of Bihar, (Patna) (DB) 2018(3) PLJR 986 On the issue of what is "Lawful Income": Prosecution argued that gifts received by the accused no. 1 and 2 were outside the ambit of lawful income, and further that the burden of proof to prove the source of income shifts to the accused once the prosecution is able to establish disproportionate income/assets. In support of the submission, ld. Sr. PP relied on the following judgments by highlighting the short notes which also have been reproduced below alongwith the judgment citation.

1. State of Karnataka v. Selvi J. Jayalalitha 2017 (6) SCC 263 Amount of gift received by a public servant is not a legal source of income □ Disclosure of gifts in income tax returns does not make them lawful.

Law does not require the prosecution to prove the impossible □ All that was required is the establishment of such a degree of probability that a prudent man may on this basis believe in the existence of the fact in issue.

2. Bhaskar Shankar Wagh v. State of Maharashtra 2008 (4) AIR Bom. R 185 'Known sources of income' means income received from any lawful source and such receipt has been intimated in accordance with provisions of any law, rules or orders for time being applicable to a public servant."

On the effect of income disclosed in Income Tax Returns (ITR's) □ Mere declaration in ITRs won't legitimize the income/wealth:

1. State of Karnataka v. Selvi J. Jayalalitha 2017(6) SCC 263 Neither the income tax returns nor the orders passed in the proceedings relatable thereto, either definitively attest the lawfulness of the sources of income of the accused persons or are of any avail to them to satisfactorily account the disproportionateness of their pecuniary resources and properties as mandated by Section 13(1)(e) of the Act.

2. S. Narayanan v. Deputy Director of CBI (Madras), 2017(4) MLJ (Criminal) 248 Adjudication under Income Tax Act □ Effect of □ Purpose of Income Tax Act and the Prevention of Corruption Act held to be distinct and different □ They play on a different domain and, therefore, any adjudication under the Income Tax Act shall have a very less bearing in the criminal prosecution initiated under the Prevention of Corruption Act. The intention of the Income Tax Act is to levy and collect tax on income. Payment of tax on income is immaterial when prosecution is launched on the premise that the income in the hands of the accused is a tainted or ill □ gotten income.

On the issue of validity of Sanction for prosecution of accused Sanjiv: Defense had scathingly attacked the sanction order on the ground that Under Secretary (PW3) was not the competent witness to depose about grant of sanction for prosecution. Also, it was argued that the witness i.e. PW 3 could not satisfy the Court regarding the relevant material sent to the concerned Minister □ In □ Charge for his informed decision to grant approval for prosecution. Meeting the above argument, ld. Senior PP relied on the following judgments to contend the not only was PW3 a competent witness but the formal sanction order passed by him was legal.

1. Dharmendra Kumar Mohanji Mishra v. State Of Gujarat (Gujarat) 2009 Cri.LJ 4327 Sanction order passed by Under Secretary to Government of India under transaction of business rules □ Notification dated 3rd November, 1958 provides that Under Secretary to the Government of India is competent to make and execute the order in the name of the President or Finance Minister. Sanction was held valid.

2. Hawa Singh v. CBI 2012(4) ILR (Delhi) 290 Sanction for prosecution □ Competent authority has accorded 'approved' to prosecute the petitioner after due application of mind to the material placed before him □ The Under Secretary who issued the sanction order was duly authorised under Government of India (Transaction of Business Rules) to issue the sanction order and non □ examination of sanctioning authority by the prosecution does not have the effect of declaring the sanction to be invalid □ Merely because order is a verbatim copy of draft order, it cannot be said to be suffering from non □ application of mind.

3. Priyanath Misra v. The Additional Superintendent of Police, CBI/ACB/Chennai (Madras), 2018 Cri. LJ 2350 Sanction accorded by the President of India □ Same communicated through Under Secretary □ Resultantly, sanction held to be accorded by the competent authority.

On the defense submission qua applicability of the principle of Audi Alteram Partem at the stage of grant of sanction for prosecution

1. Neera Yadav v. Central Bureau of Investigation (Allahabad), 2016(5) R.C.R.(Criminal) 246
Sanction for prosecution □ Order of prosecution sanction is an administrative act where question of giving opportunity of being heard at that stage does not arise.

Qua irregularities in investigation:

1. Leela Ram (Dead) through Duli Chand v. State of Haryana, 1999 AIR (SC) 3717 Any irregularity or even an illegality during investigation ought not be treated as a ground to reject prosecution case. Evidence is to be considered from the point of trustworthiness □ If this element is satisfied they ought to inspire confidence in mind of the court.

2. Amar Singh v. Balwinder Singh 2003 AIR (SC) 1164 In cases of defective investigation the court has to be circumspect in evaluating the evidence but it would not be right in acquitting an accused person solely on account of the defect and to do so would tantamount to playing into the hands of the investigating officer if the investigation is designedly defective.

Judgments Cited On Behalf Of A□2 And A□4 On the issue of valid sanction for prosecution of public servant:

Applicability of the principle of Audi Alteram Partem and related principles

1. State of Maharashtra Vs. Ramkrishna Dorkar, 1994 SCC Online Bom 416 It was held that no sanction can be granted in respect of an offence unless the sanctioning authority has accorded an opportunity to the accused to explain satisfactorily the disproportionate assets found.

2. Ishwar Piraj Kalpatri Vs State of Maharashtra, 1992 SCC Online Bom 400 Opportunity to satisfactorily account for the assets, allegedly disproportionate to the source of income of the accused, must be afforded before the offence is registered.

3. R.S. Nayak Vs A.R. Antulay, AIR 1984 Supreme Court 684 Grant of sanction is not an idle formality but a solemn and sacrosanct act which removes the umbrella of protection of Government servants against frivolous prosecutions and the aforesaid requirements must therefore, be strictly complied before any prosecution could be launched against public servants

4. Mohd. Iqbal Ahmed Vs. State of Andhra Pradesh (1979) 4 SCC 172 Sanctioning authority must be shown to have applied its mind.

No presumption regarding the satisfaction arising on facts. In absence of any valid sanction, whole prosecution was held invalid.

5. State Vs. Mukesh Kumar Singh 248 (2018) Delhi Law Times 564 (Delhi High Court) Mere fact that there is "error, omission or irregularity" in order of sanction cannot result in cognizance being held to be bad or prosecution to be interdicted unless it is demonstrated that such defect in sanction for prosecution have occasioned "failure of justice". Plea of public servant who is accused of such offences as are involved herein about "error, omission or irregularity" is the sanction for his prosecution occasioning or resulting in failure of justice cannot result in Court intervening unless such objection is raised at "earlier stage of proceedings".

6. Manohar Lal Vs. State 2006 Crl. L.J. 1029 (J&K High Court) Sanction for prosecution was accorded on the basis of draft sanction order sent by the investigating officer to sanctioning authority and same was held invalid.

7. Om Prakash Vs State (CBI) Crl. A. No. 232/99 decided on 15/10/2008 (Delhi High Court) Held that sanction was not valid as the sanction order was not prepared under dictation of sanctioning authority.

8. Ashok Kumar Aggarwal Vs CBI , I (2016) DLT (Crl.) 539 Delhi High Court CBI Vs Ashok Kumar Aggarwal 2013 STPL (web) 923 SC Suppression of truth is equivalent to expression of false and malafide.

On the point of applicability of principle of Issue Estoppel in criminal proceedings:

1. Sangeetaben Mahendrabhai Patel Vs. State of Gujarat & another, 2012 (7) SCC 621 (para 23) Where an issue of fact has already been decided by a competent court and a finding is given in favour of the accused, such a finding would constitute an estoppel or res judicata against the prosecution in subsequent proceedings.

2. Manipur Administration Vs Thokcham Bira Singh, 1964 (7) SCR 123 Section 403 Cr. PC does not preclude the applicability of this rule of issue of estoppel in criminal matters.

On the relevance of assets shown in the ITR's:

Rekha Nambiar Vs. State, WP (Crl.) 1432/2014 and Crl. M.C. No. 4781/2014 decided on 4.11.2015 When the alleged money is duly shown in the books of accounts and in the ITRs, the authenticity and credibility of the same cannot be doubted in a case of disproportionate assets.

Judgments cited by Defense at the stage of Clarifications:

1. Rekha Nambiar Vs. State, 224 (2015) DLT 379

2. M Krishna Reddy Vs State, Dy. Supdt. Of Police, Hyderabad, 1992 (4) SCC 45

3. State of Andhra Pradesh Vs. J. Satyanarayana, 2017 (6) SCC 628

4. State of MP Vs Mohanlal Soni, 2000 (6) SCC 338

5. Mohd. Mumtaz Vs. Nandini Satpathy, 1987 (1) SCC 729 In all of the above judgments, it was held that Income Tax Return is an unassailable document and assets duly declared in the ITR cannot be termed as disproportionate assets.

1. Shamsher Singh Verma Vs. State of Haryana, 2016 (15) SCC 485

2. Farid Hussinsab Vs State of Maharashtra, Crl.

Appeal No. 970/2019, High Court of Bombay

3. Saddiq & Ors. Vs. State, 1980 SCC Online All

4. Boraiah Vs State, 2003 (2) RCR (Criminal) 160 In all of the above judgments, it was held that in case of a prosecution 'relied upon' document, once admitted by the accused, has to be read in evidence and need not be formally proved. The prosecution having relied upon the same cannot later raise doubts on the genuineness or authenticity of the same. The cited judgments were in response to the argument addressed by the prosecution that entries in the ITR's cannot be accepted per se as being truthful even though those ITR's were led as prosecution evidence.

FINDINGS:

98. Before advertng to the merits of the arguments addressed and returning findings thereon, it is important to remember that disproportionate assets of primary accused Sanjiv Kumar have been calculated by adding the assets of his wife and both the parents. It has been alleged that accused Sanjiv Kumar held/created disproportionate assets in his own name as also in the name of his 'dependent' family members. However, it needs a highlight that Dr. Maheshwar Kumar (A-3) had retired from the Indian Railway Medical Services in 1988 at the position of Chief Surgeon and after taking voluntary retirement in 1988 was a practicing general surgeon at Dhanbad to which effect, evidence was led by the prosecution itself. Additionally, Dr. Maheshwar Kumar was drawing pension also, had rent income from immovable property which was constructed much prior to the check period and income from agriculture, all of which has been reflected in his income tax returns. None of these facts concerning Dr. Maheshwar Kumar have been denied or disputed by the prosecution. In this backdrop, in the understanding of the Court, prosecution had to prove as a threshold requirement that accused Maheshwar Kumar and Kanak Lata were 'dependents' of Sanjiv Kumar such that all of their assets created and expenses incurred during the

check period can be said to have been financed/sourced by accused Sanjiv Kumar alone.

The prosecution proceeded on the assumption that whatever 'assets' of accused A - 3 and A - 4 were created during the check period, were financed by accused Sanjiv Kumar. The prosecution, therefore, clubbed income, assets and expenditure of all the 4 accused during the check period to arrive at a figure of Rs. 4 crores of alleged disproportionate assets. This Court, however, will segregate the assets, income and expenditure of the accused persons and while discussing each of the allegedly disproportionate assets especially the contentious assets, will assess whether prosecution has been able to lead any reliable evidence to link the creation of assets of accused Maheshwar Kumar and Kanak Lata with accused Sanjiv. In other words, the Court will avoid "all in the pot" approach.

99. There were certain highly contentious 'assets' which included movable as also immobile assets to prove which prosecution led specific evidence. After the culmination of final arguments, Id. Counsel for A-2 and A-3 filed a chart of assets, income and expenditure of accused persons which in the opinion of the accused was the correct chart. CBI also filed its response to the same wherein certain entries under the head of income, assets and expenditure as given in the chart provided by the accused persons was admitted whereas others were objected to. The comparison of said Charts will be taken up for discussion after assessing evidence qua the contentious assets i.e. the then Prime Minister of India.

100. However, before proceeding to discuss prosecution evidence qua the contentious 'assets', Court will have to take up the issue of legality of sanction for prosecution of accused Sanjiv Kumar which was granted by the competent authority.

On the point of Sanction for prosecution of accused Sanjiv Kumar:

101. Being a serving public servant at the relevant time, sanction had to be obtained from the competent authority before proceeding to prosecute accused Sanjiv Kumar. The competent authority to grant sanction for prosecution was the Minister in charge of the Department of Personnel and Training, Ministry of Personnel, Public Grievances and Pensions which at the relevant time was the then Prime Minister of India Dr. Manmohan Singh. PW 3 Vijay Kumar stepped in to depose regarding the sanction accorded by the then Minister in charge. PW 3 was Under Secretary in the above deptt. at the relevant time and had dealt with the proposal for seeking sanction for prosecution of accused Sanjiv Kumar. In his chief examination, this Witness deposed that alongwith the proposal for seeking sanction for prosecution, CBI had sent all documents and statements of witnesses relied upon by it and thereafter, explained in detail the procedure which was followed after receiving proposal from CBI for grant of sanction for prosecution i.e. comments were sought from the Govt. Of Haryana, opinion of the CVC was sought and after receiving recommendation of the Govt. of Haryana and CVC in favour of grant of sanction, the matter was processed by the witness. He prepared a 'note' for the consideration of Minister in Charge. The approval for sanction was conveyed by the PMO whereafter the draft sanction order was put up before the Joint Secy., Ministry of Personnel and after getting his approval, the sanction order was

signed by the Witness and conveyed to the CBI.

102. In cross-examination on behalf of accused Sanjiv Kumar, witness was unable to specify as to what all documents were sent by the CBI along with proposal for sanction. Witness further deposed that he had not brought the file containing the noting prepared by him and which was sent to the Minister-in-Charge. Witness also deposed that on the basis of material sent by the CBI, he had prepared a summary of the case in his noting along with his prima facie view that there was material on record to accord sanction. In reply to a specific question, witness answered that actual sanction order Ex. PW3/A was not approved or signed by the Minister-in-Charge and neither was the draft sanction order sent to the Minister-in-Charge along with the noting. However, Witness clarified that approval by the Minister-in-Charge was given on the file below his 'noting'. Witness admitted that he was not aware as to who had examined the entire material or assisted the Minister-in-Charge while giving approval on the file. Witness thereafter denied suggestions to the effect that sanction for prosecution was granted without going through the material on record or independent application of mind, and that he was not the competent witness to depose on the aspect of grant of sanction for prosecution of accused Sanjiv Kumar.

103. Id. Counsel for A² and A⁴ argued at length on the illegality of the sanction order. The crux of his arguments in this regard was that the Court was not shown as to on what basis was the noting prepared by the witness and sent forward to the Minister-in-Charge with his own recommendation/prima facie view in favour of grant of sanction. It was explained by the Id. Counsel that unless the file containing the noting of the Witness was shown to the Court, the Court cannot come to any definite conclusion in regard to whether all the relevant material was sent to the sanctioning authority i.e. Minister-in-Charge. Additionally, this Court also put it to the Id. Sr. PP that if the Witness had merely sent a summary of the material sent by the CBI, how was it to be judged whether all the relevant material was sent to the Minister-in-Charge for his consideration? Id. Counsel for A² and A⁴ also raised the argument of denial of the principle of audi alteram partem to accused Sanjiv by contending that the sanctioning authority should have granted an opportunity of hearing to the accused. For this submission, Id. Counsel relied on a judgment delivered by the Hon'ble Bombay High Court.

104. In response to the defense arguments, Id. Sr. PP relied on a string of judgments to contend that signing of the final sanction order by the Under Secretary was legal and suffered from no illegality or infirmity.

105. It was explained by the Id. Sr. PP that approval of sanction for prosecution by the competent authority must not be confused with issuance of formal authorisation conveying the sanction of prosecution. Id. Sr. PP further submitted that there is no dispute about the fact that approval for sanction for prosecution was granted by the competent authority i.e. Minister-in-Charge. Perusal of the sanction order clearly expresses that the Minister-in-Charge considered all the relevant material which was sent up for his consideration. There was nothing to infer from the language of the sanction order that grant of sanction was accorded as a mere formality, without application of mind and without considering the relevant material sent by the CBI. Replying specifically to the Court query, Id. Sr. PP submitted that only because the witness stated about having prepared a

'summary' on the basis of material received along with the proposal from CBI does not mean that the relevant material was not sent up to the Minister ☐ In ☐ Charge. Preparation of summary was a necessary exercise as a part of the discharge of the official responsibilities of the Witness since the file was to be up ☐ marked to the top brass. It is thus obvious that the Under Secretary, as the witness was then, would have prepared a summary for the convenience of the superiors. Merely because the witness prepared a summary of the material sent by CBI cannot be inferred to mean that only the summary was sent up to the Minister ☐ In ☐ Charge. Ld. Sr. PP further highlighted that even towards the end of the cross ☐ examination of the witness, no suggestion was given to the witness that relevant material was held back by the witness and not sent up to the Minister ☐ In ☐ Charge. Consequently, it was submitted that the non ☐ production of 'noting file' on which approval was granted by the Minister ☐ In ☐ Charge is not of much consequence.

106. So far as the argument of denial of audi alteram partem is concerned, ld. Sr. PP also cited a judgment of Hon'ble Allahbad High Court wherein it has been held that sanctioning authority need not give any opportunity of hearing to the accused before refusing or according sanction for prosecution.

107. Having duly considered rival submissions on the point of sanction, this Court would agree with the submissions of the ld. Sr. PP. The explanation given in response to the specific query by the Court in regard to the preparation of 'summary' by the Witness is convincing and logical. Further, non ☐ production of the file containing the noting of the Witness is not of any consequence once it is clear from the sanction order that the sanctioning authority had considered all the relevant material which further conveys application of mind by the sanctioning authority. Judgments cited by the ld. Sr. PP (highlighted above) leave no scope for doubt that formal sanction order could be validly issued by the Under Secretary of the Department. I, therefore, find no reason to conclude that the sanction order was vitiated with any sort of illegality. Furthermore, I agree with the submission of Ld. Sr. PP that this was not the stage to grant an opportunity of hearing by the Sanctioning Authority to the public servant.

108. I shall now proceed to discuss the prosecution evidence led qua proving the allegedly disproportionate assets of accused Sanjiv Kumar which includes assets of his wife Abha Kumar, father Dr. M. Kumar and mother Kanak Lata.

Immovable assets created during the check period:

Of Accused Kanak Lata

109. Farm house in village Dhumuspur, Gurgaon - This immovable property was purchased by accused Kanak Lata on 3.6.1997 from 5 brothers who were co ☐ owners of the land in question. The land measured 1 acre. Some unfinished construction was also carried out on the land by accused Kanak Lata.

110. In order to prove the monetary value of this property, prosecution led contradictory evidence. There was a valuation of this property carried out by Ms. Kanak Lata in the year 2005 from an

architect Mr. G.P. Gujral (PW 16). As per this valuation, the purchase value of property was shown as Rs. 4.5 lacs whereas the construction carried out on this land was estimated at a value of Rs. 10.5 lacs, making the cumulative value of the property to be Rs. 15 lacs. This valuation report was exhibited as Ex. PW16/A and the same was not denied by Ms. Kanak Lata. Mr. Gujral was brought in as PW 16 to prove this valuation. Further, 4 other witnesses were brought in to prove the 'actual sale price' of this farmhouse which as per the prosecution was Rs. 12.5 lacs and not Rs. 4.5 lacs. 2 of these witnesses were the intermediaries of the sale transaction i.e. Phire Ram and Jagat Ram whereas the other two were the co-owners of this property i.e. Rajpal and Hansraj. Before the Court, Phire Ram and Jagat Ram did not depose anything about the sale price of the farmhouse being Rs. 12.5 lacs. Perusal of the 161 Cr. PC statement of Jagat Ram recorded on 5.7.2006 reveals that the sale negotiations took place at the house of Phire Ram. However, Phire Ram as PW 10 did not testify anything on this count neither did Jagat Ram as PW 12. Both of them simply stated that sale amount had already been paid by the purchaser. PW 35 Rajpal, however, deposed that actual sale price was Rs. 12.5 lacs but mentioned as Rs. 4.5 lacs in the sale deed. It is interesting to note that in the initial statement of Rajpal recorded u/s 161 Cr. PC on 16.5.2005, this witness stated before the IO that the property was sold for Rs. 4.5 lacs and that each of the 5 brothers invested his share of Rs. 85K in Kisan Vikas Patra. Statement of 3 other co-owners recorded on 16.5.2005 is also verbatim to the statement of Rajpal. Strangely enough, after more than a year, on 29.6.2006, Rajpal was again summoned by the IO to give supp. Statement wherein he completely changed his version of the actual sale price and pegged it at Rs. 12.5 lacs without explaining as to why had he mentioned Rs. 4.5 lacs in his initial statement. Even more intriguing is that the IO, ostensibly to get corroboration for the supp. statement of Rajpal, then recorded the statement of Jagat Ram on 5.7.2006 who was supposedly an intermediary from the side of Ms. Kanak Lata. Jagat Ram stated before the IO about the sale negotiation having taken place at the house of Phire Ram and the actual price being Rs. 12.5 lacs. Phire Ram's statement was also recorded to the same effect on 29.6.2006, the same day when Rajpal's supplementary statement was recorded. However, as PW's, neither Jagat Ram nor Phire Ram supported the prosecution version. PW 35 Rajpal on the other hand, in his chief exam., deposed about the actual sale price of the land being 12.5 lacs but in cross-examination stated that he could neither admit nor deny that in his initial statement before the IO recorded on 16.5.2005, he had stated the sale price as Rs. 4.5 lacs. Relevant to highlight that apart from Rajpal, none of the other 3 co-owners were summoned by the IO to give a supp. statement with regard to the value of the land being Rs. 12.5 lacs. However, one of the co-owners Hansraj came in as PW 36 and also deposed that the sale price was actually Rs. 12.5 lacs. In cross-examination, he denied having stated to the IO (u/s 161 Cr.PC) about the sale price being Rs.

4.5 lacs but also admitted that some writing work was done when he visited the office of CBI. Interesting to note that Hansraj was never called by the IO to give a supp. statement like Rajpal. Hansraj's statement u/s 161 Cr. PC mentions that the sale price was Rs. 4.5 lacs but before the Court, he deposed about the sale price being Rs. 12.5 lacs. Needless to say that Hansraj was mentioned as a witness in the list of prosecution witnesses which was possible only if he had been interrogated during the investigation which fact is proved from the statement of Hansraj recorded u/s 161 Cr.PC. Further, the court has not been able to fathom as to why did the prosecution prove the valuation report through PW 16 Mr. Gujral which mentioned the sale price of farmhouse as Rs. 4.5 lacs and then brought in oral evidence to contradict its own documentary evidence to suggest that the sale

price was actually much higher. The prosecution evidence on the value of farmhouse 'actually' being Rs. 12.5 lacs and not Rs. 4.5 lacs is thus grossly deficient and uninspiring. There appears to be a concerted effort on the part of the IO to deliberately prop up the alleged asset value of the farmhouse for some inexplicable reason.

111. Proceeding further, the only link of the purchase of this farmhouse with accused Sanjiv Kumar which the prosecution has been able to prove is that the owners/intermediaries of the sale transaction were aware that the land has to be sold to the mother of Deputy Commissioner of Gurgaon. None of the prosecution witnesses brought in to prove the sale of farmhouse to Ms. Kanak Lata have deposed anything regarding the payment of sale amount having been made by Sanjiv Kumar. Further, there is no evidence led by the prosecution that the amount of Rs. 4.5 lacs were paid from any of the bank accounts of Sanjiv Kumar (as per witnesses, sale price was paid in cash). The witnesses only deposed that Ms. Kanak Lata was not present at the time of registration sale deed though all of them identified the picture of Ms. Kanak Lata on the sale deed. However, the non presence of Ms. Kanak Lata at the time of registration of sale deed does not in any manner connect accused Sanjiv Kumar with the payment of sale price of Rs. 4.5 lacs nor has the prosecution been able to prove in any manner that the construction which was carried out on the farmhouse after its purchase was financed by accused Sanjiv Kumar.

112. Unit/Flat in Bara Hindu Rao, (DCM Techno Plaza Project) - This flat/unit was purchased by Ms. Kanak Lata in the year 1997. Land in Kishan Ganj, Bara Hindu Rao was given for development by DCM Ltd. to Ansals and Kailashnath Associates respectively under separate agreements in 1986 and 1988. Some of the bookings were carried out by Kailashnath Associates whereas some were done by Ansals. Eventually however, the land could not be developed and DCM Ltd. again took over the land from Ansals and Kailashnath Associates in yr. 2000 alongwith all the bookings done by them. DCM Ltd. had a corporate restructuring exercise with DCM Infra in 2004 pursuant to which this land was to be handled by DCM Infra. Ltd. Later on, DCM Infra. Ltd. changed to PureEarth Infra. in the yr. 2005. PW 21 Ajay Khanna (from PureEarth Infra.Ltd.) came in to depose about the allotment of unit to Ms. Kanak Lata. The allotment of unit in Bara Hindu Rao Project has not been denied by Ms. Kanak Lata as no cross examination was done on this aspect on behalf of Kanak Lata. The total price of the plot was Rs. 20 lacs. However, evidence led is to the extent of payment of Rs. 5 lacs for this plot by Kanak Lata all of which was paid through various bank instruments. Here again, prosecution has not been able to link the payment of this flat/unit with accused Sanjiv Kumar in any manner. PW 21 did not depose anything about any amount of booking or sale price having been paid by Sanjiv Kumar nor was the prosecution able to lead any evidence that Rs. 5 lacs deposited by Kanak Lata was financed by Sanjiv Kumar. It needs a highlight that accused Sanjiv claimed that this property was purchased from HUF Funds for which he relied on an affidavit dt. 16.9.98 (Mark PW 46/DH) of Kanak Lata wherein she has affirmed that property was purchased from HUF funds and so Sanjiv Kumar, Rajiv Kumar and Maheshwar Kumar should be added as owners of the property. It was further contended that since it was an HUF property, the asset value of Rs. 5 lacs should not be attributed solely to Kanak Lata but divided 4 ways with Rajiv Kumar also being an HUF owner to the extent of Rs.1.25 lacs and consequently, the asset value for the purpose of this case should be taken as Rs. 3.75 lacs i.e. deducting the value of Rs. 1.25 lacs attributable to Dr. Rajiv Kumar. The argument advanced is ludicrous to say the least. It is the foundational defense plea that HUF of Dr.

Maheshwar Kumar consisting of himself, Kanak Lata, Sanjiv Kr. and Dr. Rajiv Kr. was dissolved in 1988 and properties were partitioned amongst these 4 persons. Thereafter, HUFs of Sanjiv Kr. and Dr. Rajiv Kr. were formed. If that be so, how could this HUF suddenly revive in 1998? Further, once the HUF stood dissolved in 1988, how can the defense plea of this property being purchased from HUF funds be accepted? The argument is therefore not tenable.

113. Plot in sector 28, Faridabad - This plot was allotted to Ms. Kanak Lata in the year 1994 from the Chief Minister's discretionary quota in HUDA (Haryana Urban Development Authority). At the relevant time, accused Sanjiv Kumar was posted as Deputy Commissioner, Hissar (Haryana). The allotment application mentions the address of Ms. Kanak Lata as c/o D.C. Hissar. The evidence led shows that apart from the initial installment of Rs. 19163, no other payment was made by Ms. Kanak Lata. The total purchase price was Rs. 76550 which was to be paid in installments over a period of 6 years. However, soon after the allotment process, the same was challenged and then quashed. However, the allotment process was restored with legitimacy by the Hon'ble Supreme Court but by that time accused Sanjiv Kumar had fallen out of favour with the State Government and was actually on the run after taking the lid off the JBT recruitment scam where after Sanjiv Kumar was placed under suspension. Though the evidence led by PW 7 shows that till the date of his deposition, the allotment had not been cancelled, the fact also stands confirmed that except for initial allotment installment of Rs. 19163 nothing was paid by Ms. Kanak Lata. This amount of Rs. 19163 however has been taken in the Charge sheet as an asset. This Court is unable to accept the rationale behind the same. The check period starts from 1.4.96 and extends upto 16.2.2005. There is no proof of Ms. Kanak Lata having paid any installment during the check period nor is there any proof that she was put in possession of the plot so as to have some kind of disposable rights over it. Allotment of a plot on payment of first installment and its ripening into ownership are entirely different things. The ownership process is much more elaborate which is dependent on all due payment having been made and then a conveyance deed being executed and registered. Prosecution evidence itself shows that apart from the first installment which also was paid in the pre-check period, no other installments were paid. In such a case, the initial payment of Rs. 19163 cannot be taken as asset since no asset was created. The fact that allotment might still stand in the name of Kanak Lata does not in any manner prove her ownership over the same. At best, it only gives her a right to deposit remaining installments but which she has not done for the last almost 19 years. It is upto the HUDA to have cancelled the allotment by now since no allotment can remain subsisting for such a long time without installments having been paid but for the inaction of HUDA, the allottee cannot be held to be owner of the plot in the context of the present case i.e. as an asset holder. She has no right to deal in the plot till it ripens onto ownership or to deal with it without the permission of the HUDA which is a state instrumentality. There is nothing to show that Kanak Lata has at any point of time sought to dispose off the plot which could even prima facie convey that it was an expendable asset. Even the concerned prosecution witness (PW 7) did not depose in any manner in his chief examination which can be construed that as allottee of the said plot, Kanak Lata was in possession of an expendable asset. To prove this allotment as an asset, it was incumbent upon the public prosecutor to have questioned the concerned PW with regard to the ownership rights or allied rights of the allottee (Kanak Lata in the present case) over the said plot. However, no such questions were put. The witness merely informed the court about the initial allotment installment having been paid. In view of the above, this court is unable to consider Rs. 19163 as an asset of Ms. Kanak Lata.

114. Plot no. B-03 at Sushant Lok - The original allottees of this plot were Kanak Lata, Sanjiv Kumar, Abha Kumar and Snigdha Kumar. Ms. Kanak Lata was the lead applicant whereas rest 3 were co-allottees. Prosecution summoned 2 witnesses to prove allotment of this plot. First witness i.e. PW 19 T. Rajan from the office of Ansal Properties (developer of Sushant Lok) did not prove any document relating to the allotment of this plot. Subsequently, PW 42 stepped in to prove the allotment. The documents collected during investigation included 2 application forms and few affidavits executed by the original and transposed allottee. The initial allotment form Ex. PW 42/2 was filled up by Ms. Kanak Lata, Abha Kumar, Snigdha and Sanjiv Kumar. However, the 2nd form Ex. PW 42/3 was filled up by Kanak Lata, Maheshwar Kumar and Snigdha Kumar (under guardianship of Sanjiv Kumar). The IO also collected affidavits of Kanak Lata, Abha Kumar, Sanjiv Kumar, Snigdha Kumar and Maheshwar Kumar which were to the effect that Maheshwar Kumar is to be transposed as an allottee whereas Abha and Sanjiv Kumar were to exit from the allotment application. The total payment made for the plot was Rs. 7,76,000 out of which Rs. 1,76,000 was paid through cheque on 31.3.96 i.e. immediately before the start of check period. Rest 6 lacs were paid in April and May 1996, in cash. The payment receipts/acknowledgment were issued in the name of Kanak Lata. Though in his chief examination, witness denied that any allotment was made on the basis of Ex. PW42/3 (i.e. 2nd application form), in cross examination he admitted the plot buyer agreement wherein the allottees were stated to be Kanak Lata, Maheshwar Kumar and Snigdha (minor) through Sanjiv Kumar. It was contended during final arguments that prosecution was unable to prove this allotment but in the chart of statements A, B, C & D which was submitted by the accused persons, it was claimed that this property was purchased from the VDIS amount declared by Dr. M. Kumar in 1997. Additionally, since the accused themselves got the plot buyer agreement admitted from PW 42 which clearly mentions accused Kanak, accused Maheshwar and Snigdha as allottees, coupled with the receipts of Rs. 61 lacs issued in the name of Kanak Lata which was put to the witness in cross examination, it is clear that the allotment stood proved. The only question, therefore, is whether the payment of purchase amount of this asset (to the extent of Rs. 6 lacs) can be linked to accused Sanjiv? PW 42 was specifically asked whether in view of the receipts of Rs. 6 lacs, could he state whether the payments were made by Kanak Lata alone or by all the co-owners? In response, witness was unable to answer. Thus, even though daughter of accused Sanjiv was a beneficiary, the prosecution was unable to prove that the payment of this plot had been made in part or full by accused Sanjiv for which reason, the expense of this asset cannot be linked to accused Sanjiv Kumar and as a corollary, the proportionate asset value of this property cannot be transferred to Sanjiv Kumar.

115. Flat in Power Welfare Organisation, sector 43, Gurgaon - Acquisition of this flat was in the name of Mrs. Kanak Lata and Dr. Maheshwar Kumar, in the year 2003 i.e. during the check period. The total value of this flat was Rs. 19,52,000. The accused persons admitted this asset. However, it was argued on behalf of the accused persons that this flat was also an HUF property and hence, the value of this flat should be split up 3 ways - amongst Dr. Maheshwar Kumar, Kanak Lata, and Dr. Rajiv Kumar. The Court however is unable to accept this submission for the reasons which have already been stated while dealing with acquisition by Kanak Lata of Bara Hindu Rao Property. Strangely enough this HUF property is claimed to be of Kanak Lata, Maheshwar Kumar and Rajiv Kumar with Sanjiv Kumar conspicuously missing from this 'new' HUF line up. The accused persons have been creating HUF's at will wherever it suits them. Interestingly, there is no plea that this property was

also procured from HUF funds but that Dr. Rajiv Kumar had invested Rs. 5.50 lacs in the purchase of this property i.e. Dr. Rajiv Kumar has reflected in the IT return Ex. DW11/4. However, there is no bank transfer to confirm this assertion of investment by Dr. Rajiv Kumar. Considering that Dr. Rajiv Kumar is a resident of the UK, it is obvious that any investment made by him in India, whether directly or through his brother/ parents, has to be co-related to a bank transfer. Needless to highlight that the plea of this property also being an HUF property was put forth so as to reduce the expense/asset value attributable to Kanak Lata and Maheshwar Kumar. However, prosecution has no objection to deduction of the share of Rs. 5,05,000 from the total asset value, being the share of Dr. Rajiv Kumar. If the mere assertion of investment by Dr. Rajiv in his IT Return is to be accepted, then Sanjiv Kumar HUF's ITR of AY 2005-06 Ex. PW6/E also has to be taken into account wherein he has mentioned an investment of Rs. 4,51,000 in this very property and hence, to that extent, the asset value has to be attributed to Sanjiv Kumar.

Of Accused Maheshwar Kumar

116. The immovable asset addition which is credited to Dr. Maheshwar Kumar 'individually' during the check period is flat no. 6360, Vasant Kunj. The evidence led by the prosecution to prove that it was the benami property of Sanjiv Kumar was ingenious.

117. The owner of this property was Sh. Prasanna Kumar who was a resident of USA. He had given power of attorney to manage this property to Sh. Pramod Kumar Aggarwal who was listed as a prosecution witness at number 25 but was dropped and was never examined but for which reason is not too far to seek, as will be revealed by the discussion hereinafter. The sale deed of the flat was executed by Pramod K. Aggarwal. Instead of Pramod Kumar Aggarwal, the prosecution brought in SC Chaudhary (PW 18) who was a property dealer and who claimed to have brokered the deal of the flat. He was also a marginal witness to the sale deed.

118. SC Chaudhary deposed that Sanjiv Kumar had approached him for purchase of 2 flats in Vasant Kunj, the other flat being the one purchased by Dr. Rajiv Kumar. He negotiated the deal of one flat @ Rs. 28 lacs. Witness further deposed that Sanjiv Kumar initially gave Rs. 5 lacs in cash as advance money to him which he i.e. SC Chaudhary handed over to one Rajeev Goel who was the brother-in-law of Prasanna Kumar. Thereafter, the balance amount was also paid by Sanjiv Kumar to Pramod Kumar Aggarwal in his presence by way of Demand Draft of Rs. 10 lacs and further cash of Rs. 13 lacs. PW 18 further deposed that all sale negotiations were done by Sanjiv Kumar, that Dr. Maheshwar Kumar was not present even during the execution of sale deed, the possession of the flat was also handed over to Sanjiv Kumar and thereafter, Sanjiv Kumar and his family started residing in this as also the other flat i.e. the one purchased in the name of Dr. Rajiv Kumar. Witness even went to the extent of deposing that common wall of the flats was broken and both the flats were joined when infact both the flats were duplex and on different levels.

119. At this stage, it is important to highlight the statements of Pramod Kumar Aggarwal and Rajeev Goel which were recorded by the IO under section 161 Cr.PC because the content of these statements brings out the reason behind dropping both Pramod K. Aggarwal and Rajeev Goel as prosecution witnesses.

120. Rajeev Goel, in his statement recorded u/s 161 Cr. PC, made no mention whatsoever of SC Chaudhary ever giving him any cash amount or even that SC Chaudhary approached him for sale negotiations. According to Rajeev Goel, the negotiations for the sale of flat no. 6360 were held between Pramod K. Aggarwal and Dr. Maheshwar Kumar through SC Chaudhary. The sale amount was agreed upon as Rs. 10 lacs and the sale deed was accordingly executed. The sale price of Rs. 10 lacs was paid through 2 demand drafts of Rs. 5 lacs each. This statement of Rajeev Goel thus runs absolutely contrary to what SC Chaudhary deposed before the Court. It is thus understandable as to why was Rajeev Goel dropped because had he come in to depose, he would have spoken the truth as was known to him which would have badly hurt the prosecution case. It needs a highlight that Rajeev Goel was also a marginal witness in the sale deed and hence, no stranger to the sale process. But more than his importance of being a marginal witness, it was incumbent upon the prosecution to bring in Rajeev Goel since SC Chaudhary, even in his statement before the IO u/s 161 Cr. PC mentioned about handing over Rs. 5 lacs to Rajeev Goel whereas Rajeev Goel made no mention at all of any contact with SC Chaudhary regarding the sale negotiations. Further, being brother-in-law of the owner Prasanna Kumar, he would have naturally been expected to know the details of the sale negotiations. However, simply because he would not have deposed in favour of the prosecution, Rajeev Goel seemed to have been dropped as a witness. It needs a highlight that Rajeev Goel was called for questioning by the IO on 2 occasions - in 2005 and in 2006. In his 2nd statement, with regard to the sale price, Rajeev Goel made a slight departure from his earlier statement by stating that it is Pramod K Aggarwal who would be in a better position to tell about the total amount transacted between the vendee and the vendor. Subsequently, statement of Pramod K. Aggarwal was also recorded.

121. Dropping of Rajeev Goel as a witness appears to be an extraneous act of the prosecution which gets corroboration from the fact that even Pramod K. Aggarwal was dropped from the list of witnesses even though he was the one who executed the sale deed. His statement u/s 161 Cr. PC also reveals that the sale amount was Rs. 10 lacs which was paid by way of 2 demand drafts. As in the statements of Rajeev Goel, Pramod K. Aggarwal also made no mention at all of Sanjiv Kumar even being a part of either sale negotiations or him handing over any part of the sale amount to Pramod K. Aggarwal. Even if there was any justification to drop Rajeev Goel, there was simply none to drop Pramod K. Aggarwal who was the best witness to depose about the sale price and as to who negotiated the sale process. At this stage of the discussion, it is also relevant to scan the evidence regarding the purchase of Flat no. 6357, Pocket B, Vasant Kunj, New Delhi which was purchased by Dr. Rajiv Kumar through General and Special Power of Attorney/Will since the flat was held as a leasehold by the original owner/allottee Sh. KK Lal.

122. As in the case of flat no. 6360, same witness (i.e. SC Chaudhary) was brought in to prove that this flat was also the benami property of Sanjiv Kumar with Dr. Rajiv Kumar merely acting as a front. It is in this context that it was highlighted at the outset that the Court has not been able to fathom the courtesy extended by the IO to Dr. Rajiv Kumar by leaving him altogether from the ambit of investigation. Nevertheless, the testimony of PW 18 SC Chaudhary in regard to the sale process of both the flats was composite. Qua flat no. 6357 also, PW 18 deposed that Rs. 5 lacs in cash was handed over by Sanjiv Kumar to him which he then handed over to owner KK Lal, that all negotiations were done by Sanjiv Kumar, that Dr. Rajiv Kumar was never in the picture, that the

deal was eventually struck for Rs. 28 lacs out of which KK Lal agreed to accept Rs. 14 lacs in cash and the rest by way of bank instruments, and that balance of Rs. 9 lacs in cash was paid in his presence by accused Sanjiv Kumar to KK Lal.

123. Contrary to this deposition, statement of KK Lal recorded by the IO u/s 161 Cr. PC foretells a completely different story. According to KK Lal, it was Dr. Rajiv Kumar who had come to him alongwith SC Chaudhary for purchase of the flat. KK Lal maintained that the sale price of the flat was Rs. 14 lacs which were paid by way of 7 bank instruments details of which were given in the statement itself. KK Lal further specifically stated that all of these bank instruments were handed over by Dr. Rajiv Kumar to him after the execution of the necessary papers regarding the sale of flat by way of GPA, Will, SPA etc. Still further, KK Lal also deposed that the keys of the flat in question were handed over to Dr. Rajiv Kumar in the presence of SC Chaudhary. It is thus clear that as in the case of Rajeev Goel and Pramod K. Aggarwal, KK Lal was also dropped as a prosecution witness since his testimony would have been detrimental to the prosecution case and hence, the prosecution thought it best to leave out the testimony of KK Lal despite the fact that he was the best witness to depose in regard to sale of flat no. 6357. However, this does not form the complete picture regarding acquisition of flat no. 6357. As per the charge sheet, the total purchase price of Rs. 14 lacs for this flat was paid by 3 persons - accused Abha who paid Rs. 6.5 lacs vide a bank instrument, Rs. 5 lacs by Tika Hasan vide a pay order and 5 drafts of Rs. 50K each (totaling Rs. 2.5 lac) by SC Gupta (PW 41). Proof of payment of Rs. 6.5 lacs by accused Abha Kumar was furnished by PW 22 who was summoned from Oriental Bank of Commerce, Panchkula. This witness proved certain debit and credit vouchers of a/c no. 6000 in the name of Abha and a/c no. 6064 in the joint name of Sanjiv Kumar and Abha Kumar. Alongwith, debit and credit vouchers, he also proved cheque dt. 11.11.99 of Rs. 6,50,975 issued by accused Abha to 'self' from a/c no. 6000 but which bears an endorsement at the back for issuance of a draft in the name of KK Lal. This witness was not cross examined and further, both these accounts have been owned up by accused Abha and Sanjiv since they have sought the benefit of interest which accrued in these accounts for the purpose of being added in their income during the check period. Even in her statement recorded u/s 313 Cr.PC, accused Abha admitted the issuance of this cheque of Rs. 6,50,975 being a matter of record without furnishing any explanation as to why was this cheque issued or whether this cheque had a corresponding credit entry from Dr. Rajiv Kumar. So far as payment of Rs. 2.5 lacs to KK Lal by SC Gupta (vide 5 drafts) is concerned, SC Gupta admitted that he had got these drafts prepared in the name of KK Lal though he also stated that he didn't know the purpose of these drafts and nor did he know KK Lal. He further denied that he got the drafts prepared at the asking of accused Sanjiv. However, if we tally the details of bank instruments given by KK Lal in his statement to the IO, which he claims were handed over by Dr. Rajiv Kumar, it is clear that KK Lal received the same 5 drafts from SC Gupta (PW41) regarding which there is a clear admission by PW 41. As will be revealed from the succeeding discussion in regard to the allegation of share investments by accused Sanjiv and Abha, there was a clear connect between Abha and SC Gupta which proves that Dr. Rajiv was merely a front in acquiring the flat no. 6357 with the finance for the acquisition of flat coming from 3 different sources none of which could be traced to Dr. Rajiv but major part of which can be clearly linked to Abha and SC Gupta. The payment of Rs. 5 lacs by Tika Hasan Mustafa, as alleged in the chargesheet, was not proved by the prosecution for the reason best known to it. Tika should have been arrayed as an abettor since there was documentary proof of him having paid a part of the

purchase price of flat no. 6357 which though was acquired in the name of Dr. Rajiv Kumar. Even if KK Lal had been cited as a witness, his bank a/c statement would have proved that Dr. Rajiv Kumar did not pay any part of the purchase amount. In defense, accused Sanjiv argued that prosecution deliberately did not prove the statement of a/c no. 6064 OBC, Panchkula (jt. a/c of Abha & Sanjiv) since that would have also proved that they received a sum of Rs. 6,93,460 from Dr. Rajiv Kumar on 8.12.99. To this end, accused Sanjiv also summoned a witness from the OBC, Panchkula to inter alia prove that Rs. 6,93,460 was deposited by Dr. Rajiv Kumar in the joint account of Abha and Sanjiv as reimbursement of Rs. 6.5 lacs paid by her to KK Lal. This Witness i.e. DW 5 however deposed that details of cheque/payⁱⁿ slip/bank instrument vide which the above amount was credited/deposited in a/c no. 6064 was not available being an old record. Accused Sanjiv avoided getting the account statement of a/c no. 6064 proved from this witness and which really intrigues the Court. Even if the detail of bank instrument was not available with the witness from the Bank, in the very least, accused Sanjiv should have got proved the account credit entry of Rs. 6,93,460 from DW 5. During the course of investigation, IO recorded statement of Mr. N K Raheja from OBC, Sector 11, Panchkula who stated that Rs. 6,93,460 was received in the a/c no. 6064 vide foreign remittance of 1000 GBP on 8.12.1999. This witness was summoned by the prosecution as PW 22. Despite this statement and the statement of account also being collected by the IO which necessarily would have been supplied to the accused as well, this account statement was not proved. If the prosecution shied away from proving this account statement, this statement could have been put to PW 22 in cross^{examination} but this witness was not cross^{examination} at all. Further, the witness DW 5 could have also been questioned whether the credit was a foreign remittance or an inland bank transfer. If the amount was an inland transfer, accused Sanjiv could have easily proved the same by summoning the relevant records from the a/c of Dr. Rajiv Kumar since Dr. M. Kumar held the power of attorney in respect of the Indian bank account/s of Dr. Rajiv Kumar. It seems that accused Sanjiv purposely did not get the credit entry proved and instead has tried to take benefit of the defense witnesses' testimony of non^{availability} of bank instrument record so as to express his helplessness in proving that Dr. Rajiv deposited this amount. Court would also like to highlight that even if for the sake of argument we accept the foreign remittance as per the statement of NK Raheja recorded u/s 161 Cr.PC, it still doesn't prove that the foreign remittance was by Dr. Rajiv Kumar and going to the extreme, even accepting that this remittance was by Dr. Rajiv, it still calls for an explanation from the defense as to why was this foreign remittance received almost a month after the flat was transferred in the name of Dr. Rajiv Kumar? Ordinarily, if Dr. Rajiv Kumar had come to India scouting for an immovable property and finalized the same, he would have either paid from his HUF funds/bank a/c maintained in India or would have transferred the amount from his bank a/c in UK to his Indian a/c. The purchase of 2 flats in the same locality and in close vicinity of each other clearly points towards the fact that purchase of these 2 flats was not a chance occurrence but was a planned venture and hence, in the normal course of things Dr. Rajiv would have come armed with sufficient funds to purchase the flat. Therefore, this credit entry of Rs. 6,93,000/^{was} nothing more than a cover up, if at all it was from Dr. Rajiv. It also is surprising that though Dr. Rajiv Kumar could have been summoned as a defense witness to prove this credit entry as also to prove that purchase of flat no. 6357 was financed by him, he was not summoned. If accused Sanjiv could summon his sisterⁱⁿ^{law} Shobha Singh as DW 15 to prove that she repaid loan of Rs. 2.5 lacs, he could have very well brought in his real brother to depose in his defense. Instead, accused Sanjiv Kumar kept on alleging IO's malafide in not examining Dr. Rajiv Kumar. Add to the above observations a very

relevant fact which is the execution of power of attorney by Dr. Rajiv Kumar in favour of Abha Singh to manage the affairs of flat no. 6357 which buttresses the court's belief that flat no. 6357 was indeed a benami property of accused Abha and Sanjiv. Dr. Rajiv had given a power of attorney to his father to manage his HUF affairs. The same should have been done in the ordinary course qua flat no. 6357 also since his father (Dr. M Kumar) also purchased a flat close to his and was to reside there. Instead, Abha was given the power to manage the property including the "power to dispose off" the same as is clear from the recitals of the power of attorney Mark PW46/DC which was put to the IO in his cross-examination. It would have been understandable had Abha been given limited attorney to manage the property but to give her disposing power over the flat points only towards the fact that defacto ownership of the flat was of accused Abha. In the face of testimony of PW 22 (bank witness) and PW 41 (SC Gupta), Accused should have brought in some credible evidence to show that Rs. 14 lacs which KK Lal claims was the sale price, was infact paid by Dr. Rajiv Kumar. All the above facts cumulatively point towards flat no. 6357 being the benami property of accused Abha and Sanjiv. In view of the above discussion, this Court finds it unable to accept the defense plea that flat no. 6357, Vasant Kunj was the property acquired by Dr. Rajiv Kumar during the check period. Further, the fact that ownership of this property has been denied by A-1 and A-2, disentitles them to even explain the acquisition of this property from their accepted income during the check period. However, qua flat no. 6360, this Court accepts the defense plea that it was acquired by Dr. M Kumar. It would also be relevant to highlight at this stage that perusal of Chart C (ii) submitted by the accused persons where they have claimed benefit of additional income on the basis of the ITR's of accused Sanjiv, accused Kanak Lata, Dr. M Kumar, and Dr. Rajiv Kumar shows extraordinary rotation of money amongst them, at times in the form of gifts and at times in the form of loans which really puts these transactions in a circle of serious doubt especially when viewed in the backdrop of acquisition of significant immovable and movable assets during the check period by the accused persons. However, these loans and gifts are a part of the ITR's of the accused persons which were not put to scrutiny during the check period and for which reason, the accused persons have tried to take maximum benefit of the same.

Of Accused Abha Kumar

124. Flat in Bara Hindu Rao - Prosecution had alleged allotment/purchase of a residential flat in Bara Hindu Rao by accused Abha Kumar. PW 21 who proved the allotment of flat in the name of Kanak Lata also brought/proved the relevant records to prove the transfer of allotment of the flat in the name of Abha Kumar. Unlike the allotment of Kanak Lata, the allotment in favour of Abha Kumar was in the form of allotment transfer which is to say that the provisional allotment from the original allottee had been transferred to the subsequent allottees on the subsequent allottee/s having paid the amount already paid by the initial allottee. As per documents proved as Ex. PW 21/B, Abha had taken over the allotment of flat measuring 1500 sq. metres in proposed DCM Green Acres from 4 joint allottees

- Sardar Singh, Mrs. Inderjeet Singh, Charanjeet Singh and Tajinderjeet Singh. The document further recorded that joint allottees have already received the amount of Rs. 3 lacs from Abha Sinha d/o GP Singh which was standing to their credit with a further request that the amount standing in their credit be transferred in the name of Abha Sinha alongwith transfer of provisional booking. This

document bears the signature of accused Abha with her acknowledgment of accepting the booking in terms of the above. There is another document Ex. PW 21/ DA which was put to the witness in his cross examination which shows an account in the name of Abha and credit of Rs. 3 lacs in her name. This document was put to the witness since the amount reflected therein was paid by the original allottee Mrs. Anuradha Aggarwal. The only question put to the witness was whether Abha had made any payment at the time of transfer of booking to which the witness replied that he had no knowledge.

125. So far as the allotment of flat to Abha Kumar is concerned, Witness specified that beyond the provisional booking transfer in the name of Abha Kumar, nothing more has been paid towards this allotment. However, neither Id. PP questioned the witness nor the witness himself commented as to whether the booking is still subsisting. The cross-examination of the witness was carried out with extreme caution with Id. Counsel craftly avoiding questions about whether the allotment still subsists in the name of Abha Kumar. What is relevant is that provisional allotment transfer by accused Abha was not denied i.e. no question or suggestion was given to the Witness to the effect that Abha never applied for this plot or that provisional booking transfer in the name of Abha was never executed. Witness however admitted that he had no knowledge whether at the time of transfer of provisional booking, any payment was made by Abha or not. It is obvious that the witness would not have any knowledge of this since the provisional transfer of allotment was done at the time when the land was under the administration of Kailashnath Assoc. Prosecution evidence in this regard was circumscribed by compulsion since witness from Kailashnath Assoc. would have served no purpose since all the allotment/booking files had been taken back by DCM Ltd. leaving no option for the prosecution but to summon witness from DCM Infra. Ltd. Even though witness could not specify whether Rs. 3 lacs (amount paid by initial allottee) was paid by accused Abha at the time of booking transfer, the fact that there was no cross-examination on behalf of accused Abha in the manner to deny that she ever applied for the plot makes it evident that she was the subsequent allottee. Further, Ex. PW 21/B (file D-65) contains clear and relevant documents which prove that the initial allotment was made to Anuradha Aggarwal who paid Rs. 3 lacs whereafter the allotment was transferred to 4 joint allottees and finally from them to Abha. It also stands recorded in Ex. 21/B that Rs. 3 lacs has been received from Abha by the 4 joint subsequent allottees. Therefore, this Court has no doubt that accused Abha paid Rs. 3 lacs for this immovable property but which neither finds a reflection in her IT returns nor was it ever intimated by accused Sanjiv Kumar to his Controlling Government either. Since, the Court has concluded that Abha Kumar did pay Rs. 3 lacs for the Bara Hindu Rao property in July 1996 which is in the check period, this has to be taken as an expenditure through undisclosed resources which has to be attributed to accused Sanjiv since Abha did not own up this expenditure which further disentitles her to explain it as a part of her legitimate income.

126. Plot in Sector 28, Faridabad - This plot was also allotted to accused Abha from the CM Haryana's discretionary quota in HUDA. The allotment of plot to Abha was on identical terms as that of accused Kanak Lata. Without repeating the observations already recorded in case of payment of Rs. 19163 by accused Kanak Lata for a similar plot allotted to her out of the discretionary quota, the payment by Abha of Rs. 19163 cannot be termed as an asset but was rather a liability, having paid an instalment and then reached nowhere with the allotment.

127. Jewellery found in the joint locker of Dr. Maheshwar, Mrs. Kanak Lata, and Abha Kumar held in ICICI Bank Vasant Kunj branch. In the charge sheet, IO attributed the ownership of this locker to Abha Kumar despite it being a joint locker on the ground that it had been operated twice by Abha Kumar. The locker was opened on 10.5.2007 and jewelry was found stashed therein. Valuation of the jewelry was carried out. The valuation was done by Mr. Vijay Goel PW 2 who opined that 30% of the jewelry was of pre-1996 period whereas the rest 70% was post-1996 period. The valuation however was carried out at the rates of gold prevailing in 2005. Mr. Vijay Goel testified as PW 3 and proved the valuation report. In cross-examination, the witness deposed that his opinion about 30% of the jewelry only being of the pre-1996 period was based on the designs in vogue during the relevant times. Significantly however, he admitted that opinion regarding the period of making of jewelry was largely a guess work with 50% chance of accuracy.

128. It was argued by accused Sanjiv Kumar that when the witness himself stated about the chances of his valuation being only 50% correct which is a very high percentage, it is not safe to rely upon the testimony of this witness. It was also asserted that the locker being joint was actually holding the streedhan of Kanak Lata, Abha and wife of Dr. Rajiv Kumar but as in the case of flats of Vasant Kunj, no effort was made by IO to record the statement of wife of Dr. Rajiv Kumar to ascertain the truth.

129. I agree with the submission put forth by accused Sanjiv Kumar in regard to the risk of placing reliance on the valuation of PW 2 when the witness himself admitted that there was only 50% probability of his opinion about the period of making of jewelry being correct. While evaluating and appreciating evidence in a criminal trial, the test to be applied is 'of beyond all reasonable doubt'. The testimony of PW 2, however, grossly fails this test. To rely on his opinion when there is 50% chance of it being incorrect would be sheer injustice especially when the cardinal principle of criminal law is to give the benefit of doubt to the accused. Additionally, the valuation of jewellery was carried out as per the rates of year 2005. This, in the opinion of the Court, was unfair. Without carrying out the essential exercise of working out as to which jewelry article was of which period, to classify the entire lot including the 30% jewelry which PW2 himself opined to be of pre-1996 period, as per rates of 2005 just doesn't stand to any legal logic. The Court is, therefore, unable to accept the evidence of PW 2 as being logical and trustworthy. In these circumstances, the benefit of doubt has to be given to the accused persons and the jewelry found in the ICICI Bank locker has to be taken as that being of pre-1996 period. The value of jewellery as estimated by PW 2 has to be deducted from the asset value attributed to accused Abha during the check period. Since, this jewellery was contended to be stree dhan of Kanak Lata, Abha and wife of Dr. Rajiv, no value of the same can possibly be ascribed for the pre-check period because no valuation was proved by the defense either.

Movable Assets:

of accused Sanjiv Kumar

130. Transfer of Rs. 15 lacs (in 2 tranches of Rs. 5 lacs and 10 lacs) from the account of Hukum Singh to the account of Sanjiv Kumar in March and May 2000 - Accused

Sanjiv Kumar has not denied receiving the said amount but has rendered an explanation for the same and as a consequence, claimed that it should be considered his lawful income. It was submitted by accused Sanjiv K. that the amount was transferred to his account pursuant to a loan agreement entered into between Dr. Rajiv Kumar and Hukum Singh who had a doctor-patient relationship. This written loan agreement was entered into on 8th March 2000. In his cross-examination, Investigating Officer (IO) as PW 46 admitted that he had sought a copy of the loan agreement but did not rely on it since he did not find it truthful. A copy of this loan agreement was exhibited as Mark PW46/ DD and DE. Notice dt. 1.12.2007 was issued by the IO to Sanjiv Kumar to produce the rental agreement and settlement agreement between Dr. Rajiv Kumar and Hukum Singh in regard to flat no. 6357. However, the IO could not furnish any explanation as to what was the basis for him not to believe in this loan document. Strangely enough, prosecution brought in the official from Gurgaon Grameen Bank, Jharsa to prove the entries of transfer from the account of Hukum Singh in favour of Sanjiv Kumar but Investigating Officer made no effort to record the statement of Hukum Singh. In 2005 when the official of Gurgaon Grameen Bank was questioned by the IO, Hukum Singh had already expired by then which is reflected from the statement of relevant witness PW 43 Kanwaljit Singh i.e. statement u/s 161 Cr. PC. However, this fact should not have stopped the IO from questioning the family members of Hukum Singh since as per the loan agreement, in lieu of discharge of loan amount, the flat no.

6357 was rented out to Hukum Singh and his family. The loan document itself mentions that the loan amount is to be used for the renovation of flat no. 6357 and 6360. The subsequent loan discharge agreement executed in November 2003 gives details of how the loan stood discharged. Once these documents were before the IO, it was imperative for the IO to have carried out detailed investigation in this regard. At this stage, it again needs a highlight that had the IO questioned Dr. Rajiv Kumar, if not Hukum Singh and his family, IO would have been in a substantiated position to give a fair opinion on whether or not the loan agreement and loan settlement/discharge transaction was truthful. In the absence of any investigation on this count, how does the Court rely on the mere opinion of the IO regarding the lack of truthfulness of the loan agreement and settlement agreement? Another very relevant aspect of this loan transaction is that it stands recorded in the loan agreement itself that the loan agreement shall be disbursed either to Sanjiv Kumar or Dr. Maheshwar Kumar. Since, Dr. Maheshwar Kumar was residing in Dhanbad, and Sanjiv Kumar at that point was in a commanding position as an IAS officer in Haryana, it seems only natural that the loan amount was transferred to the account of Sanjiv Kumar. The first tranche of Rs. 5 lacs was transferred in March 2000 which coincides with the date of loan agreement which also is of March 2000. Further, the loan agreement was for a period of 3 years and accordingly, the loan settlement agreement was executed in November 2003. These facts cannot be ignored as mere coincidence and same convey the belief of legitimacy of the loan transaction between Dr. Rajiv Kumar and Hukum Singh. Countering the allegation of Id. PP that the loan agreement was a fabricated document, accused Sanjiv Kumar was forceful in his submission that in March 2000 when the loan agreement was executed, it could possibly not have been in anyone's contemplation that few years down the line, he would end up facing a barrage of CBI investigations and thus to save himself, he should have

prepared and kept with him a false loan document for the CBI to seize. The Court agrees with the submission of accused Sanjiv Kumar on this count. The transfer of Rs. 15 lacs in the account of Sanjiv Kumar from the account of Hukum Singh appears to be result of a loan transaction entered into by his brother Dr. Rajiv Kumar. However, the plea of accused Sanjiv Kumar that it should be treated as his income is not tenable, for the following reasons. First, it was a loan amount which necessarily had to be repaid. Second, and more importantly, Sanjiv was not a beneficiary of this loan amount since this loan amount was meant for renovation of the flats Nos. 6357 and 6360, as stands recorded in the loan agreement. Hence, this loan cannot be treated as income of accused Sanjiv. Court will also like to clarify that the lack of investigation by IO into the loan agreement does not in any manner affect the finding of the Court that Dr. Rajiv acted as a front for 'benami' acquisition of flat No. 6357 by accused Sanjiv.

131. Share transactions/investments by Sanjiv Kumar to the tune of Rs. 2,51,71,200 crores and Abha Kumar to the tune of Rs. 75 lacs during the check period - This 'asset' of Rs. 2.51 crores forms the nucleus of the allegedly disproportionate assets of Rs. 4,08,81,202 amassed by Sanjiv Kumar during the check period. The solitary basis for this allegation/charge was the statement recorded u/s 161 Cr.PC of Subhash Chander Gupta who was a share broker. Part corroboration of the statement of SC Gupta was received in the form of (161 Cr.PC) statement of RK Sharma who was a publisher and was initially in contact with accused Sanjiv Kumar in an official capacity relating to award of tender of books when Sanjiv Kumar was the State Project Director for the World Bank aided Sarv Shiksha Abhiyan. As per RK Sharma who appeared as PW 47, accused Sanjiv Kumar asked him to pay roughly 40% of the tender receipts (ostensibly as bribe share of Sanjiv Kumar) to SC Gupta for investment in shares. RK Sharma claims to have paid Rs. 96 lacs to SC Gupta on behalf of accused Sanjiv Kumar. In his statement to the IO, SC Gupta named RK Sharma as the one from whom he had received several tranches of cash on behalf of accused Sanjiv Kumar for investment in equities, in addition to having received money in cash and cheques from Sanjiv Kumar and on his behalf from different sources.

132. SC Gupta ran 2 entities which dealt in share broking for private clients □Vandana Investments and AVI Capital. The statement of SC Gupta recorded by the Investigating Officer explains in detail as to how on multiple occasions and at different places, cash was collected either directly from Sanjiv Kumar or from his family members, or from his associates including RK Sharma. The statement of SC Gupta u/s 161 Cr. PC is a very detailed one especially since he gave detailed break□ up of all the cash and other amount which he allegedly received on behalf of Sanjiv Kumar. This witness is also crucial to the other major limb of prosecution Charge which is concerning investment in shares to the tune of Rs. 75 lacs by Abha Kumar in another share broking entity - Cosmos Management Limited. A brief mention of the same is being made in the succeeding para since it will have a bearing on the appreciation of evidence led against Sanjiv Kumar as also Abha Kumar.

133. In February 2001, as is revealed from the statement of SC Gupta recorded u/s 161 Cr.PC and certain exhibited documents, AVI Capital Ltd. wrote to Cosmos Management informing it and owning up deposits made by Abha to Cosmos Management i.e. of Rs. 67 lacs which included Rs. 7 lacs by transfer and rest were cash receipts, by stating vide 2 written communications/letters that it had deposited various 'cash' amounts through Abha from January 2000 to July 2000. According to

SC Gupta, these letters were written at the asking of Sanjiv Kumar, and he further stated that Sanjiv even gave a draft letter for this purpose. This draft letter, allegedly given by Sanjiv Kumar to AVI Capital, was seized by the CBI from the office of SC Gupta and is a part of exhibited record as Ex. PW 46/D10. Pursuant to these communications by AVI Capital, all the shares of Abha Kumar held by Cosmos Management Ltd. were transferred to the Demat a/c of AVI Capital in Standard Chartered Bank. The prosecution case thus substantially hinged on the testimony of this witness.

134. There is a 3rd witness in the complex picture of alleged share investments by accused Sanjiv Kumar - Ram Avtar Aggarwal (PW 25). He was an acquaintance of accused Sanjiv Kumar. Professionally, he was a chartered accountant and also ran a financial investment company. His statement recorded by the IO also partly corroborated the prosecution Charge. He informed the IO about purchasing 22000 shares of Raymonds from SC Gupta for Rs. 29 lacs. Apparently, 22000 shares of Raymonds were purchased by SC Gupta at the behest of/asking of Sanjiv Kumar for an undisclosed 3rd person i.e. as per the 161 Cr.PC statement of Ram Avtar Aggarwal. However, SC Gupta was never paid for these shares either by Sanjiv Kumar or the undisclosed 3rd person. Subsequently, SC Gupta approached Ram Avtar Aggarwal requesting him to purchase these 22000 shares. Ram Avtar Aggarwal informed the IO about an MOU dt. 1.4.2001 (Ex. PW 25/B, file D-35) signed between him and SC Gupta for purchasing 22000 Raymonds shares belonging to Sanjiv Kumar. This MOU was admitted by Ram Avtar Aggarwal in his court testimony also as PW 25 but he twisted his stand to depose that these shares had been bought by Vandana Investment (owned by SC Gupta) for him. Strangely enough, the witness also admitted that his statement was recorded by the CBI officer. However, when he was cross-examined by the Id. PP (after being declared hostile), he declined to admit that he had told the IO that shares purchased by him from SC Gupta were those which had been purchased by SC Gupta at the behest of Sanjiv Kumar for an undisclosed 3rd person. When confronted with the relevant part of his statement u/s 161 Cr.PC, he stated it to be incorrect that he had informed the IO about SC Gupta approaching him for purchase of shares held by him on behalf of Sanjiv Kumar. Significantly, even though he denied this part of his statement, he did not disown his statement recorded by the IO.

135. Before proceeding further, a special mention is required to be made in regard to Witness RK Sharma. This witness was an accused along with Sanjiv Kumar in another case registered by the CBI against accused Sanjiv Kumar wherein Sanjiv Kumar had been Charged with accepting bribe in discharge of public functions. RK Sharma was the alleged bribe giver but was made an approver subsequently. The case was tried by a Special Court of CBI at Chandigarh. However, the trial culminated in acquittal of accused Sanjiv Kumar and other co-accused. During the course of trial of that case, RK Sharma had alleged giving bribe to accused Sanjiv Kumar in the form of making payments to share broker SC Gupta for investment in equities market on behalf of Sanjiv Kumar. The Id. Special Judge, CBI Chandigarh, however, found no truth at all in the testimony of RK Sharma resulting in acquittal of Sanjiv Kumar.

136. Before this Court in 2017, when RK Sharma was sought to be brought in as a witness at the stage of final submissions after prosecution had moved an application u/s 311 Cr.PC, accused Sanjiv Kumar approached the Hon'ble High Court of Delhi contending that RK Sharma had already deposed before the Special Court at Chandigarh alleging that he had given bribe to him (i.e. Sanjiv

K.) on account of award of tender of publishing books and the concerned court had returned a finding that the witness was not credible at all. However, in the meanwhile, RK Sharma completed his testimony as PW 47. When RK Sharma was cross-examined before this Court by accused Sanjiv Kumar, he admitted that he had deposed before the Special CBI Court at Chandigarh about giving bribe to Sanjiv K. in the form of cash to SC Gupta for investment in the share market. Resultantly, Hon'ble High Court vide order dt. 24.5.2019, passed in Criminal Rev. no. 485 of 2017 gave liberty to accused Sanjiv Kumar to produce a copy of the judgment passed by the Ld. Special Judge, CBI, Chandigarh (vide which Sanjiv K. was acquitted) before this Court at the stage of final arguments, after observing that u/s 57 of the Indian Evidence Act, trial court i.e. this Court was bound by law to consider the said judgment. The aspect of RK Sharma's testimony before this court and before the Special Court of CBI at Chandigarh will be taken up after discussing the testimonies of Ram Avtar Aggarwal and SC Gupta.

137. At the stage of deposing before the Court, both SC Gupta and Ram Avtar Aggarwal turned hostile.

138. SC Gupta appeared as PW 41. In his examination in chief, he completely denied having anything to do with Sanjiv Kumar, Abha Kumar or Kanak Lata. He outrightly denied having known accused Sanjiv Kumar. Though he stated that he might have met Sanjiv Kumar for whom Tika Hasan Mustafa (known acquaintance of Sanjiv Kumar and a co-accused in bribery case before Special CBI Court at Chandigarh) had asked the Witness to do some work, he categorically testified that accused Sanjiv Kumar was not the same Sanjiv Kumar for whom Tika Hasan had asked him to do work. He further testified that he received cash and cheques from Tika Hasan in the name of Sanjiv Kumar, and that he transacted shares in the name of Kanak Lata, Abha and one Amit Kumar on the instructions of Tika Hasan. He also testified that profit and loss in share transactions were accounted for in the names as instructed by Tika Hasan. Having testified so, SC Gupta then feigned ignorance about the names in which shares used to be transacted at the instance of Tika Hasan. SC Gupta admitted to seizure of file D-50 by CBI from his office. On being shown Ex. PW 41/A-4 to A-4 (part of file D-50), SC Gupta deposed that all (handwritten) details therein were mentioned as per instructions of Tika Hasan and further deposed that he received all amounts from Tika Hasan and same were posted in different names as per instructions of Tika Hasan. On a specific query, he stated that he was not aware as to why was Tika Hasan purchasing shares in different names? SC Gupta admitted forward trading in shares list Ex. PW 41/ A-6 wherein name of Abha was mentioned but stated that it was so mentioned on the instructions of Tika Hasan. He also admitted having made corrections in list Ex. PW 41/A-7 wherein name of Abha is mentioned and further admitted that the list contained names of clients dealing directly with him and those whose accounts were opened on the instructions of others. Similarly, though he admitted the forward trading difference sheets Ex. PW 41/ A-8 to A-12 which mentions the name Abha, he followed it up by stating that the account was opened as per the instructions of Tika Hasan.

139. In regard to the MOU dt. 1.4.2001 which was entered into between PW 25 RA Aggarwal and him i.e. SC Gupta, witness deposed that all the shares transferred pursuant to the understanding were those of Tika and were transferred to Ram A. Aggarwal on the instructions. Handwritten details included cash and cheques received by witness from Sanjiv directly, Kanak Lata and from

associates of Sanjiv Kumar including R.K. Sharma and Nirmal Singh. Nirmal Singh was also a co-accused along with Sanjiv Kumar in the bribery case tried by the Special Court at Chandigarh.

of Tika Hasan.

140. Significantly, SC Gupta admitted having written 3 letters to Cosmos Management (which was the share broking firm in which Abha had allegedly paid money for investment in shares) i.e. Ex. PW 41/B to B (file D 35).

141. SC Gupta admitted handing over to the CBI forward trading register Ex. PW 41/C (file D 78) and Daily Sauda Register sheets Ex. PW 41/D Colly (file D 61). However, witness clarified that the prints were not taken in his presence but were already lying in the office. The exhibition of these sheets was objected to by the accused since these were without any certificate and without signatures.

142. SC Gupta further admitted that his statements were recorded by the CBI officers on his visits to the CBI office but could not confirm whether his statements was recorded on 19.2.2005 and 3.1.2008.

143. In a very brief cross-examination by the accused persons, SC Gupta admitted that all the shares which were transferred from Cosmos Mngmnt. to AVI Capitals were on the instructions of Tika Hasan. Nothing more was put to the witness on behalf of the defense.

However, in the understanding of the court, this was the 2 nd most appropriate opportunity for the accused to conclusively link up all the cash investments by Abha with Tika Hasan. In an ingenious move, instead of confirming from SC Gupta point blank whether the shares transferred to AVI Capitals from Cosmos were the sole/exclusive shares purchased out of cash invested by Tika Hasan in Cosmos, SC Gupta was merely given a suggestion that shares were transferred at the asking of Tika Hasan. This appears to have been done purposely so as to create a doubt in the prosecution evidence and consequently, in the mind of the Court regarding Abha's involvement in cash deposit receipts with Cosmos which were proved by PW 40 Seema. Infact, the Court can decipher a discernable trend in the manner in which cross-examination has been carried out of the relevant witnesses so as to create a doubt in their testimonies (instead of meeting out a clear defense) and then to make use of the same at the stage of final submissions. As will be highlighted shortly hereinafter, prior to cross-examination of PW 41, in case of cross-examination of PW 40 also, instead of examining the witness with a clear defense, ambiguous questions were put to the witness. However, accused persons had a significant opportunity to forcefully bring out their defense, all of which banks on Tika Hasan Mustafa's role, but instead only a doubt has been sought to be created in the prosecution evidence. Admittedly, creating a doubt in the prosecution evidence has always been the primary endeavor of defense since benefit of doubt invariably is given to the accused but where a clear defense is available to the accused and she/he fails to bring up the defense effectively, merely creating doubt in the prosecution evidence will not suffice especially since the defense has no way to know, till the judgment has been pronounced, whether at all it was successful in creating a doubt in the mind of the Judge. If the sole defense of accused Abha was that the cash deposited by her with

Cosmos was of Tika Hasan, this was something which was in the special knowledge of the accused and to prove which, it was imperative for her to have brought in Tika Hasan in her defense. Making clever use of the absence of Tika Hasan altogether from the course of investigation and trial, PW 41 left everything for Tika Hasan to explain knowing well that if prosecution did not array Tika Hasan as an abettor/accused, it would never have brought in Tika Hasan as a prosecution witness either. However, Tika Hasan who could have been the best witness for the defense was not brought in for reasons best known to the accused persons but for which the Court has its reason to take an adverse view.

144. The court testimony of PW 25 Ram Avtar Aggarwal patently brings out that he was manifestly suppressing truth. In his chief examination, he claimed that he did not know Subhash Chand Gupta. However, he admitted the MOU dt. 1.4.2001 executed between him and SC Gupta on behalf of Vandana Investments. In cross examination by the Id. PP (after being declared hostile), witness admitted that he had known Mr. Gupta of Vandana Investment since 1992 when he was working with another share broking firm. Interestingly, Ram Avtar Aggarwal admitted that he met SC Gupta of Vandana Investments at the house of Sanjiv Kumar after he had already purchased the shares from Vandana Investment pursuant to the MOU dt. 1.4.2001 but regarding the name of Sanjiv Kumar mentioned in the MOU Ex. PW 25/B, offered to explain that Sanjiv Kumar's name was mentioned in the MOU as a guarantor since he was known to both him and SC Gupta, and there was still a deadlock between him and SC Gupta as to whether shares would be transferred first or amount will be paid first. Ram Avtar Aggarwal thus starkly contradicted himself by first stating that he met SC Gupta at the residence of Sanjiv Kumar after he had paid Rs. 29 lacs for the shares to Vandana Investments, and then offered clarification qua Sanjiv Kumar's name in the MOU by stating that he was a guarantor for both sides to resolve the deadlock regarding the share transfer. It is clear that he was trying to protect accused Sanjiv Kumar by offering the clarification as above. Once he admitted that he came to Sanjiv Kumar's house and met SC Gupta there, after the share transaction had been paid for to Vandana Investments, there was no occasion to mention Sanjiv's name in the MOU since the share transaction had already been paid for pursuant to the MOU. However, despite it being patent that PW 25 was protecting accused Sanjiv Kumar and further that SC Gupta knew Sanjiv Kumar well², there is not enough cogent evidence to hold beyond all reasonable doubt that these 22000 shares mentioned in the MOU dt. 1.4.2001 were held by SC Gupta for Sanjiv Kumar. It needs a brief recapitulation that PW 25 in his statement u/s 161 Cr.PC had stated that SC Gupta had informed him that he had purchased 22000 Raymonds shares at the asking of Sanjiv Kumar for a 3rd undisclosed person but after the purchase, had not been paid for the shares. Assuming the statement of Ram Avtar Aggarwal to be absolutely true, it still doesn't prove either that accused Sanjiv Kumar paid money to SC Gupta for the purchase of shares or that the shares were purchased and meant to be retained for accused Sanjiv Kumar. Going a step further, since the MOU has been admitted by PW 25, at best, it only goes to show that Sanjiv Kumar's consent was obtained 2 Accused persons rely on PW 25's hostile testimony which discloses that PW 25 met SC Gupta at the residence of Sanjiv Kumar which was possible only if they knew each other well. Further, shares worth of Rs. 29 lacs were purchased by R A Aggarwal vide the MOU which specifically mentions about Sanjiv Kumar and which MOU has been admitted by SC Gupta also, despite his hostile testimony. R A Aggarwal offers explanation that Sanjiv Kumar was to furnish guarantee of both of them i.e. PW 25 and PW 41 and even if this hostile testimony is to be accepted,

it only further proves that Sanjiv Kumar knew both RA Aggarwal and SC Gupta very well.

by Ram Avtar Aggarwal to buy out the shares from SC Gupta. To link accused Sanjiv Kumar with these 22000 shares, prosecution had to either prove supply of finance by him to SC Gupta, or that after Ram Avtar Aggarwal had paid Rs. 29 lacs to Sanjiv Kumar, same were transferred to Sanjiv Kumar in some manner or that the cash received by SC Gupta in lieu of the shares was transferred to Sanjiv Kumar, in full or part. It must be appreciated that prosecution had to prove a reasonable basis for PW 25 Ram Avtar Aggarwal to shell out a huge sum of money i.e. 29 lacs just to bail out SC Gupta with whom the prosecution has not able to prove any previous dealings of Ram Avtar Aggarwal except this solitary MOU deal concerning 22000 Raymonds shares. Conversely, if the prosecution case is to be taken as unrebutted, it cannot logically be accepted that having taken close to Rs. 2.5 crores from Sanjiv Kumar and/or his family members and associates, SC Gupta would be in a soup over how to get money from Sanjiv Kumar for these 22000 shares. Additionally, so far as the MOU dt. 1.4.2001 is concerned, prosecution had to give a plausible explanation as to why would have Ram Avtar Aggarwal helped out Sanjiv Kumar by paying Rs. 29 lacs for the shares of Raymonds. Prosecution has not led any evidence, infact not even leveled any such allegation that accused Sanjiv Kumar had helped Ram Avtar Aggarwal in his official capacity or bestowed a favour on him in return of which PW 25 Ram Avtar might have helped accused Sanjiv.

Prosecution has thus sorely failed to lead the missing link evidence.

145. Ld. Public Prosecutor also placed significant reliance on the testimony of SC Gupta who appeared as PW 41 during the course of which though he turned hostile and denied any association with Sanjiv Kumar, Abha Kumar or Kanak Lata, yet he deposed that he made investments in the name of Sanjiv, Abha and Kanak Lata at the asking of Tika Hasan Mustafa who, according to the court deposition of SC Gupta, was the one to supply all cash and thereafter issue instructions to invest in the name of Sanjiv and Abha. PW 41 consistently maintained in his cross-examination by the ld. PP that all investments in different names were solely as per the instructions of Tika Hasan. It was however, contended by the ld. PP that close family relationship between Sanjiv Kumar and Tika Hasan has been squarely admitted by the accused persons themselves. Infact, so far as allegation/Charge of share investment by Abha Kumar is concerned, it has been argued on behalf of accused Abha that the entire investment of 68 lacs which has been attributed to her was actually the money of Tika Hasan. With these facts and assertions of the accused persons in the back ground, ld. PP tried to build up the argument that Tika Hasan acted merely as a front for the accused persons, and further that it would simply not be possible for any share broker to invest money and buy shares in different client accounts even though he had never even met them! Ld. Sr. PP further highlighted the admission of SC Gupta PW 41 that he had made entries in his own handwriting in Ex. PW 41/A1 to A4 which records money received in multiple tranches from Sanjiv, Kanak Lata, RK Sharma etc.

146. The above argument developed by the ld. PP appears to be quite inviting at the first blush but if analyzed carefully, loses much of its sheen and is reduced simply to the status of a strong assumption. In order to prove that SC Gupta's assertion about cash being supplied by Tika Hasan was wrong and was made only to save the accused persons, prosecution had 2 courses of action before it. First was to prove beyond reasonable doubt that the accused Sanjiv or his allegedly

dubious associates, accused Abha Kumar and accused Kanak Lata paid money in cash/cheques to SC Gupta for investment in shares. Second was to bring in Tika Hasan as a PW to prove the case against the accused persons. It is patent that prosecution would not have brought in Tika Hasan as a PW against Sanjiv Kumar since Tika Hasan himself had been arrayed as an accused along with accused Sanjiv Kumar in another CBI trial which was conducted by the court of Special Judge, CBI at Chandigarh. In the said trial, Tika Hasan was portrayed as a conduit of Sanjiv Kumar for accepting illegal gratification. It would have been thus a huge embarrassment for the CBI to bring in Tika Hasan as a prosecution witness. Prosecution, therefore, adopted the first course which was to try and prove that accused Sanjiv Kumar handed over Rs. 2.51 crores to SC Gupta for investment in shares. Towards this course of action, it cited 4 witnesses - Ram Avtar Aggarwal, Devender Kumar, SC Gupta and RK Sharma.

147. Testimony of Ram Avtar Aggarwal has already been discussed above in detail. Same is not helpful to the prosecution since he turned hostile and even his statement u/s 161 Cr.PC does not provide any aid to the prosecution to prove the guilt of accused Sanjiv. R K Sharma appeared as PW 47 in a very 'strange manner'. This witness was called in to testify at the stage when final arguments had commenced. This is when accused Sanjiv moved to the Hon'ble High Court of Delhi against prosecution's request for bringing in of RK Sharma as a PW since he had already deposed against Sanjiv Kumar on similar allegations before the Ld. Special Judge, CBI at Chandigarh but found to be not worthy of any credibility by the Court. Nevertheless, his testimony was concluded whereupon Hon'ble High Court gave accused Sanjiv Kumar the liberty to rely upon the judgment of Special Court, CBI, Chandigarh. Before this Court, RK Sharma deposed about paying close to 90 lacs as bribe money to Sanjiv Kumar but which was routed in the form of cash payments to SC Gupta for investment in shares. In his cross-examination, accused Sanjiv Kumar did not contradict him with his previous testimony before the Special Court, CBI, Chandigarh but instead asked him whether he had deposed about similar facts before the Special Court, CBI, Chandigarh. In response, RK Sharma admitted that he had deposed about similar facts before the Special Court, CBI, Chandigarh. During the course of final submissions, accused Sanjiv Kumar repeatedly raised the argument of issue of estoppel qua the testimony of RK Sharma so as to discredit his testimony/impress upon the court to discard the same. Ld. Sr. PP for the CBI, fairly admitted that principle of issue of estoppel is applicable in criminal proceedings. However, Ld. Sr. PP argued that in order to discredit the testimony of RK Sharma, accused Sanjiv had to contradict him with his previous court testimony. Court is unable to appreciate the argument put forth by Ld. Sr. PP. The argument raised by accused Sanjiv Kumar was that once the witness has already deposed about the issue of giving bribe to accused Sanjiv before another Special Court in a criminal trial where also present accused Sanjiv was the prime accused, and same having been disbelieved by that Court, CBI could not have brought in RK Sharma to depose about the same facts against accused Sanjiv Kumar in another case i.e. the present one. Accused Sanjiv Kumar's plea is to discard the testimony of PW 47 RK Sharma on the principle of issue of estoppel, and not to reject his testimony because witness has been contradicted with his previous testimony. Accordingly, the plea of issue of estoppel against the testimony of RK Sharma is available to accused Sanjiv Kumar since the witness himself admitted to deposing about similar facts against accused Sanjiv Kumar in another trial where also the sole purpose of examining RK Sharma as a PW was to know whether he had paid bribe to accused Sanjiv in the form of cash to SC Gupta for investment in share market. The Court, however, is of the opinion that even without

applying the principle of issue estoppel, RK Sharma's testimony has no value, for the following reasons. In his testimony before this Court, RK Sharma gave details of various cash tranches which were delivered by him to SC Gupta on behalf of accused Sanjiv Kumar. SC Gupta on the other hand denied having received any cash at all from RK Sharma on behalf of Sanjiv, Abha or Kanak Lata. Thus, if the recipient has not supported the prosecution case, the value of RK Sharma's testimony is as good as nothing since it is through SC Gupta that prosecution wanted to link up Sanjiv Kumar with the alleged investment of Rs. 2.51 crores in the equities market. Once SC Gupta turned hostile and asserted that he was supplied all cash by Tika Hasan, RK Sharma's testimony was a wasted exercise. Perusal of chief examination of RK Sharma before this Court reveals that the witness admitted that he was awarded tender through the open system and further that he was paid the dues for the tender of publishing books through the accounts department. This witness did not even remotely link accused Sanjiv with the award of tender of publishing the books or payments received from the Education deptt. regarding the tender. The corollary is that there was really no occasion for RK Sharma to pay any bribe to accused Sanjiv, atleast as projected by the prosecution. In any case, RK Sharma's testimony as a bribe giver to accused Sanjiv has been absolutely discredited by the Ld. Special Judge, CBI, Chandigarh. Infact, after RK Sharma was permitted to be brought in at a hugely belated stage, permission was granted to accused Sanjiv to recall SC Gupta to further cross-examine him since testimony of RK Sharma of giving bribe on behalf of accused Sanjiv was directly linked to SC Gupta. In his further cross-examination, SC Gupta clarified that he knew RK Sharma since he was dealing in shares in his own account. In this regard, an additional fact is relevant. There was another witness - Devender Kumar - whose statement was recorded by the IO and which implicated accused Sanjiv Kumar in regard to handing over of money in cash by RK Sharma to SC Gupta but this witness was not brought in to depose for which again prosecutor has to be blamed. Devender Kumar's statement u/s 161 Cr.PC revealed how his office in Niti Bagh was allegedly used by accused Sanjiv for handing over of cash to SC Gupta through RK Sharma on multiple occasions. After being cited in the list of witnesses, he was consciously dropped. When RK Sharma was recalled u/s 311 Cr.PC, permission was sought to summon Devender Kumar also but application was declined qua Devender Kumar. CBI never went in appeal against the order declining summoning of Devender Kumar despite it being noted by the Ld. Predecessor in his order dt. 22.2.2017 that prosecution will examine the implication of dropping of these 2 witnesses since the money trail from Sanjiv Kumar to SC Gupta was routed through these 2 persons. It was after the passing of the above order that prosecution moved application u/s 311 Cr. PC for summoning RK Sharma and Devender Kumar. It needs a highlight that this Devender Kumar was also a PW in the court before the Special Judge, CBI, Chandigarh but had turned hostile. Nevertheless, his statement u/s 161 Cr. PC recorded during the investigation of this case implicated accused Sanjiv. Ld. Special Judge, CBI, Chandigarh while acquitting accused Sanjiv had noted that the money trail between SC Gupta, RK Sharma and Devender Kumar was not made out. Thus, prosecution at best has been able to raise a strong presumption of involvement of accused Sanjiv Kumar in share transactions worth Rs. 2.51 crores, especially if we co-relate the testimony of PW 25 regarding MOU dt. 1.4.2001 which has been admitted by PW 41 also and the admission of PW 41 regarding Ex. PW41/A to A which are handwritten entries of money received, both of which establish the familiarity between Sanjiv Kumar and PW 41 but there is simply lack of link evidence to conclude beyond reasonable doubt that accused Sanjiv Kumar had actually invested such money. Additionally, unless PW 41 had testified regarding the total amount received from Sanjiv or on his behalf, there is no clarity as to how much

money was invested by Sanjiv Kr.

148. The other important aspect regarding the relationship between AVI Capitals and Cosmos Management which concerns the share investment of accused Abha Kumar shall now be addressed. It has already been briefly highlighted above that AVI Capitals had addressed 2 communications to Cosmos claiming there in that Ms. Abha had been investing in AVI capitals on their behalf. Infact, 3 letters were written by AVI Capitals to Cosmos. The first letter was dt. 26.12.2000 the content of which conveyed that AVI Capital was investing on behalf of Abha. Subsequently, 2 more letters dt. 19.2.2001 were addressed to Cosmos Investments by AVI Capitals stating therein that it had been investing through Ms. Abha. In one of these letters, AVI Capitals also gave a list all the cash investments purportedly made by Abha on behalf of AVI Capitals and a transfer deposit of Rs. 7 lacs (which the Court assumes was deposited by Tika Hasan in the account of Abha and which was further routed to Cosmos Management, and qua which PW 40 specifi ally deposed also but she neither gave the date of transfer nor mentioned the receipt date). During the course of arguments, accused Sanjiv Kumar placed great reliance on the letters dt. 19.2.2001 (Ex. PW 41/B□2 and Ex. PW41/B□

3) which contained details of cash investments by Abha on behalf of AVI Capitals to contend that the receipts issued by Cosmos for the cash deposited by Abha was never the money of Abha herself. The letter dt. 19.2.2001 (Ex. PW 41/B□2 and Ex. PW41/B□3) contained list of all the cash deposits made by Abha regarding which PW 40 Seema Malhotra had deposed receipt wise except 2 payments which Abha Kumar had paid for through cheques i.e. Rs. 5 lacs and Rs. 1 lac. At this stage of appreciation of evidence, what remains unexplained is the need for AVI capitals to own up all the cash investment made by Abha?

149. Throughout the course of final arguments, it was stoutly maintained by accused Sanjiv Kumar (arguing in person) as also by Mr. Tanvir Ahmed Mir, ld. Counsel (appearing pro bono) for A□2 and A□4 that all cash investments made by Ms. Abha in Cosmos (which stand proved by receipts issued in the name of Abha and further, admitted by her to have been deposited), was actually the money of Tika Hasan. Repeated reliance was placed on that part of chief□examination of PW□40 Seema wherein she stated that after cash was handed over by Abha, 'it used to be confirmed from Tika Hasan'. This also was the stand of Ms. Abha in her statement u/s 313 Cr.PC. In regard to the above highlighted portion of chief□examination of PW 40, it was argued that when PW 40 mentioned about the fact of confirmation from Tika Hasan qua the amount received from Abha Kumar, it was imperative for the ld. PP to have questioned her as to why would she confirm with Tika Hasan regarding the amount received from Abha? The absence of this question by the ld. PP forms the basis for the accused persons to infer and conclude that the money invested by Ms. Abha in Cosmos was of Tika Hasan alone. Additionally, accused persons also placed reliance on an undated letter (Ex. PW40/A□/DB), purportedly addressed by Tika Hasan to Seema Malhotra, vide which he had authorised Ms. Abha to trade on her behalf. PW 40 Seema, in her cross□examination testimony, though initially expressed ignorance about the authorisation given to Abha by Tika Hasan, but when photocopy of the above letter was shown to her, stated that this letter 'might have been seen by her'. However, what is worth noting is the fact that the witness did not state that accused Abha Kumar had been authorised by Tika Hasan vide this authorisation letter. Witness merely answered that she

might have seen the letter. No further suggestion was given to the witness that infact Abha Kumar was authorised vide this letter by Tikka Hasan to trade on his behalf. When this letter was exhibited, the Court recorded its specific observation that the letter was undated and did not bear the seal or signature of Cosmos Mngmnt. as token of its receipt.

150. It needs a highlight that qua the testimony of PW 40 Seema in regard to the authorisation letter, another argument was raised by accused Sanjiv Kumar. PW 40 Seema had also testified as a prosecution witness in another CBI trial against accused Sanjiv Kumar in which allegations levelled against him were of accepting illegal gratification. The said trial was conducted by Special Court, CBI at Chandigarh and eventually resulted in acquittal of accused Sanjiv Kumar alongwith co-accused. It was submitted by accused Sanjiv Kumar that in the course of testifying before the Special Court, CBI, Chandigarh, PW 40 Seema Malhotra (hereinafter) had appeared as PW 5 and had deposed about investment by Abha Kumar in Cosmos but therein, Seema Malhotra had specifically admitted that Abha Kumar had been authorised by Tika Hasan to trade on his behalf. Relevant to highlight that Tika Hasan was a co-accused alongwith Sanjiv Kumar in the above trial. This argument will be addressed a short while later. Reverting to the testimony of the present trial, PW 40 Seema further admitted that usually, without specific authorisation, one is not allowed to trade in the name of another. In the face of a strong pitch being made for the assertion that accused Abha was merely acting as an agent for Tika Hasan, the role of AVI Capitals in owning up all the shares purchased through cash investments by Abha remains completely unexplained? It has not been asserted by any of the accused persons that Ms. Abha was an agent of AVI Capitals also. If that be the case, then why did AVI Capitals address letter dt. 19.2.2001 to Cosmos Mngmnt. giving details of all cash investments made by Abha and own them up with a further request to transfer all share scripts in its Demat account maintained in Standard Chartered Bank. PW 40 Seema was specifically questioned in cross-examination on whether a person can trade on behalf of another without authorisation to which she replied that 'ordinarily, this is not permissible'. If that be so, on what basis did Ms. Abha invest money on behalf of AVI Capitals since admittedly, there is no authorisation on record, brought by way of defense evidence/cross-examination, to show that Abha was given written or even oral authorisation to trade on behalf of AVI Capitals. Strangely enough, AVI Capitals in its letter dt. 19.2.2001 addressed to Cosmos Investments, wrote as under -

Please recall the details or transaction done at your share trading division through Mrs. Abha Sinha. We hereby confirm the transactions.....

151. The language used was purposely chosen so as to convey/reflect past association of AVI Capitals with Cosmos Management. However, PW 41 SC Gupta deposed nothing about the commercial relationship between AVI Capitals and Cosmos Investments. PW 40 Seema on the other hand deposed about Party Ledger Computer Prints in the name of AVI Capitals which were handed over to the CBI i.e. Ex. PW40/H16 to H16 (in file D155). If AVI Capital was already a client of Cosmos, why would it invest cash through Abha Kumar? The only inference which can be drawn from the above is that AVI Capitals was persuaded to own up the cash investments of Abha with Cosmos. It also stands opposed to plain logic that being a broker company/firm itself, AVI Capitals would open its own trading account with another broker. Further, if the shares which were transferred from Cosmos to AVI Capitals were actually of AVI Capitals, then why were delivery instruction slips

proved as Ex. PW40/F1 to Ex. PW40/F4 (file D□76) carrying the name of Abha Sinha? It needs a highlight that PW 40 Seema had categorically deposed that shares used to be transferred from their depository participant account with M/s. Abhipra Capitals vide the delivery instructions. The argument raised by accused Sanjiv Kumar that since no demat account of Abha was specified by the prosecution it would show that she was not trading on her own, stands answered by the fact that exhibited delivery instruction slips (in file D□76) clearly prove that shares in the account of accused Abha were stored in Demat form by Cosmos Mngmnt. with Abhipra Capitals which was a share depository company for safe custody of shares in demat form. In those times i.e. 1999, investors were not mandatorily required to hold a demat account as is the case now. Instead, system of Depositories evolved.

152. Another fact now needs to be highlighted which shall fortify the observation of the Court that AVI Capitals really had no connection with the cash deposited by accused Abha but was persuaded to own up the cash deposits. As per party ledger details of Abha proved as Ex. PW40/H1 to H16 (file D□55), Abha traded from 1.4.99 to 31.3.2000 i.e. March 2000. The same document then shows trading by AVI Capitals from 1.4.2000 to 31.3.2001. What is striking is that when AVI Capitals stepped in for trading, it had the same customer ID number which was given to Abha i.e. CMUS1. This fact cannot be a mere coincidence. If we now try to assess the contents of letter dt. 26.12.2000 which was the first letter addressed by AVI Capitals to Cosmos Management wherein AVI Capitals had mentioned that they were trading on behalf of Abha, and link it with Abha Sinha and AVI Capitals having the same customer number, it clearly shows that the contents of letter dt. 26.12.2000 actually represented true state of affairs i.e. cash investments/deposits were of Abha herself. It also needs a highlight that by the end of 2000, lid on the JBT recruitment scam had come off and accused Sanjiv was being hounded by the State Govt. (as alleged by accused Sanjiv). Infact, the first vigilance case was registered against accused Sanjiv by April 2001 followed by a string of inquiries and FIRs. Thus, there is strong reason to infer that letters dt. 19.2.2001 addressed by AVI Capitals to Cosmos owning up the cash deposits of Abha were actually an exercise of covering up the tracks of Abha's cash trading with Cosmos Mngmnt. since by then accused Sanjiv had come on the radar of the then State Govt. in Haryana in a very offensive manner. It really doesn't stand to reason that when AVI Capitals already had a trading account with Cosmos Mngmnt. as already highlighted above, where was the need to address letters dt. 19.2.2001, since admittedly the cash deposits of Abha owned up by AVI Capitals also contained certain deposits after March 2000, when AVI Capitals stepped in place of accused Abha. There is really no other inference which this Court can draw, to the best of understanding of this Court, that AVI Capitals had only substituted Abha in Cosmos Mngmnt. and was infact trading on her behalf after 31.3.2000 but when the Govt. of Haryana turned its heat on accused Sanjiv, the entire lot of cash deposits of Abha were owned up by AVI Capitals. Infact, accused Abha's continuing relationship with Cosmos Mngmnt. even after 31.3.2000 is proved from Ex. PW 40/E□ (colly) (file D□67) which contains forward trading bills in the name of Abha. Some of these sheets i.e. Ex. PW41/E□ (colly) even bear the signature of accused Abha.

153. Accused Sanjiv also argued that the shares transferred vide delivery instruction slips Ex. PW40/F1 to F4 were precisely the same which were being shown in the party ledger account of AVI Capitals maintained by Cosmos. In this regard, accused Sanjiv should have also pointed out that even

Abha was trading in precisely the same shares prior to AVI substituting her which further fortifies the conclusion of the Court that AVI Capitals was trading on behalf of accused Abha after March 2000 and not the other way around as the defense has tried to project and argue. Surprisingly, on one hand the party ledger account has been strongly objected to and denounced by the defense as being of little evidentiary value on the ground that it is only a bunch of loose sheets and on the other, in its written submissions, rely on the same party ledger document to contend that AVI Capital had an independent trading account with Cosmos. The Court will also like to point out that admitted letters dt.19.2.2001 addressed by AVI Capitals to Cosmos Mngmnt. owning up the cash deposits by Abha Kumar clearly proves that SC Gupta knew accused Abha very well and thus plainly lied to the Court when he testified to the effect that he had never met Sanjiv, Abha or Kanak Lata nor received any money from them for share investments but was transacting in their names only on the instructions of Tika Hasan. Infact, merely by admitting the MOU dt.1.4.2001 executed with PW 25, PW 41 tied a rope around his legs to trip for sure. The MOU itself mentions about how Sanjiv was linked to the 22000 shares which PW 25 agreed to buy from PW 41 and as a corollary, it has to be inferred that PW 41 knew Sanjiv also every well. The above discussion not only proves the close relationship between AVI Capital/SC Gupta with Abha and Sanjiv, but also proves beyond reasonable doubt the forward trading transactions of Abha by Vandana Investment Ex. PW 41/A□3 to A□22 (file D - 50). The accused persons in their street smartness to link up cash deposits of Abha with AVI Capitals forgot that they are actually negating the benefit of hostile testimony of SC Gupta. Having observed so, this Court still is unable to return a finding that accused Sanjiv paid/supplied Rs. 2.51 crores to SC Gupta since there is just no money trail to link them, as already highlighted above. Even though SC Gupta's/AVI Capital's link with accused Abha and also Sanjiv stands clearly proved as highlighted above, yet there is no clarity at all on how much money was paid by Abha or on her behalf, by accused Sanjiv to SC Gupta. Prosecution should have brought in a financial expert to explain to the Court as to how much money was invested and reaped by Abha through forward trading. Though SC Gupta admitted certain entries in Ex. PW41/A□1 to A□4 to be in his own handwriting which clearly mentions the money received by him from Kanak lata, RK Sharma, Sanjiv Kumar and Nirmal Singh (he was co-accused with Sanjiv Kumar in bribery trial before the Special CBI Court at Chandigarh), yet this fact is overshadowed by his hostile testimony that accused Sanjiv is not the same Sanjiv Kumar for whom he was investing money on the instructions of Tika Hasan. The best evidence to link accused Kanak Lata with SC Gupta was to prove the relevant account statement of a/c no. 16887 OBC, Gurgaon (jt. a/c of Abha, Kanak Lata and M. Kumar) which as per the charge-sheet, shows investments of close to 25 lacs by Kanak Lata in Vandana Investments but for reasons best known to the ld. Prosecutor, only the a/c opening form of the said account was proved leaving out the crucial account statement.

154. Closely interwoven with the above issue is the assertion of accused Sanjiv and Abha that all the shares which were transferred to AVI Capitals by Cosmos were infact of Tika Hasan. For this assertion, accused persons relied upon one-line cross-examination of PW 41 SC Gupta wherein he admitted the suggestion that the shares were transferred from Cosmos Mngmnt. to AVI Capitals on the asking of Tika Hasan Mustafa. This brief cross-examination was then heavily relied upon by the accused persons to contend that infact whatever shares had been transferred from Cosmos to AVI Capitals, were actually the property of Tika Hasan. During the course of final submissions, accused Sanjiv Kumar (arguing in person) repeatedly highlighted that vide a court decree/settlement, Tika

Hasan and SC Gupta had entered into a compromise and all the above shares were transferred from AVI to Tika Hasan or so to say, were owned up by Tika Hasan. This Court twice asked accused Sanjiv Kumar to file/produce a copy of the settlement between SC Gupta and Tika Hasan but both times, the excuse given was that he was trying to get a certified copy of the same but was finding it difficult. It is not understandable as to why could accused Sanjiv Kumar not simply get a certified copy from Tika Hasan or ask him to apply for one and then produce it in the Court, especially when Tika Hasan has all along been portrayed as the one closest to accused persons and someone who stood by Sanjiv Kumar and his family through the trying times. Not even an uncertified copy was placed on record.

155. The argument by accused Sanjiv Kumar that shares which were transferred by Cosmos Mngmnt. to AVI Capitals were on the instructions of Tika Hasan is also unacceptable for another strong reason. While owning up the MOU dt. 1.4.2001 with PW 25 Ram Avtar Aggarwal, SC Gupta deposed (in cross-examination by the Id. PP) that vide the said MOU, all shares which were purchased on the instructions of Tika Hasan were transferred to Ram Avtar Aggarwal when transactions with Tika Hasan ended. He further deposed that it was Tika Hasan who had sent Ram Avtar Aggarwal to him i.e. to SC Gupta. This testimony of SC Gupta is on an absolutely different tangent when compared with the (hostile) testimony of Ram Avtar Aggarwal who claimed that vide the MOU only those shares were purchased by him which had been bought by Vandana Investment for him. Further, if all shares/share investments of Tika Hasan had been transferred to Ram Avtar Aggarwal by SC Gupta vide the MOU and the transactions with Tika Hasan had ended, then in which context was the court settlement arrived at between SC Gupta and Tika Hasan regarding shares which had been transferred from Cosmos to AVI Capitals, which SC Gupta claimed, had been transferred on the instructions of Tika Hasan? These questions were for defense to answer but it failed to afford any explanation.

156. Accused Sanjiv further argued that a/c no. 10027752 was of Abhipra Capitals and not of Abha Kr. This account number was mentioned in the Delivery Instruction Slips booklet of Abhipra Capitals □file D□76, and Party Ledger of Cosmos Management - file D-75 A. It was argued that in file D□75 A, a/c no. 10027752 is first shown as account of Abhipra Capitals whereas on subsequent pages, same a/c number is mentioned for accused Abha as well. In this regard, the Court will like to observe that the argument is plainly and purposely misleading. As already highlighted above, Abhipra Capitals was a share depository company which was made use of by share brokers/firms to keep the shares of their clients safe in demat form. Account no. 10027752 was the account of Cosmos Management in Abhipra Capitals which is patent from the Delivery Instructions booklet (file D-76). This instruction booklet was issued by Abhipra Capital on the top right corner of which it is clearly mentioned that it offered Depository Services, in addition to other financial services.

157. As a penultimate argument, accused Sanjiv highlighted that client registration form of Abha was not verified by Cosmos but then neither was that of Tika or his wife, as per PW 40. If accused rely on Tika's client status with Cosmos to bail out accused Abha, then the same argument has to be applied to Abha's status as a client of Cosmos. The final argument in regard to this issue which was addressed by accused Sanjiv was that being a lawyer, Abha was helping out Tika Hasan with his multiple litigations and that helping him in his share trading was a part of this courtesy. The Court

would like to highlight that Abha was a briefless lawyer, if her IT returns during the check period are to be believed. The professional income column of the IT returns was conspicuously nil throughout the check period. If that was the state of her profession, it is anyone's guess that how much would have she been helping out Tika Hasan professionally with his 'multiple litigations' of which also no evidence has been led by the accused.

158. It has to be handed out to accused Sanjiv and Abha Kumar that the manner in which they have tried to tie up all the loose ends was truly remarkable. First, all the cash investments of Abha to Cosmos Management was owned up by AVI Capitals vide their letter dt.19.2.2001. Second, it was sought to be established that all the shares transferred to AVI Capitals from Cosmos was actually of Tika Hasan and as a prelude to this line of defense, it was argued that Abha was actually investing Tika Hasan's money. However, their wisdom fell short on 2 counts. If the shares which were transferred by Cosmos to AVI Capitals were of Tika Hasan, why is that the letter of AVI Capitals dt. 19.2.2001 which was addressed to Cosmos mentions about "their" transactions through Mrs. Abha and not Tika Hasan. There is nothing to even remotely connect Tika Hasan with the transfer of shares from Cosmos to AVI Capitals except the brief cross-examination of SC Gupta (highlighted above). PW 40 Seema deposed about transfer of shares vide Delivery Instruction Booklet Ex. PW40/F1 to F4 which mentions about Abha Sinha and not Tika Hasan. Further, there is nothing to infer from the account opening form of Abha Kumar with Cosmos that she was to act as an agent of Tika Hasan or of AVI Capitals for that matter. Infact, if at all she had to act as an agent of Tika, she could have simply done so on the basis of an authorisation letter. There was simply no need for her to have been enrolled as a client member with Cosmos unless the intention was to actually trade on her own behalf. In any case, once Tika Hasan's own wife was enrolled as a client member of Cosmos, in the common course of things, his investments should have been handled by her and not by Abha Kumar, irrespective of how close the relationship between them might have been. It just does not stand to reason that an educated wife of a senior officer of the Indian Administrative Services, and herself coming from a highly reputed family of Dhanbad, would act as a cash courier agent for a friend, and especially, when there is no tangible reason as to why would she even agree to act as a cash agent. The explanation given on her behalf that she did it out of friendship and close family relationship is simply unacceptable. A lot of emphasis was placed on the 'absence' of a specific question by the ld. PP while examining in chief PW 40 Seema i.e. why did he not question/probe PW 40 further when she said that "after cash was collected from Abha, it used to be confirmed from Tika Hasan". This argument is a double-edged sword with the cutting edge being sharper on the side facing the accused. The Court would like to observe that if it was such a pertinent question, why is that PW 40 Seema was not cross-examined on this? Was it not the foremost requirement of defense on behalf of Abha Kumar that a specific question should have been put to PW 40 with regard to the above highlighted statement given by her in chief-examination? If the accused Abha was so desperate to prove her innocence, the first question which should have been put to PW 40 or alternatively, suggestion given to her should have been whether the cash tranches deposited by Abha was actually the money of Tika Hasan? Instead, in her street smartness, accused purposely refrained from questioning PW 40 on this issue and thought of making use of the absence of questioning by ld. PP a rallying argument at the stage of final submissions. To pointedly question PW 40 Seema on this aspect, especially since she had not been declared hostile, was the surest manner for putting forth an effective defense of accused Abha that she was merely an agent of Tika Hasan. However,

this was not done since the outcome of this course of action in all likelihood would have been adverse to accused Abha Kumar. From a reading of the cross-examination of PW 40, it is not clear as to in what manner was the question put to her regarding 'confirmation sought from Tika Hasan after cash was received from Abha', but it is clear that a straight question was deliberately avoided since the response of the same was likely to be detrimental to defense of the accused. Thus, even in cross-examination, a lacunae was left (deliberately by the accused) regarding 'confirmation from Tika Hasan after receiving cash from Abha Kumar'. How do the accused persons expect the Court to believe that Abha was merely depositing cash on behalf of Tika Hasan solely on the basis of this one line which PW Seema stated in her chief and cross-examination? The presumption or inference which is to be drawn, can be done both ways. The Court is equally entitled to infer that since Abha was introduced by Tika Hasan who was a known customer of Cosmos, every deposit of cash by Abha was cross-checked by Seema with Tika Hasan whether the same has to be invested in purchase of particular shares or for forward trading. Additionally, if PW Seema's role was only to accept cash and none further as has been repeatedly emphasized by the defense, what difference did it make to her whether cash was coming from Abha or someone else? Why would she even bother to ask Tika Hasan whether cash deposited by Abha was her own money or that sent by Tika Hasan? And if at all the confirmation sought by Seema from Tika Hasan was with regard to the source of money, why were the receipts issued in the name of Abha and even got signed by Abha and that too on the next day? Atleast after confirmation from Tika Hasan, the receipts should have been issued in his name if it really had been his money. It would have still been an arguable point if the receipts had been issued in the name of Tika Hasan but were signed by Abha as acknowledgment of cash deposited. Further, at the stage of leading defense evidence, accused Abha chose not to examine anyone when that was the most opportune moment for her to have brought in Tika Hasan to fortify her defense. A specific query was put to the accused as to why was Tika Hasan not examined in defense of Abha Kumar, in response to which no convincing response came forth except to contend that since prosecution had failed to discharge the prima facie burden of proving that Abha was investing her own money with Cosmos, there was no need for the accused to bring any defense on that count. Court has not been able to understand as to why was such a conclusion drawn by the accused persons in the face of detailed testimony of PW 40. Infact, failure of accused Abha Kumar to bring in its most effective witness Tika Hasan further confirms the opinion of this Court that Tika Hasan would not have deposed in favour of Abha Kumar.

159. So far as testimony of PW 40 Seema before the Special Court, CBI, Chandigarh is concerned, it needs a highlight that Ld. Special Judge returned no finding on the testimony of Seema except to simply note that Seema had deposed about investment by Abha in shares. This is the reason why the plea of issue estoppel was so fervently raised qua the testimony of R.K. Sharma but not qua the testimony of Seema Malhotra. Therefore, her admission before the Special Court, CBI at Chandigarh regarding Tika's authorisation to accused Abha is of no consequence.

160. A lot of stress was also laid on the absence of JL Malhotra from the list of witnesses, the person who was supposedly running the show of Cosmos Management. Highlighting the relevant part of testimony of PW 40 Seema, it was argued by accused Sanjiv as also by Ld. Counsel for accused Abha and Kanak Lata that PW Seema admitted in her court deposition that though she was a Director in Cosmos Management, her role was confined to accepting cash payments and issuance of receipts.

She further stated that all transactions and settlements were handled by JL Malhotra and the details regarding the same would be in the knowledge of JL Malhotra. She further deposed that there was a problem between Tika Hasan and JL Malhotra on account of 'bad delivery' of some shares. Relying on the above, it was argued by the defense that prosecution deliberately did not bring in the best witness i.e. JL Malhotra since had he been brought in to testify, it would have been clear that Abha was merely an agent for Tika Hasan and did nothing more than deposit cash on behalf of Tika Hasan. In this regard, the Court would like to observe that need for the prosecution to bring in JL Malhotra would have arisen had the Investigating Officer not been able to find a direct link between cash investments/deposits and accused Abha. Once the prosecution has been able to prove with the aid of PW 40's testimony that Abha had enrolled as an independent client and that subsequently, huge cash was deposited by accused Abha though in tranches (which Abha Kumar did not even deny except to offer clarification of being an agent of Tika Hasan), it was for the accused to explain the source of the money and its legitimacy. Therefore, absence of JL Malhotra as a PW is of no aid to the defense plea, in the understanding of the Court. The 'insignificance' of Seema as a PW was also repeatedly highlighted by the defense at the stage of final arguments. The Court would however like to observe that if Seema was really such an insignificant part of Cosmos Mngmnt. and her only job was to accept money, why is that the purported authorisation letter issued by Tika Hasan in favour of Abha was addressed directly to Seema and not to JL Malhotra?

161. It also needs a highlight that apart from the cash deposits by Abha with Cosmos Mngmnt., PW 40 Seema had also proved 2 deposits of Rs. 5 lacs and Rs. 1 lac respectively which deposits were made through Cheques. These 2 cheques were exhibited as Ex. PW40/J1 and Ex. PW40/J2. The bank account from which these cheques were issued is in the name of Abha Kumar - A/c No. 019598, Syndicate Bank, Khan Market. The account statement of this account was proved as Ex. PW26/A. However, instead of proving the relevant account statement showing entries pertaining to these 2 cheques, prosecution proved account statement of the period June 2004 to January 2005 which had limited relevance. Under 313 Cr.PC. however, when these 2 cheques were put to Abha, her response was - I don't know. The Court believes that instead of her tepid response to this important evidence, accused should have effectively denied that these 2 cheques were never issued by her or that the bank account does not belong to her. In the absence of a firm and clear reply from the accused, it has to be taken as an admission on her part that these 2 cheques were deposited by her from her account with Cosmos Mngmnt. Relevant to highlight that even though AVI Capitals owned up all the cash deposited by Abha with Cosmos, these 2 cheque deposits were conspicuously left out by AVI Capitals in their letter dt 19.2.2001 to Cosmos. In regard to proof of this account being of accused Abha, it was argued by Sanjiv Kumar that the bank account was not proved to be of Abha since the account statement proved by PW 26 was of account No. 90432010057525. This argument is not of any consequence since in the 161 Cr. PC statement of PW 26 Surjeet Chopra recorded by the IO on 1.10.2007, he had mentioned old and new account nos. i.e. 19598 and 90432010057525. Infact, both these account nos. have been mentioned by accused themselves in their chart of statements A, B, C & D. It needs a highlight that the client registration form of Abha with Cosmos Management which was proved by PW 40 also mentions the account No. 19598 from which above 2 cheques were issued by her in favour of Cosmos. The Client registration form of Cosmos Mngmnt. was attested by Syndicate Bank, Khan Market, possibly for the purpose of verifying the Bank Account. There is thus no doubt that above mentioned 2 cheques were issued by

Abha from her account maintained in Syndicate Bank, Khan Market. Another argument raised by accused Sanjiv in regard to this account was that there was no proof that these 2 cheques were deposited in the account of Cosmos Management. It may be highlighted that PW 40 was not cross-examined at all on these 2 cheques. Not even a suggestion was given to her that these cheques were never encashed by Cosmos. Further, it is inconceivable that Cosmos would have issued the receipts without realizing the cheques.

162. At this stage, the Court would like to deal with one specific argument raised by accused Sanjiv on which almost feverish stress was laid. It was contended by accused Sanjiv Kumar that Investigating officer had not collected even one share script in the name of either Sanjiv Kumar, Abha Kumar or Kanak Lata which was a major investigative lacunae considering that the 2 major allegations of disproportionate assets were actually pertaining to investments by Sanjiv Kumar and Abha Kumar in share market. Admittedly, investigation was lacking on that front but that does not form the complete picture. If we have a careful look at the testimony of PW 40 and PW 41 and the documents admitted by them, it is revealed that Abha Kumar was dealing to a great extent in forward trading in which there is actually no transfer of shares from the seller to the purchaser. Forward Trading is now known as Future Trading. The modus adopted is that the investor simply pays specific margin money and books a certain number of shares for a future date at the price available on that day. When the date arrives, depending on whether there is rise or fall in share prices, the investor either makes money or incurs losses but there is no transfer of shares. This explains that even if IO had gone searching for share scripts in the name of Abha, he would not have laid his hands on much. Accused Abha was thus smart enough to invest majorly in forward trading. So far as share scripts in the name of accused Sanjiv is concerned, no separate investment was actually made in the name of Sanjiv but in the name of either Abha, Kanak or one Amit Kumar who the prosecution alleges to be the fictitious name of Sanjiv Kumar. However, the IO should have still investigated the Cosmos Mngmnt. account in Abhipra Capitals which was holding shares of clients of Cosmos Management in Demat form but lack of investigation on this count is not detrimental to the prosecution case.

163. In view of the above detailed discussion, so far as investments/deposits of Rs. 68 lacs which includes 2 deposits by cheques totaling Rs. 6 lacs by accused Abha with Cosmos Management is concerned, this court has no doubt that the said money was not of Tika Hasan but of accused Abha Kumar. This amount of Rs. 68 lacs has not been reflected anywhere by Abha Kumar or Sanjiv Kumar as being from their legitimate source of income. Infact, the joint plea of accused Abha and Sanjiv that the above amount was of Tika Hasan disentitles them both to even contend that this income can be explained. Accused Abha never took the plea that this amount was her own self-generated income. Accused Abha and accused Sanjiv Kumar always had a joint household and therefore the irresistible conclusion is that Rs. 68 lacs (including Rs. 6 lacs deposited by accused Abha through cheques with Cosmos Management) was given to her by accused Sanjiv Kumar. Further, qua the acquisition of Bara Hindu Rao property, it stands proved that booking of the property was got transferred by Abha in her own name by paying 3 lacs which expense/asset also she has not owned up which necessarily means that acquisition of this asset was never informed to the controlling govt. under which accused Sanjiv was employed and further that neither Sanjiv nor Abha are entitled to even contend that this asset can be explained from their respective individual or

combined incomes. Still further, this Court is of the clear opinion that flat no. 6357, Vasant Kunj was the benami property of Abha and Sanjiv. Consequently, the said asset atleast to the extent of Rs. 6.5 lacs plus Rs. 2.5 lacs which SC Gupta admitted to have paid to KK Lal, has to be taken to be that of Abha and Sanjiv. It may be emphasised that SC Gupta's relationship with both Abha and Sanjiv stands clearly established for which reason the payment of Rs. 2.5 lacs by SC Gupta to KK Lal stands proved to be that of Abha and Sanjiv especially since SC Gupta had no connection whatsoever with KK Lal. In the acquisition of both these immovable assets, accused Abha has actively assisted accused Sanjiv.

Credit of 1000 GBP on 12.8.2004 and 2000 GBP on 28.9.2004 in the joint ICICI a/c of Kanak Lata and Maheshwar:

164. The deposit of GBP 3000 in the jt. ICICI Bank account of Kanak Lata and Maheshwar Kumar having cumulative value of Rs. 2,48,310 was proved by PW 15. In cross-examination, witness clarified 2 important aspects - first, that the transfer of GBP was either through wire transfer or through foreign Demand Draft, and second, that GBP cannot be deposited in cash. The prosecution has not been able to even remotely prove the link between these 3000 GBP and accused Sanjiv Kumar. Simply proving deposit of GBP in the jt. Account of A-3 and A-4 does not prove in any manner that it was Sanjiv Kumar's unexplained income. On the contrary, PW 15 proved that the 3000 GBP were foreign remittance.

Purchase of GBP 500 and US \$ 200 by Maheshwar Kumar for Rs. 43,627 in cash and purchase of GBP 300 and US \$ 500 by Kanak Lata for Rs. 44,417:

165. Purchase of the above-mentioned foreign currency was not denied by the accused persons as the relevant witness was not cross-examined at all. However, the plea raised was that money to purchase this foreign currency was gifted by Dr. Rajiv Kumar (son of A-3 & A-4) as reflected in his IT Returns. Prosecution was not able to prove that the amount spent on the purchase of this foreign currency was supplied by accused Sanjiv. Even if it is not accepted that the amount was gifted by Dr. Rajiv Kumar, even then this amount can not be connected with accused Sanjiv. No plausible argument was put forth by Id. Sr. PP as to why should this amount spent by A-3 and A-4 be included in the expense of accused Sanjiv.

Payment of Rs. 87994/- as electricity bills from March 1999 to September 2003 and Rs. 54600 as maintenance charges from June 1996 to Decemebr 2003 of flat no. 15, Hope Apartments, in the name of Sanjiv Kumar:

166. The contention of accused Sanjiv Kumar in regard to the payment of the aforesaid electricity bills and maintenance charges was that the same were paid by Mr. Rajeev Kumar (not the brother of accused Sanjiv) who had been appointed as an attorney by accused Sanjiv by executing a power of attorney. Relevant prosecution witnesses i.e. qua electricity bills and maintenance charges - PW 23 & PW 27 proved that the bills and receipts were issued in the name of Sanjiv Kumar since he was the recorded owner of the flat but neither of them could specify as to who had paid the

charges. PW 27 who was a clerk in the HOPE Apartments Society did clarify that charges were paid by different occupants of the flats (for the above period) though receipts were issued in the name of Sanjiv Kumar. It was thus argued that Rajeev Kumar was a tenant in whose favour power of attorney had been executed. However, perusal of the power of attorney Ex.

PW46/D9 does not in any manner record that Rajeev Kumar was a tenant in the said Flat. Recitals of the attorney document infact show that attorney holder had been given the power to induct tenants and even to dispose off the property by way of sale. There is nothing to infer from the attorney document that Rajeev Kumar was a tenant inducted by Sanjiv Kumar. In any case, which landlord executes a power of attorney in favour of a tenant so as to give him authority of sale? Since Rajeev Kumar was at best a caretaker of the property, even accepting that he used to pay electricity bills and maintenance charges, it has to be assumed that he was reimbursed by Sanjiv Kumar for all such charges. So far as payment of maintenance charges are concerned, the testimony of PW 27 does not prove in any manner that the different occupants who paid the charges were actually tenants. No tenancy agreement has been brought on record except the power of attorney in favour of Rajeev Kumar. No evidence has been led to show that Sanjiv Kumar was receiving rent by way of cheques from different tenants or even from his attorney Rajeev Kumar who he contends to be a tenant. In the very least, Rajeev Kumar could have been brought in as a defense witness to prove tenancy but the same was not done neither was any other 'occupant' of the flat brought in to depose that he ever occupied the premises as a tenant. As a corollary to the above, this Court holds that all electricity and maintenance charges of the Flat for the above period were infact paid by Sanjiv Kumar.

Joint A/c no. 16887 in the name of Abha Kumar, Kanak Lata and Dr. M. Kumar:

167. In regard to savings a/c no. 16887 in OBC Gurgaon, Rly road branch, PW 24 proved the account opening form as Ex. PW 24/D (Colly) which clearly proves that it was the joint account of A - 2, A-3 and A-4. This is the account in which maximum transactions were carried out during the check period. Even in the charge sheet, this specific account was highlighted to show that A-4 Kanak Lata had invested close to Rs. 25 lacs i.e. vide 2 cheques of Rs. 18 lacs and Rs.

7 lacs, in Vandana Investments owned by SC Gupta. There was also a cheque of Rs. 24 lacs issued in favour of PNB and a deposit of Rs. 24 lacs in this account. Strangely enough, and I must observe that this was a serious flaw on the part of the conducting prosecutor, even though account opening forms were proved (though even here prosecutor did not bother to ensure that certified record is brought in) the account statement was not proved at all even though it was available on file which left out the entire period of heavy transactions in the account and most importantly, the 2 heavy cheque payments vide which Kanak Lata purportedly invested Rs. 25 lacs with Vandana Investments. Had the prosecutor cared to get the account statement of relevant period proved from PW 24, link evidence to connect Kanak Lata with SC Gupta would have been clear and absolute but for the absence of which, PW 41 SC Gupta was able to flatly deny that he ever received any money from Abha or Kanak Lata.

Elec. Bills for the period Nov. 2K to feb. 2005 for flats no. 6357 and 6360 Vasant Kunj and fixed line telephone bills for the above 2 flats for the period 30.4.2001 to 20.1.2005

168. Electricity bill for flat no. 6357 for the above period was Rs. 44170 issued in the name of recorded owner KK Lal and for flat no. 6360 bill was Rs. 146070 issued in the name of recorded owner Prasanna Kumar. The bill amounts have been objected to on the ground that the same were computer generated statements without the mandatory certificate u/s 65 B of the Indian Evidence Act. However, perusal of the relevant document shows that for flat no. 6357, electricity bill amounting to Rs. 19,621/□were handwritten bills and hence, did not require any certificate u/s 65 B. Similarly, for flat no. 6360, electricity bill amounting to Rs. 52,117/□are handwritten bills which can be considered to be admissible per se since they were proved by an official from the electricity department. Since, Sanjiv Kumar has been held to be in possession of flat no. 6357 being the benami owner, he is held to have paid electricity bills amounting to Rs. 19,621/- whereas Dr. M. Kumar is held to have paid electricity bills amounting to Rs. 52,117/□

Telephone bills generated by MTNL for phones installed in flat no. 6357 and 6360 Vasant Kunj for the period 24.4.2001 to 28.1.2005.

169. The details of the telephone bills (in file D - 62) were objected to since they were computer generated sheets without certification u/s 65 B of the Indian Evidence Act. Rs. 38,052 was paid for the above stated period in respect of telephone in the name of Dr. Maheshwar Kumar in flat No. 6360 and Rs. 35214 was paid in respect of telephone in the name of Dr. Rajiv Kumar in flat No. 6357. However, in the opinion of the Court the bills proved by PW 34 are admissible since the bills bear the official stamp of the relevant telcom Officer of the MTNL and have been proved by an official from the MTNL. Consequently, expense of telephone bills as above is accepted as incurred by Dr. M Kumar and accused Sanjiv respectively.

170. The Court will now consider the chart A, B, C(i), D and C

(ii) which was submitted by the accused persons wherein they have sought benefits of additional income, reduction in asset/asset value and in expenditure for the check period.

STATEMENT A (Asset Value before the Check Period) Sl. Detail of Asset holder Amount as Benefit Court's Observations No. Assets per charge□claimed by sheet accused persons vide their chart dt.

			06.11.2020
1	Flat no. 15, Sanjiv Kr. Hope Apartment, Part II, Gurgaon	9,82,400	None
2	SB A/c no. Sanjiv Kr. 15469 in OBC, Rly. Road, Gurgaon	194	None

3	A/c no. 7617 Mr. Sanjiv 1,552 in Allahabad Kumar Bank, Panipat	None		
	in Canara Kumar Bank, Panipant Main.			
5	Abha Sinha in his income tax return for assessment year 1996-97 has mentioned assets and property worth Rs. 8,71,917 as on 31.03.96	Abha Sinha 8,71,917	None	
6	Plot no. 1995 of 350 Sq Yds, Sector- 28, Faridabad, HUDA	Abha Kumar 19,163	None	
7	SB A/c no. 15666 in OBC, Rly. Road, Gurgaon,	Abha Kumar 500	None	
8	PPF A/c no. 11/1810 in SBI, PB Division, Dhanbad	Abha Kumar 20,100	None	
9	Jewellery found in locker no. 609, ICICI Bank, Vasant Kunj, Delhi, valuated by Govt. valuer Vijay Goel PW 2	Locker in the 4,00,000 name of Mrs. Abha Kumar, Smt. Kanak Lata and Dr. M. Kumar of	Benefit claimed in Chart B at sr. no. 20 i.e. chart of assets at the end of check period	Necessary finding given and sa reproduced in Char no. 20
10	PPF A/c no. 1310 New	Dr. M Kumar 5,300	None	

	no. 01P00900557 in SBI, PB Division, Dhanbad			
11	Building at Dr. Dhanbad Maheshwar constructed Kumar by Dr. M Kumar, on basis of power of attorney executed by his daughters-in- law in 1988	5,50,000	None	
12	Pension A/c Dr. no. 2268 in Maheshwar Allahabad Kumar Bank, Dhanbad	18,345	None	
13	SB A/c no. 470 in Allahabad Bank, Hirapur Branch, Dhanbad	Dr. M. 22,503 Kumar and Mrs. Kanak Lata	None	
14	Plot no. 1997 Mrs. of 350 Sq. Lata Yds, Sector- 28, Faridabad, HUDA	Kanak 19,163		
	Total	29,11,239/ -		
15	Patna Flat No. 438/B Boring Kanal Road (HUF property)		Benefit of Rs. 5,17,000/- claimed by contending that this	The contention of accused that it is property is wrong. the memorandum of p of HUF properties d 14.02.1988, HUF sto

property
existed
prior to the
check
period but
IO
deliberately
ignored the
same.

dissolved and
marked as Flat B of
Canal Road double s
property, fell to t
Kanak Lata alone, a
memo of
Additionally, no de
evidence has been l
prove that this pro
sold during the che
period. Accused rel
Rajiv's ITR of AY 1
to show sale of a p
1998 but neither an
deed was produced i
defense evidence no
of purchaser were f
Additionally, since
fell to the share o
Lata, Dr. Rajiv cou
have sold off this
Even admitting that
pre-check period as
is no proof of the
addition of Rs. 5,1
this property prior
check
Consequently, this
value cannot be add
share of accused pe
collectively bef

check period.

STATEMENT B (Assets at the end of the Check Period) Sr. Assets Assets Amount Benefit Court's
Observation No holder as per claimed by charge □ Accused sheet 1 SB A/c no. Sanjiv Kumar
1,08,729/ □ Deduction of CBI/prosecution has no 1410 Vijaya Rs. objection to this deduction, Bank,
Sector □ 1,08,729/ □ as per its reply to the charts 34, from the submitted by accused Chandigarh,
assets has persons. Hence the amount is been sought to be deducted from the on the assets.

ground that
Sanjiv Kr.
received his
salary in this
account and
also, interest

			accrued in this account	
2	SB A/c no. Sanjiv Kumar 2,101/- 7617 Allahabad Bank, Panipat		Deduction of Rs. 2,101 sought on the ground that it should be a part of the income of Sanjiv Kr. during check period.	This account balance outstanding amount at the end of the check period hence can't be deducted being an asset. However interest of Rs. 549 in this account during check period benefited C which is the income of accused persons during check period. Hence Rs. 549 be added in Ch
3	SB A/c no. Sanjiv Kumar 17,679/- 15469 Allahabad Bank, Hirapur Br., Dhanbad		Deduction of Rs. 17,679/- has been sought on the ground that there were no transaction-s in this account during the check period.	the income of Sanjiv Kumar. Relevant account statement i.e. Ex. PW4/B (Financial statement) shows credit and debit entries during the check period and hence, cannot be permitted. This is the balance/asset at the end of the check period. Deduction of Rs. 17,679/- is denied.
4	SB A/c no. Sanjiv Kumar 1,279/- 3610 (HUF) Allahabad Bank, Hirapur Br., Dhanbad		Deduction of Rs. 1,279/- sought on the ground that prosecution could not prove this account.	CBI/prosecution admitted the account statement. It has been proved. Hence Rs. 1,279/- is to be deducted from the asset value of Sanjiv Kr.
5	Six IDBI Flexi Bonds Dated 23.04.01	Sanjiv Kumar 30,000/-	None	This is an exhibit document by the defence. Ex. Z-54 (file D-7)
6	Two ICICI Tax Saving Bonds date 30.04.03	Sanjiv Kumar 10,000/-	None	This is an exhibit document i.e. Ex. Z-15 (file D-2)
7	DDP no 10155 Sanjiv Kumar 1,25,000/- Allahabad (HUF)	-	Deduction of Rs. 1,25,000/-	CBI/prosecution could not prove this account and hence, amount of Rs. 1,25,000/- is to be added in Ch

Bank,
Hirapur,

1,25,00/- 1,25,000/ has to be
sought on deducted from the asset
the ground

	Dhanbad		that prosecution could not prove this account	value of Sanjiv Kr.
8	National Saving Certificate	Sanjiv Kumar 5,000/-	None	This is an document i.e. Ex. Z- (file D-21).
9	NSC no 21DD001593	Sanjiv Kumar 5,000/-	None	This is an document i.e. Ex. 22).
10	Sanjiv Kumar Sanjiv Kumar 50,000/- (HUF) in his (HUF) IT Return for assmnt. Yr. 2000-01 to 2004-05 has mention-ed one flat at Gurgaon (DLF) for Rs. 50,000		Deduction of Rs. 50,000/- as asset sought on the ground that prosecution has not proved this asset i.e. Flat at DLF, Gurgaon.	The argument of that no witness been brought by to prove the ass tenable as the a 50000/- is menti Sanjiv Kr. in hi AY 2005-06, Pros had no requireme this asset unles Kumar denied thi during the cours This IT Return w by PW 6 as Ex. P no question was witness in a man this ITR. Hence, deduction of Rs. denied.
11	National Saving Certificate 6NS/20DD 850782	Sanjiv Kumar 5,000/- & Kanak Lata	None	This is an document i.e. Ex. (file D-21).
12	SB A/c no. 6000 OBC, Pkl., Haryana	Abha Kumar 40,033/-	Deduction of Rs. 40,033/- as	Prosecution has not be able to prove that thi amount was the balance

no witness amount in this ac
has proved end of check perio

			the said bank account statement.	deduction is allow
13 PPF A/c no 11/1810 SBI, PB Division, Dhanbad	Abha Kumar	3,35,100/-	Deduction of Rs. 3,35,100/-.	There is balance o 4,74,889/- at the check period in th proved through Ex. (file D-7) & it is document. Therefor value at the end o period has to be t 4,74,889. However, this amount, an am Rs. 3,14,000/- whi amount of subscrip deposited by Abha the check period, reduced from the e of Abha Kumar as t amount has already reflected in her I The account has no proved by the pros and hence, Rs. 8,7 be deducted from t
14 SB A/c no. 119 Allahabad Bank, Hirapur Branch, Dhanbad	Abha Kumar	8,779/-	Deduction of Rs. 8,779/- has been sought on the ground that prosecution has not proved the account/acco -unt statement.	
15 SB A/c no. 15666 OBC,	Abha Kumar	334/-	Deduction of Rs. 334/- sought since	This is the amount the end of the che proved thorough Ex
	Gurgaon		the account statement being without 65- B certificate.	PW-4/A (D-14), which handwritten document does not require 65-B Certificate under Evidence Act. He deduction of Rs. 334/ denied.
16 Assets movable and immovable held at the end of check	Abha Kumar	2,93,170/-	Deduction of Rs. 2,93,170/- has been sought on the	Statement B includes assets which are in t of the accused at the check period, irrespe whether or not there

period as shown in the income tax return filed by	Rs. 30,000	ground that property at Ranchi and Gurgaon	addition during the period in the value of property held before check period. Accused
	Rs. 70,000		
Abha Kumar for assmnt. year 2002-03.	Rs. 1,93,170	were sold off during the check period and also that land at Dhanbad was an asset in hand before the start of check period along with properties at Ranchi and Gurgaon.	the Court to believe these properties were during the check period the same do not find reflection in Abha's the check period. How the Court cannot proceed this assumption. If it had been sold off, the accused person would definitely claimed be the same in the 'income during check period' was evidently not done. None of the ITRs as claimed by defense contains a receipts of income or gain tax liability. Hence deduction of Rs. 2,93 is denied.
17 Special Term Deposit	Abha Kumar 20,000/-	Deduction of	If the prosecution has Rs. already granted benefit of
receipt no. 776004 for 78 months		20,000/- has been sought on the ground that this Term Deposit was a re-investment of an earlier investment which matured during the check	income on account of maturity of an investment during the check period same cannot be extended mean that if an asset created from the income asset value will stand negated. Any asset created during the check period standing at the end of period will necessarily taken as asset in the of accused at the end of check period.

period. It was deduction of Rs. 20,000/□is further denied.

contended that benefit of maturity amount has already been given to accused Abha as income during the check period.

18 DCM Estate	Smt. Abha 3,00,000/-	Deduction of	The acquisition of the
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Plot	Kumar	Rs. 3,00,000/- has been sought on the ground that alleged asset was not proved in the name of Abha.	'asset' has been disc detail in the 'Findin Court has concluded t this asset was duly p be in the name of acc Abha as also the paym Rs. 3 lacs by her to this asset. Hence ded of Rs. 3,00,000/- is
19 Plot no. 1995, Mrs. Abha 19163/- Sec-28, Kumar Faridabad,		Deduction of Rs. 19163/- has been sought on the ground that this allotment was prior to the check period and that beyond the first instalment, nothing more was paid.	The acquisition of t and the asset value h discussed in detail i 'Findings'. Court concluded that this a of Rs. 19163 cannot b treated as an asset s asset was created mer paying 1 instalment a further that this ins was paid prior to the period. Hence, Rs. 19 liable to be deducted the asset value of Ab
20 Jewellery found in locker no. 609, ICICI Bank, Vasant Kunj, Delhi valuated by Govt. valuer PW 2	Locker in the 14,79,084/- name of AbhaKumar, Kanak Lata and Dr. M. Kumar.	Deduction of Rs. 14,79,084/- has been sought on the ground that testimony of PW 2 and his valuation report is not trustworthy.	The asset value of je has been discussed in in the 'Findings'. Co concluded that testim PW 2 was not logical credible. Conseq this amount is to be deducted from the ass value of Abha since t value of 70% jewelery was estimated by PW2 have been acquired in check period, h attributed to accused
21 Flat no. 6357, Sector-C, Pocket-6/7, Vasant Kunj, New Delhi In income tax	Dr. Rajiv 14,00,000/- Kumar (r/o UK), purchased on 19.11.99	Deduction of Rs. 14,00,000/- has been sought from the assets of Sanjiv	The acquisition of th has been discussed in in the 'Findings'. Co concluded that this p was infact acquired b by accused Sanjiv and with the aid of PW 41 Gupta and that Dr. Ra

	return for assessment year 2000-01, Mrs. Abha Kumar has shown Rs. 6,50,000 as advance for Flat to Sh. KK Lal.		Kumar on the ground that prosecution failed to prove that this property was acquired 'benami' by Sanjiv Kumar.	was merely a front. been further held that stands proved that Rs. lacs was paid from the PkL. a/c of Abha, and lacs was paid by SC Gupta with whom Sanjiv and had a close link. SC further admitted that no link with KK Lal and did not even knew him leading to the irresistible conclusion that the money was supplied by Abha Sanjiv to SC Gupta for payment to KK Lal. Hence the asset value attributed to Abha and Sanjiv is Rs. lacs.
22	SB A/c no. 19598 (New A/c no 904320100575 25) in the name of Mrs. Abha Sinha at Syndicate Bank, Khan Market, New Delhi	Mrs. Abha 1,393/- Sinha (A/c opened on 22.12.1999)	Deduction of Rs. 1,393/- has been sought on the ground that relevant witness PW 26 could not prove the said account.	This account number has also been discussed in 'Findings' while evaluating evidence qua Abha's contribution to investment in share market through Cosmos Mngmnt. Court has concluded that account no. 19598 was accused Abha and further that a/c no. 19598 is a/c no. of new a/c no. 90432010057525. PW 26 proved the statement of account no. 90432010057525 which contains balance Rs. 1,39,300/- at the end of check period. Hence, this amount cannot be deducted.
23	ICICI Bank A/c no. 000701501139 Kumar, Vasant Kunj, Delhi. A/c opened on 21.03.2003	Abha Kumar 10,07,365/- & Sanjiv	Deduction of This a/c Rs. admitted	statement is an admitted document i.e. Ex. Z-38 (file D-27). Amount Rs. 10,07,365 is balance at the end of check period of this account. Whether amount reflected in the

contains entries of sale by Sanjiv Kumar of his HOPE Apartments flat in Gurgaon, Rs. 2.5 lac received from Shobha (DW 16) and from other savings and legitimate sources

account is savings/receipts or not for the accused to prove the amount was validly taken as asset at the check period. prosecution has already given benefit of the amount of HOPE Apartment flat to Sanjiv Kumar. credit entry of Rs. 2.5 lac from Shobha Singh has not been added by the Court as income since the testimony of witness was not found to be credible. Hence Rs. 10,07,365/-. Is not to be deducted.

24 SB A/c no. Sanjiv Kumar 6,18,671/-
6064 & Abha
Oriental Bank Kumar
of Commerce,
Panchkula

Deduction of Rs. 6,18,671/- has been sought on the ground that statement of a/c was not proved by the prosecution.

Though this amount could not be proved by the prosecution at the end of check period, accused claimed benefit of income of Rs. 1,21,838/- in this account by summoning witness from the Bank. It is obvious that the interest paid on principal amount. To allow benefit of interest accrued in the account, deny the prosecution's assertion of outstanding amount in this account.

end of check period was not be anomalous. Once this account is owned up by the accused persons and the interest credit entries which the benefit accrued by the accused persons seek, is reflected from the same account statement which reflects Rs. 6,18,671 at the end of check period i.e. file D 32. Court can legitimately add this amount as an asset at the end of check period. Hence this amount cannot be not deducted but interest benefit is to be added.

25	Pension A/c no. 2268 of Dr. Maheshwar Kumar in Allahabad Bank, Dhanbad	Dr. Maheshwar Kumar	55,901/-	Deduction of Rs. 55,901/-	income chart. The prosecution has not objected to the deduction claimed. Hence the amount Rs. 55,901/- is liable to be deducted
26	Old A/c no. 119, New SB A/c no. 01190007742 in SBI, PB Div. Dhanbad	Dr. M. Kumar	1,709/-	Deduction of Rs. 1,709/- sought on the ground that this amount is income of the accused.	This amount is stands admitted by accused vide document Ex. Z-11 (filed 8). No plausible reason has been given to include this outstanding amount as income instead of asset. Hence, deduction of Rs. 1,709/- is denied.
27	PPF A/c no. 1310 New no. 01P00900557 in SBI, PB, Division, Dhanbad	Dr. Kumar	M. 5,300/-	Deduction of Rs. 5,300/- sought on the ground that there was no	This amount is the balance at the end of check period before the deduction period has been due. However, interest on this amount considered in statement of assets. Hence, interest benefit of Rs. 11,000/- is denied.
28	Six ICICI Tax Saving Bonds date 30.04.03 no. 77529 date of maturity 30.08.2006	Dr. Kumar	M. 30,000/-	Claimed not to be a part of DA.	This particular amount has been admitted by accused vide document Ex. Z-16 (filed 23). The case is to be considered in its entirety for whether a particular amount to be considered as Disproportionate Asset or not.
29	Allahabad Bank, Hirapur, Dhanbad A/c no. DDP	Dr. M. Kumar	3,50,000/-	Claimed not to be a part of DA.	This particular amount has been admitted by accused vide document Ex. Z-7 (filed 24). The case is to be considered in its entirety for whether a particular amount to be considered as Disproportionate Asset or not.

transaction in being given to the accused the account under the income chart during check period. Hence period and deduction of Rs. 5,300/- is only interest denied.

accrued during this period.

11044

whether a particular
to be considered a
Disproportionate Asset
not.

30 DDP no. 11188 Allahabad Bank, Hirapur, Dhanbad	Dr. Kumar	M. 59,742/-	Claimed not to be a part of DA.	This particular amount been admitted by account document Ex. Z-6 (filed 24). The case is to in its entirety for whether a particular to be considered a p Disproportionate Ass not.
31 Flat no C- 6/6360, Vasant Kunj, Pocket 6&7, New Delhi. Purchased in the year Dec.	Dr. M. Kumar	10,00,000/-	Claimed not to be a part of DA.	Detailed finding has given qua the acquis this asset and Court concluded that this be treated as 'benam of Sanjiv.
32 National Saving Certificate 6NS/16EE 492062	Dr. Maheshwar Kumar	10,000/-	Claimed not to be a part of DA.	This particular amount been admitted by acc document Ex. Z-37/9 21). The case is to in its entirety for whether a particular to be considered a p Disproportionate Ass not..
33 National Saving Certificate No. 16EE 459885	Dr. M. Kumar	10,000/-	Claimed not to be a part of DA.	This particular amount been admitted by acc document Ex. Z-37 (f 22). The case is to in its entirety for whether a particular

to be considered
Disproportionate
not.

34	Dr. M Kumar Dr. M. in his ITR for Kumar assessment year 2004-05 has mentioned following movable and immovable properties	6,32,500/-	Deduction of Rs. 6,32,500/- has been sought on the ground that investment Of Rs. 50 K on flat in Gurgaon has not been proved by prosecution, that the land at Dhanbad cannot be taken to be asset created during check period, and cordless phone & microwave are not questionable assets.	This particular a been admitted by in document Ex. Z D-1A). Defe addressed a very argument that ITR cannot be the bas treating an asset accused and the p had to prove it e the document itse admitted by the a needs a highlight the course arguments, emphasis was laid assertion that IT be accepted per s regard, judgments cited. If this ar accepted, the inc accused persons w be much reduced a benefit of ITR en been given to the the prosecution w physically verify
	1. Building at Dhanbad			
	2. Flat at Gurgaon (DLF)			
	3. Cordless phone set			
	4. Microwave	Rs. 5,50,000/-*		
		Rs. 50,000/-*		
		Rs. 3,000/-*		
		Rs. 29,500/-*	Further, it has been contended that ITR alone cannot be the basis for counting the	existence of thos Immovable propert at Gurgaon and of in Dhanbad fall i category. Further B considers asset hands of accused of check period,
				asset of Rs. acquired prior to check 50000. period or during the curr of the check period. None the submissions regarding this deduction is logical Hence, deduction Of Rs. 6,32,500 is not permissib
35	Plot no. B-103 in Sushant	Dr. M 7,76,000/- Kumar,	Deduction of Rs.	Amount of Rs. 1,76,000/- was reservation amount

Lok, Gurgaon, Haryana in the name of Dr. M. Kumar dt. 26.04.96	Kanak Lata, Snigdha Kumar UNG Sanjiv Kumar.	1,76,000/-	deposited on 31.3.1996, immediately before the st of check period and hence deduction of Rs. 1,76,000 is to be allowed.	
			It needs a highlight tha Snigdha Kumar was a beneficiary of immovable asset logically, the proportio asset value should be transferred to Sa Kumar (being her natural guardian) but the same i not being done since the prosecution has not been able to link payment of 6 lacs with Sanjiv Kumar	
36 SB A/c no. Kanak Lata 3609 Allahabad Bank, Hirapur Branch, Dhanbad		4,949/-	Deduction of Rs. 4,949/- This balance at the end o check period could not be proved by the prosecution and hence, deduction is allowed.	
37 Two ICICI Tax Saving Bonds dt. 30.04.03, no 77528	Kanak Lata	10,000/-	Claimed not to be part of DA.	This amount is ad accused as Ex. Z-1 23(i)).
38 DDP no. 11232 Allahabad Bank, Hirapur, Dhanbad	Kanak Lata	1,50,000/-	Claimed not to be part of DA.	This amount is adm accused as per doc Z-3 (file D-24(i))
39 DDP no. 11297 Allahabad Bank, Hirapur, Dhanbad	Kanak Lata	50,000/-	Claimed not to be part of DA.	This amount is adm accused as document (file D-24(i)).
40 DDP no. 10154 Allahabad Bank,	Kanak Lata	1,25,000/-	Deduction of Rs. 1,25,000/- has been	The prosecution ha objection to deduc 1,25,000/- cl defense. Hence thi

	Hirapur, Dhanbad			sought on the ground that this account could not be proved.	is liable to be de
41	Rs. 4,25,000 Kanak Lata shown in the sale deed of Plot purchased by Kanak Lata in Dhumuspur, Gurgaon.		4,25,000/-	Claimed not Acquisition of this to be a part been discussed in of DA the 'Findings' and to be a 'benami' Sanjiv Kumar.	
42	Valuation	Kanak Lata	Rs.	Deduction	The defense
	Report of construction on Dhumus-pur property, Gurgaon proved by PW 16		10,50,000/- of Rs. 7,50,000/- has been sought on the ground that Kanak Lata has invested only Rs. 3 lacs whereas rest was invested by son Dr. Rajiv as reflected in the ITR's.	Rs. produced any doc evidence in suppo claim that Dr. Ra Rs. 7.5 lacs in c of Dhumuspur prop Rajiv Kumar is sa sold some construction of t but there is only a Maruti car in t of DW-9, which al not specify the a which the same wa There is no refer amount in Ex. DW Hence, this amoun be deducted from value of Kanak La The prosecution a that said propert reflected in stat subsisted till en period since the was never cancell be accepted. Deta in this regard ha been returned by Hence Rs. 19,163/ to be deducted fr assets of Kanak L	
43	Plot no. 1997 Sector-28, Faridabad, HUDA, Haryana	Kanak Lata	19,163/-	Deduction of Rs. 19,163/- has been sought on the ground that this instalment was paid pursuant to allotment made prior to the check period.	
44	DCM	Kanak Lata	5,00,000/-	Deduction of	The acquisition o

residential flat

Rs.
1,25,000/-
sought
contendinghas been discusse
in the 'Findings'
given detailed re
rejecting the con

that this asset this property was an HUF was property. Hence, the amount purchased of Rs. 1,25,000/- is not to be from HUF deducted.

			funds and hence is an HUF property having share of Dr. Rajiv to the extent of Rs. 1.25 lacs	
45 00853575	Kanak Lata 6,000/-		Deduction	This amount is adm
SB Vasant	r/o C-Pkt.		of Rs.	per document Ex. Z
Kunj Post	627 6360,		6,000/-	Colly. [file D-19(
Office, Delhi	Vasant Kunj		sought on the	the outstanding am
	Delhi.		ground that	the end of check p
			this amount	Defense version th
			was actually	interest amount
			interest	from MIS 00483817
			income	tenable as no evid
			received	adduced on this be
			from MIS a/c	
			no. 483817	
			which is	
			mentioned	
			below at sr.	
			no. 46.	
46 00483817		3,00,000/-	Investment	This amount is admit
	Kanak Lata		was made	through document Ex. Z
MIS Vasant			from	Colly. [file D-19(2)
Kunj Post			legitimate	
Office, Delhi			source	
			through	
			Cheque no.	
			637613,	
			ICICI Bank	
			a/c no.	
			0007012285	
47 00411659	Kanak Lata	12,500/-	Deduction of	Defense contention
RD Vasant			Rs. 12,500/-	amount was transfer

Kunj Post Office, Delhi			sought on the ground that this RD a/c received amount from savings a/c no. 853575 at sr. no. 45 which in turn received interest income from MIS a/c mentioned at sr. no. 46	the interest received a/c 00853575 Vasant Post Office, Delhi tenable as there is infer that this a/c amount from the above stated SB account a/c 45. Hence the amount of Rs.12,500/- can deducted.
48 SB A/c no. Kanak Lata 6,465/- 470 Allahabad & Bank, Hirapur M. Kumar Branch, Dhanbad			Deduction of Rs. 6,465 sought on the ground that prosecution could not prove this account.	Since the prosecution not prove this account amount is to be deducted from the assets of Lata and M. Kumar
49 A/c no. 16887 OBC, Rly. Rd., Gurgaon, A/c opened on 02.06.97	Dr. Kumar, Kanak & Abha Kumar	M. 19,052/- Lata	Deduction of Rs. 19,052 sought on the ground that prosecution did not prove the a/c statement	This amount is required deducted as the prosecution has not proved the statement but only Account opening for Specimen signature have been proved. Hence amount of Rs. 19,052 deducted.
50 SB A/c no. 01960150740 7	Kanak & Dr. Kumar	Lata 2,47,486/- M.	Deduction of Rs. 2,47,486/ sought on the ground that Kanak Lata in her ITR of 2005-06 mentions Rs.	The argument advanced not tenable. This is balance at the end check period & carried multiple transactions account, which have proved through Ex. 15/A (file D-34). Hence amount cannot be deducted

4583 as
the balance
in this
account.

51 Statement of Account of SB A/c no. 000701228511 ICICI Bank, Vasant Kunj, New Delhi	Dr. M. 1,67,288/- Kumar, Kanak Lata, Smt. Abha Kumar	Deduction of Rs. 1,67,288/- sought for which no reason has been given.	This amount is admitted as accused vide Ex. Z- (Colly.). The said the balance at the check period. There is no reason to treat this as income. Hence the deduction of Rs. 1, cannot be given. Court has given a finding on this assumption rejected the contentions of this property being property. Prosecution however, not objected to deduction of Rs. 5, as share of Rajiv Kumar hence amount of Rs. 5,05,000/- is deducted from the Rs. 19,52,000/- net asset of Kanak M. Kumar reduces to Rs. 14,47,000/-.
52 Flat no. B2- 301, Power Welfare Organization, Gurgaon Total cost of the flat Rs. 20,32,300	Dr. M. 19,52,000/- Kumar & Kanak Lata	Deduction of Rs. 5,05,000 sought on the ground that this was an HUF property with contribution of Rs. 5,05,000 coming from Dr. Rajiv Kumar.	

But, as per Ex. PW6/ which is ITR of Sanjiv Kumar HUF for the AY 2005-06 and which has been controverted by accused Sanjiv, Kumar invested Rs. 4,51,000 in this property hence, Sanjiv Kumar's net asset value is to be reduced to the extent of Rs. 4,51,000.

53	DDP 11209 Allahabad Bank, Hirapur, Dhanbad	no. Dr. Kumar & Kanak Lata	M. 1,00,000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless li accused Sanjiv and Ab any cogent manner, is being considered as D
54	National Saving Certificate 6NS/20DD 850780	Dr. Kumar 2. Kanak Lata	M. 5,000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless li accused Sanjiv and Ab any cogent manner, is being considered as D
55	National Saving Certificate 6NS/20DD 850781	Dr. Kumar 2. Kanak Lata	M. 5,000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless li accused Sanjiv and Ab any cogent manner, is being considered as D
56	National Saving Certificate 6NS/20DD 236404	Dr. Kumar 2. Kanak Lata	M. 5,000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless li accused Sanjiv and Ab any cogent manner, is being considered as D
57	National Saving Certificate 6NS/37EE 949346	Dr. Kumar 2. Kanak Lata	M. 10,000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless l accused Sanjiv and Ab any cogent manner, is being considered as D
58	National Saving Certificate 6NS/31DD 230529	Dr. Kumar 2. Kanak Lata	M. 5000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless li accused Sanjiv and Ab any cogent manner, is being considered as D
59	National Saving Certificate 6NS/31DD	Dr. M Kumar 2. Kanak Lata	5,000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless li accused Sanjiv and Ab any cogent manner, is

60	NSC 34DD 961314 purchased from Vasant Kunj Post Office, Delhi	no.	Dr. Kumar and Mrs. Kanak Lata	M. 5,000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless liable, accused Sanjiv and Abha in any cogent manner, is being considered as D
61	NSC 34DD 961315 purchased from Vasant Kunj Post Office, Delhi	no.	Dr. Kumar and Mrs. Kanak Lata	M. 5,000/-	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless liable, accused Sanjiv and Abha in any cogent manner, is being considered as D
62	4 no of ICICI M. Tax Saving Bonds dt. 30.11.99 No. 12276-12279 matured on			Kumar 20,000/- Kanak	Claimed not to be part of DA	The assets of M. Kumar Kanak Lata, unless liable, accused Sanjiv and Abha in any cogent manner, is being considered as D
63	20.02.2003 for Rs. 27,965 SB 00853328 Vasant Kunj Post Office, Delhi		Snigdha Kumar d/o Abha Kumar	11,333/-	Deduction of Rs. 11,333/ sought on the ground that this a/c received interest accruing from MIS a/c of Snighda Kumar mentioned at Sr. 66 and 67 (below)	The defense contentions this amount was transferred from the interests r a/c no. 00483390 MIS no. 00483427 MIS SB Vasant Kunj Post Office, Delhi is tenable. He amount of Rs.11,333/- be added to the income of Abha Kumar.
64	00411564 RD Vasant Kunj Post Office, Delhi		Snigdha Kumar d/o Abha Kumar	8,000/-	Deduction of Rs. 8,000/ sought on the ground that amount in	The defense contentions this amount was transferred from the SB a/c 0085 Vasant Kunj Post Office, Delhi

		r/o C-Pkt,627 6360 Vasant Kunj, New		this RD a/c was received from savings a/c mentioned at Sr. No. 63.	is accepted, and hen amount of Rs. 8000 c added to the income Abha.
65	00411553 RD Vasant Kunj Post Office, Delhi	Delhi Snigdha Kumar d/o Abha Kumar r/o C-Pkt,627 6360 Vasant Kunj, New	12,000/-	Deduction of Rs. 12,000/ sought on the same ground as mentioned in respect of RD a/c mentioned at	For the same reason mentioned in respect a/c mentioned at Sr. the contention is ac Hence, the amount of Rs.12,000 can be add the income of Abha.
66	00483390 MIS, Vasant Kunj Post Office, Delhi	Delhi Snigdha Kumar d/o Abha Kumar r/o C-Pkt,627 6360 Vasant Kunj, New Delhi	2,00,000/-	sr. no. 64 Claimed not to be a part of DA.	This particular amo been transferred fr 000701239298 which the name of Snighda She had no independ income at that poin when the MIS was op This amount has thu attributed to Abha The case is to be l its entirety for co whether a particula a DA or not.
67	00483427 MIS, Vasant Kunj Post Office, Delhi	Snigdha Kumar d/o Abha Kumar r/o C-Pkt,627 6360 Vasant Kunj, New Delhi	1,00,000/-	Claimed not be a DA	This particular amo been transferred fr which is in the nam and Sanjiv Kumar. T is to be looked in for conclusion whet particular asset is not.
68	00411571 RD	Ananya	20,000/-	Deduction of	The relevant docume

Vasant Kunj Post Office, Delhi	Praherash s/o Sanjiv Kumar r/o 6360 Vasant Kunj, New	Rs. 20,000 sought on the ground that this was invested from SB a/c no. mentioned at	RD confirms the def assertion, and henc amount of Rs. 20000 added to the income Sanjiv.
69 00483431 MIS Ananya		3,00,000/-	Claimed not This particular amo
Vasant Kunj Post Office, Delhi	Praherash s/o Sanjiv Kumar		to be a DA been transferred from which is in the name of and Sanjiv Kumar. The c is to be looked in its for conclusion whether particular asset is a D not.
70 SB 00853345, Vasant Kunj Post Office, Delhi	Ananya Praherash s/o Sanjiv Kumar r/o C-Pkt,627 6360 Vasant Kunj, New Delhi	10,000/-	Deduction of Defense assertion is cor Rs. 10,000/- Hence, this amount is ad sought on the to the income of Sanjiv grounds that the source of investment was transfer of interest from a/c no. 00483431 MIS, Vasant Kunj Post Office
71 Saving A/c no. 000701239298 in ICICI Bank, Vasant Kunj, New Delhi	Ms. Snigdha 12,104/- Kumar under Guardian, Abha Kumar		Deduction of This amount is the balan Rs. 12,104/- the end of check period admitted. This is liquid available with the accou holder and hence, this amount cannot deducted.

STATEMENT C
INCOME DURING THE CHECK PERIOD –
01.04.1996 TO 16.02.2005

S. N	Particular	Date	Amount as Benefit per chargesheet	claimed by accused persons vide their chart dt. 06.11.2020	Court's observation
1	Salary income of Sanjiv Kumar	April 1996	8,363/-	No addition claimed	None
2	Salary of Sanjiv Kumar to 09.06.1996	May 1996		Addition of Rs. 12000/- sought	As per records supplied o/o Deputy Commissioner Gurgaon i.e. file D-70 Sanjiv has drawn salary 1753 for the period 01. to 21.05.1996. Further, not drawn salary for the period 22.5.1996 to 9.6. Hence, Rs. 1,753/- is a his income.
3	Salary of Sanjiv Kumar while being posted in Haryana Civil Secretariat	10.06.1996 to 24.07.97	71,355/-	Benefit of addition of Rs. 45,370 to income has been sought on	Amount of Rs. 71,355/- has been culled out from document Ex. Z-24(ii) gives details of various components of including gross pay

the basis of deductions. Ex. Z-74 on the Ex. Z-79 other hand does not give any break up of the salary components for this period.

Since, both are

documents, the Court by Ex. Z-24 (ii). He addition of Rs. 45,3 income is denied.

4	Secretariat Salary income of Sh. Sanjiv Kumar, received from the O/o, Administrative Officer/ Director	25.07.97 to 02.11.98	1,20,210/-	No benefit of addition in income claimed	None
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	Primary Education (HR)				
5	Salary income of Sh. Sanjiv Kumar, received from the O/o HPSPP, Chandigarh	03.11.1998 to 15.06.1999	75,389/-	No benefit of addition in income claimed.	None
6	Income from salary as MD, Haryana Backward Classes, Chandigarh	16.06.99 to 30.06.99	9,655/-	No benefit of addition in income claimed.	None
7	Average Salary for 4 months from July to October	01.07.99 to 10.99	50,012/-	Addition of Rs. 27,228/- to income is claimed on the ground	The salary of 16 days no. 6 was released with any deductions, because of the very short tenure. However, Ex. Z clearly mentions the s
				that salary for 15 days as MD, Backward Class, Haryana (at Sr. No. 6) was Rs. 9655 which was the immediately prior assignment of Sanjiv Kumar. This amount of Rs. 9655 has been doubled to work out salary of 1 month and then multiplied by 4 (i.e. 4 months) to	period from 16.06.1999 30.06.1999 as well as f 07/1999 i.e. July 1999. this exhibit net payabl for July 1999 after ded is Rs. 11,790/-. Theref multiplying the same by correct net salary amou 4 months would be Rs. 47,160/-. Infact, there be a deduction of Rs. 2 from Rs. 50,012. Hence of Rs. 47,160/- is cons for this period of 4 mo

arrive at a
figure of Rs.
77,240.
Thus
addition of
Rs. 27,228
has been
sought
being the
amount over
Rs. 50,012.

8	Income as 11.99 to Director Food 05.2000 & Supply, Haryana, Chandigarh for the period 11/99 to including DA and Arrears.	1,93,999/-	No additional benefit claimed	None
9	Salary 06.2000 to Rs. income of 14.01.2001 1,12,030/- Sanjiv Kumar received as State Project Director from the O/o HPSPP, Chandigarh		No additional benefit claimed	None
10	Income from 15.01.01 to Rs. 92,927/- salary as 20.05.01 Joint Secretary Revenue Deptt., Haryana for the period 15.01.01 to 20.05.01, including DA and Arrears		No additional benefit claimed	None
11	Subsistence 21.05.01 to Rs.		Additional	As per Ex. Z-78 & Ex.

Rs. 76851 (file D70 (i)), the contention Allowance 31.05.2004 1,01,075/- is claimed of the defense is tenable as paid on the the salary for the period ground that 21.05.2001 to 31.05.2004 is relevant Rs. 1,77,926/- after adding the bank sum of salaries for the periods statement 21.05.2001 to 26.06.2001, which 04.12.2001 to 31.10.2002 & reflects the 01.11.2002 to 31.05.2004.

credit of the Hence, total salary/subsistence additional allowance for this period is Rs.

amount has not been considered. 1,77,926/-. Consequence addition of Rs. 76851 be made in the salary of Sanjiv Kumar.

12	Detail of salary received from Haryana Secretariat, Chandigarh.	06.2004 to 02.05	Rs. 30,108/-	No additional benefit claimed	None
13	Income on account of Rental /Agriculture of Sh. Sanjiv Kumar (HUF) reflected in IT Returns of HUF Family for assessment years in the check period.	1. 1997-98 2. 1998-99 3. 1999-00 4. 2000-01 5. 2001-02 6. 2002-03 7. 2003-04 8. 2004-05 9. 2005-06 Total	26,940/- 61,315/- 78,500/- 65,337/- 74,666/- 65,830/- 44,754/- 45,031/- 40,077/- 5,02,450/-	For AY 1997-98, income claimed is Rs. 65000 on the basis of income of Rs. 29762 in AY 1995-96 since ITR of AY 1997-98 was not available. For AY 1998-99, income of return for this AY. There is Rs.67315 is just no basis to take the claimed. income of AY 1997-98 as Rs. 65000. Hence, the income For AY 1999-2000, ITR's is restricted to Rs. 84500 is 4,75,510.	The contention of the persons is without an While depositi legitimately due to t they reduced their in taking benefit of not repairs and now, in o enhance their income they are facing crimi proceedings, they con that the said repairs notional and hence ne added to the income. amounts to double che Contention is accordi rejected. Infact, for 98 benefit of income be given since there

claimed.

For AY
2000-2001,
income of
Rs. 77201 is
claimed.

For AY
2001-2002,
income of
Rs. 79,666
is claimed.

For AY
2002-2003,
income of
Rs. 65832 is
claimed.

For AY
2003--2004,
income of
Rs. 44,754
is claimed.

For AY
2004-2005,
income of
Rs. 45,301

is claimed.

For AY
2005-2006,
income of
Rs. 40,077
is claimed.

Total
addition in
income
claimed is
Rs. 96,698.

This
enhancem-
ent has been
sought on
the ground
that IO

wrongly
took into
considerati-
on the
deduction
benefit
claimed by
accused
towards
1/3rd
notional
repairs
permissible
under the IT
Act. In
other
words,
accused
persons

want the
notional
repair
deductions
to be added
to their
income.

14	Patna Flat 1997 to sold by 2000 whole family i.e. Dr. M. Kumar, Kanak Lata,	10,75,000/-	Addition of Rs.3,25,000 /to the income has been sought on the ground that this was	Dr. Rajiv Kumar is no accused in the presen So his share of Rs. 3 cannot be considered of family income. San Kumar claims declared Rs. 3,25,000 of sale proceeds rece
----	---	-------------	---	--

Sh. Sanjiv share of Dr. him in AY 2001--02. Be that Kumar Rajiv and as it may, this flat cannot be &Dr. Rajiv hence treated as an HUF property during the should be since the HUF was dissolved period 1997 added to the in 1988 and there is no proof to 2000 family that a new HUF was income. constituted consisting of M. Kumar and his family. There is no detail of which Patna flat was sold for Rs. 14 lacs. As per the family partition deed, the Boring Canal Road property was divided into 4 parts. There is no clarity which flat was sold so as to claim it to be an HUF property.

However, the IO has given benefit of sale amount of Rs.

10,75,000/□to the accused person in the charge□sheet. Even though there is no mention of any sale deed/sale date nor there is any observation of the IO that he checked up the documents pertaining to the sale of this property but since the prosecution has also not objected to this income, the Court is allowing the benefit despite there being serious doubts about the authenticity of this sale transaction.

Further, in Statement C of the charge□sheet, Sanjiv Kumar alone has been given income benefit of Rs. 10,75,000 during the check period which is incorrect. Sanjiv Kumar's income share is being restricted to Rs. 3,25,000 from the sale of this flat as has been claimed by him in his ITR.

The remainder amount is being divided between M. Kumar and Kanak Lata. It also needs a clarification that merely because Dr. Rajiv Kumar had given a POA to Dr. M. Kumar to manage his HUF affairs in India would not mean that his income should also be added to that of M. Kumar.

- | | | | |
|----|---|---|------|
| 15 | Survival benefit of Rs. 28.04.2002 40,000/-
40,000/-
received by
Sanjiv Kumar
against his
LIC Policy

no.
171578323. | No
additional
benefit
claimed | None |
| 16 | Price of flat
no. 15, Hope 2003
Apartment
sold by Sh.
Sanjiv Kumar
in year 2003
to Shri
Subhash
Saini. | Rs.
10,71,000/-
No
additional
benefit
claimed | None |
| 17 | Interest 04.08.99 to 12,036/-
earned from 05.02.2004
Salary
account no.
1410 of
Sanjiv Kumar
in Vijaya
Bank, br.
Chandigarh | This interest certificate
Rs. 3,330/- proved by DW 2 to which
is sought to objection was raised by
be added to prosecution. Hence,
the income. 3,330/- is to be added to
income. | |
| 18 | 2 ICICI Tax
Saving Bonds
vide 28.02.2003 Rs. 13,983/-
certificate no. | No
additional
benefit | None |

12274 - claimed.
 12275,
 invested on
 30.11.1999
 by Sanjiv and
 Kanak Lata.

Argument of adding noti

19 Income on Asst. Year 74,683/- Additional repair deduction in the
 account of 1997-98 income income is meritless and
 Rental etc. of 65,355/- benefit of amounts to cheating the G

Smt. Abha	1998-99		Rs. 3,34,359	However, Ex. DW 19/3
Sinha as		1,03,281/-	has been	shows gross total income
reflected in	1999-00		sought on	accused Abha a
Income Tax		62,725/-	the ground	1,48,129/- & DW 19/4 s
Returns for	2000-01		that IO	gross total income of
the year		65,886/-	wrongly	Rs. 1,34,011/-. Hence,
1996, Income	2001-02		considered	of Rs. 2,82,140/- is a
for the year		78,361/-	notional	the income of Ms. Abha
1997-98,	2002-03	5,75,250/-	repair	After addition her inc
Income for	1999		deductions	becomes Rs. 14,41,887/
the year		1,34,206/-	of the ITR	
1998-99,	2005-06		and further	
Income for		11,59,747/	that income	
the year	Total		for the year	
1999-00,			2003 and	
Income for			2004 was	
the year			not	
2000-01,			considered	
Income for			by the IO as	
the year			per his own	
2001-02			admission.	

Loans raised
 in 1999 from
 Sister Smt.
 Poonam
 Singh,

Income for
 the year
 2004-05
 LIC Policy
 no.

20	60341988	April 2004	Rs.	No	
	matured and		1,04,900/-	additional	None
	Rs.			income	
				benefit	
	104900.00			claimed	

was received
by Abha

21	Sinha. Survival benefits of Rs. 20,000/- received by 23.04.2002 Abha Kr. against her LIC Policy no. 171578339		Rs. 20,000/-	No additional income benefit claimed	None
22	Dr. M. Kumar – his income from all sources which he has mentioned in IT return.	1998–99 1999–00 2000–01 2001–02 2002–03 2003–04 2004–05 Total	1,50,920/- 1,54,845/- 1,76,229/- 2,21,238/- 1,99,215/- 2,12,945/- 2,13,163/- 13,28,555	Additional income benefit of Rs. 6,29,100/- is sought to be added on the ground that income for the year 1996–97 and 2004–2005 has not been considered by the IO. Further, IO has not added Standard Deduction limit amount to the income of accused.	Argument of adding st deduction amount to t income of the accused Kumar is tenable. Sta Deduction (SD) is the income in the hands o assessee. For the AY 1998–99, R 12000 as SD is to be Rs. 20000 for AY 1999 AY 2000–2001, AY 2001 AY 2002–03 and AY 200 It needs a highlight was raised to 30000 i budget of 2003 and he benefit of 30000 SD w available for AY 2004 Income for the year 1 has not been consider IO since the ITR is n available even with t defense. No pr furnishing of ITR of 98 has been furnished Therefore, plea of ad average income of Rs. 1,70,000 for FY 1995–

23	Dr. M. Kumar has 2004-2005 shown loans and advance taken as per IT Return for assessment year 2004-05	92,000/-	No additional benefit claimed.	None
24	Interest earned by Dr. 28.02.02 to M. Kr. in his 31.08.04 pension account no.2268 in Allahabad Bank Dhanabad	Rs. 3867	Addition of Rs. 764/- to the income has been sought.	The contention of def Rs. 764/- be added to income as per Ex. DW correct & hence Rs. 7 added to the total in M. Kumar.
25	Mrs. Kanak Lata in his IT Returns has mentioned the following income including agriculture income	1998-1999 75,785/- 1999-2000 1,11,798/- 2000-2001 84,720/- 2001-2002 79,496/- 2002-2003 72,004/- 2003-2004 59,374/- 2004-2005 73,688/- 2005-2006 1,17,702/- Total	Additional benefit of Rs. 84,479/- to the income of Kanak Lata has been sought on the ground that Rs. 75K should be taken as income for AY 1997-98 even though	The defense contention income of Rs. 75,000/- taken as an average f 1997-98 is not tenabl there is no proof of Kanak Lata for FY 199 Defense has a produced ITR of Kanak for AY 1997-98. As per ITR of AY 2005 the amount spent on r Rs. 7,027/- & not Rs. The amount of Rs. 702 expense. Hence, no be

there is no income can be given

6,74,567/□proof of the claimed by the defense.

same furnished by defense.

Also, benefit of notional repairs of Rs. 9479 for AY 2005□06 has been sought.

26	Kanak Lata 2003-2004 has also mentioned the following gift and loan received in IT Return for Total	65,000/- 1,00,000/-	No additional benefit claimed.	None
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assessment
year 2003-

1,65,000/-

27	4 ICICI Tax Saving Bond vide 28.02.2003 Rs. 27,965/- certificate no. 12276-12279 invested on 30.11.1999 by Dr. Maheshwar Kumar and Kanak Lata.	No additional benefit claimed.	None
28	2 ICICI Tax Saving Bonds vide 28.02.2003 Rs. 13,983/- certificate no 12280-12281 invested on 30.10.1999 by Kanak Lata and Dr. Maheshwar Kumar	No additional benefit claimed.	None

STATEMENT - D
EXPENDITURE DURING THE CHECK PERIOD

CHECK PERIOD 01.04.1996 TO 16.02.2005 S. Detail of Name Date Amount Benefit Court's
Observations N Expenditure as per claimed by chargesheet accused persons vide their chart dt.

06.11.2020 1 1/3 Sanjiv During 2,88,374/- Accused The defense plea is expenditure of Kumar check
contends meritless. The IT Returns Rs. 8,65,123/- period that all his filed by accused are of against
Non expenditure Sanjiv HUF. Not even a has been single IT Return of Sanjiv verifiable duly shown
Kumar in his individual expenditure in the IT capacity as a public servant from salary of Returns of
has been filed. Moreover, Sanjiv Kumar the check subsistence allowance for during the period and
the period May 2001 till check period hence, there May 2004 has been paid to is no logic Sanjiv
Kumar which has of making a been considered by this further Court while granting education to
additional income benefit.

the extent of 1/3rd.

				Accused further contends that he has not been paid salary from June 2001 to December 2001, and subsistence allowance from December 2001 till June 2004.
2	Expenditure Sanjiv incurred on Kumar credit card use during 1999- 00 (Citi Bank Credit Card No. 54255686020 50009 in the name of Sanjiv Kumar for the period 23.06.99 till closure.)	During 40,440/- June 99-00		Expenditure There is no denia incurred forexpenditure. Amou the benefit 40,440/- has been of niece considered as
3	LIC Policy Sanjiv No. Kumar 113007203- YLY Date: 28.06.01 Policy amount - Rs. 5,00,000/-	June 1,54,728/- 2001 to		The contention that Rs. 38,682 subsequent to the period on 29.06.200 correct and, hence amount be deducted the expenses. There the net expense of 1,16,046/- is considered.
4	LIC Policy Sanjiv No. Kumar 550644860- YLY Date: 14.11.88	Nov. 17,815/- 1999 to Nov. 2004	Expenditure Rs. 17,815/- not objected considered to. expenditure.	c

	Policy amount – Rs. 1,00,000/-						
5	LIC Policy No. 171578323- YLY Date:28.04.9 7 Policy amount – Rs. 2,00,000/-	Sanjiv Kumar	April 1998 to April 2004.	1,00,996/-	Expenditure not objected to.	Rs. 1,00,996/- considered expenditure.	c
6	Expenditure on education of children of Sanjiv Kumar during the check period from March 1998 to Jan 2005. Rs. 1,99,345/- for Ms. Snigdha and Rs. 1,95,935/- for Master Ananya Prahersh	Children of Sanjiv Kumar	April 96 to Jan 05	3,95,280/-	Expenditure not objected to.	Rs. 3,95,280/- considered expenditure.	c
7	Payment of Sanjiv fees of Sr. Kumar Advocate in the matter of Sanjiv Kumar listed on 12.06.2003 before Supreme Court		11.06. 2003	1,10,000/-	Expenditure not objected to.	Rs. 1,10,000/- considered expenditure.	
8	Payment of Sanjiv Electricity bill Kumar of Flat No. 15, Hope Apartment, Sector 15, part-II,		March 1999 to Sep. 2003	87,994/-	Expense of Rs. 87,994/- is to be rejected as the same was paid by tenant. Power of attorney of this Flat executed in	Detailed fin regard has a returned in of judgment. discarded ac Kumar's plea amount was p tenants. Thus, expend rightly cons	

						favour of Rajeev Kumar (not the brother of Sanjiv Kumar)
						relied upon as also testimony of PW 23.
9	Maintenance charges	Sanjiv Kumar	08/98 to	54,600/-	Rejection of Accused Sanjiv Rs.54,600/- testimony of PW	
	against		06/03		from the	
	FlatNO. 15, Hope Apartment, Sector 15,				the flat being occupie expenses for different persons the same 2000 to Dec. 2003. reason as in contention of the case of	
	part-II, Gurgaon paid by Sanjiv Kumar.				that the flat was payment of occupancy of the t electricity who was paying the charges. maintenance charge plausible as they produced an agreement o receipts. Detailed has already been g this expenditur Hence, expenditure 54,600 is considered.	
10	Sh. Sanjiv Kumar has mentioned the following expenses in his IT Return for assessment	Sh. Sanjiv Kumar (HUF)	2002- 03 2003- 04 2004- 05 2005-	9,224/- 14,791/- 7,025/- 14,486/- 45,526/-	Expenditure of Rs. not correctly consider objected to.	
			Total			
11	Payment of Sanjiv bills of mobile Kumar no. 9814088370		25/5/98 to 26/07/ 2000	77,885/-	Deduction of Rs. 77,885/- sought since this expense could not be proved.	The expense co proved. Hence, is deducted expenses.

12 PW Subhash Chander Gupta received	41 Sanjiv Kumar Rs.	1999-2001	2,22,71,200/-	Deduction of this expenditure sought on the ground	Detailed finding regard has already been given. Court has held that prosecution was not able to link accused S
--------------------------------------	---------------------	-----------	---------------	--	--

2,51,71,200/-

that

this alleged inve

from Sanjiv prosecution Rs. 2,51,71,200. Hence, Kumar and his could not this expenditure is to be men in cash as prove this deducted.

well as cheque for the investment in the Share Market during the period 1999-2001 and he invested 2,33,71,200/- in the Share Market for Sanjiv Kumar.

allegation.

13 Payment of Sanjiv water bill of Kumar flat no. C-6&7/6357 Vasant Kunj, New Delhi in the name of K.K. Lal which was sold during-1999 in the name of Dr. Rajiv Kumar. (Occupied by	15.11.2000 to 22.12.2000	7,953/-	Deduction of Rs. 7,953/- as the bills could not be proved.	The relevant document D-71 was not proved hence, the content of defense to deduct 7,953/- is justified amount is thus deducted from expenses.
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Sanjiv Kumar)

14 Payment of Sanjiv electricity bill of flat no. C-	Jan. 2002 to Feb.	44,170/-	Discarding Rs. 44,170/-	The bill statement PW32/B-1 is handwritten do
--	-------------------	----------	-------------------------	---

6&7/6357 Vasant Kunj, New Delhi in

2005

from the duly signed by the expenses. witness and thus, do require certificate

the name of
K.K. Lal
which was
sold during-
1999 in the
name of Dr.
Rajiv Kumar.
(Occupied by

Sanjiv
Kumar)

IEA for further proo
As per this statemen
bills worth Rs. 1962
were paid for flat n
6357. Thus expenditu
the extent of Rs. 19
to be added to the e
of Sanjiv Kumar. It
already been held in
main body of judgmen
that flat no. 6357 w
benami property of S
and Abha. The conten
of the defense that
has not brought the
relevant record from
the
record/docum-ents
been prepared is not
tenable since the th
handwritten record a
to be the
record, and hence, t
argument is rejected

15 2 ICICI Tax
Saving Bonds
Date:
30.11.1999
No. 12274-
12275
Redemption
dated
28.02.2003
for Rs.
13,983/-

Sanjiv
Kumar
and
Kanak
Lata

Date of 10,000/-
invest
m-ent
30.10.
1999

Discarding The contention of the
Rs. defense that they ha
10,000/- already included
from the expense at Sl. No. 4
expenses as Statement D is not ten
these have because this is a separ
already been expense which is not
considered included in ITR 2003-
in the 2004. Rs.
expense of mentioned as expense in
Kanak Lata ITR is sum of personal
as per her expenses, Bank Charges
ITR's. TDC. Hence, amount o

Rs. 10,000/- c
discarded.

16 Abha Sinha Abha
has mentioned Sinha
the following
expenditure in
her IT Return
for assessment
years

1996-	32,454/-	Deduction
97	59,803/-	of Rs.
1997-	55,983/-	6,50,000
98	53,407/-	sought on
1998-	45,920/-	the ground
99	79,692/-	that this
1999-	57,678/-	expenditure
00	6,50,000	has not
2000-	55,220/-	been shown
01		in
2001-	10,90,157	subsequent

Detailed fin
already been gi
expense of Rs.
Court has held
amount was paid
to KK Lal as pa
money for flat
The expenditure
correctly
considered.

			02 2002- 03	ITR's which meant that this	However, expens 3,14,000 b
			1999-	expense was	subscription
			00	squared off.	deposited by ac
			2005- 06		Abha in her PPF
			Total		during the chec being reduced, outstanding amo PPF a/c at the check perio includes amount, has bee asset value at Statement Consequently,
17	LIC Policy Abha No. Sinha 550573541- YLY	Feb Rs.17,34 1999 to 4/- Feb 2004		Deduction of Rs. 17,344/- sought on the ground that this	expense taken u entry is Rs. 77 Prosecution objection to de expense since i already been co a part of her e claimed in the
				expense has already been considered as a part of expense shown by Abha in her ITR's i.e. at	Hence, Rs. 17,344/ deducted from expenses.
18	LIC Policy Abha No. Sinha 113017747- YLY	During 1,13,790/- 2002 to March 2004		above Deduction of Rs. 37,930/- sought on the ground that Rs. 37930 was paid after the check period.	The contention of d that Rs. 37,930/- w after the check per agreed to b prosecution. Hence 37,930/- is to be d and amount of 75,860/- is considered as expen
19	LIC Policy Abha No. Sinha	During Rs. 1999- 43,980/- of		Deduction Rs.	The contention of d has not been object

540418972- YLY	04	43,980/- sought on the ground that this amount has already been included at	the prosecution. Hence Rs. 43,980/- deducted fr expenses.
20 LIC Policy Abha No. Sinha 171578339-	Apr. 45,640/- 1998 to Apr.	Deduction of Rs. 14,491/-	The prosecution has objected to the def assertion for deduc
YLY 2004 sought on Rs. 14,491. Thus, Rs.			
		the ground that it was paid after the check	14,491/- is to be d from expenses and n amount of Rs. 31,14 to be considered. H
21 Temporary Abha loan to Mr. Sinha Ranjeet Singh (As per IT Return for the assessment year 2002-03)	During 14,000/- 2002- 03	period i.e. on 23.02.2006 Deduction of Rs. 14,000/- has been sought on the ground that subsequent ITR's do not reflect this liability.	amount of Rs. 31 to be considered expense. Defense has not b any evidence on r which could prove the loan was retu the loanee. Deduc cannot be permitt vague assumptions the contention of for deduction of 14,000/- is denie
22 Loan Abha advanced to Sinha Vibha Sinha	During 6,000/- 2002- 03	Deduction of Rs. 6,000/-has been sought on the ground that subsequent ITR's do not reflect this liability.	Defense has not b any evidence on r which could prove loan was returned loanee. Deduction be permitted on v assumptions. Henc contention of def deduction of Rs. denied.
23 Loan Abha advanced to Sinha	During 2,37,000/- 2002- 03	Deduction of Rs. 2,37,000/-	Defense has not b any evidence on r which could prove loan was returned
G.P Singh, as per IT Return			

	Smt. Abha Sinha for assessment year 2002-03.		has been sought on the ground that subsequent ITR's do not reflect this liability.	loanee. Deduction be permitted on v assumptions. Henc contention of def deduction 2,37,000/- is den
24	An amount of Rs. 75,00,000/- was paid by Abha Sinha to M/s Cosmos Management Services Pvt., Khan Market, New Delhi	Jan. 2000 to July 2002	75,00,000/- Deduction of Rs.68,00,000/- sought on the ground that this amount was of Tika Hasan Mustafa, a family friend of accused Sanjiv and Abha.	Court ha returned a deta that this amoun lacs was of acc Kumar an concluded that reason to infer doubt that was given to he accused Sanjiv. contention of d this money belo Tika Hasan Must negated vide a finding in the judgment. Hence of Rs. 68,00,00 rightly conside expense.
25	Account no. 16887, Abha Sinha Oriental Bank of Commerce, New Railway Road, Gurgaon	02.09. 1997	Rs. 1,81,727/- Expense of Rs. 1,81,727/- is to be discarded as account statement could not be proved.	Defense plea is Only the account form Ex.PW24/D has been proved the statement o Hence this amou be deducted fro expenses.
26	SB A/c no. 6064 OBC, Panchkula in the name of Sanjiv Kumar & Abha Kumar	Sanjiv Kumar 01.03.2001 & Smt. Abha Sinha	14,00,000/- Deduction of Rs. 14,00,000/-	The prosecution been able to pr expense of Rs. The Debit vouch 4,40,000/- & Rs though proved a PW22/A-3 & Ex. 5 could not be the prosecution specific ex

Hence, this expend

not being considere

27 LIC Policy Dr. M. 28.03. 24,270/□Deduction The contention of defense No. Kumar 2001 of that this amount has 542268876 Rs.24,270/□already been included at Sr. No. 36 of statement D has not been objected to by the prosecution. Hence, this amount has been deducted from the expenses.

28 Stamp Duty Dr. M. 20.12. 80,000/□Deduction The contention of defense paid by Dr. Kumar 1999 of Rs. that this expenditure has Maheshwar 80,000/□already been considered Kumar for at Sr. No. 36 of statement the D is not tenable as the registration of same is not mentioned in flat No. 6360, the ITRs. This is a distinct Sector□, expenditure which is Pocket 6□ proved by Ex. PW18/B Vasant Kunj, (file D□26C). Hence, the New Delhi. contention of defense is denied and Rs. 80,000/□ is considered as expense.

29 Payment of Dr. M. 12.11.2 2,583/□Deduction These bills could not be water bill of Kumar 002 to of proved and hence, Rs.

flat no. C-
6&7/6360
Vasant Kunj,
New Delhi in
the name of
Sh. Prashnna
Kumar which
was sold in
1999 to Dr.
Maheshwar
Kumar.

22.11.2
004

Rs.2,583/- 2,583/- is deducted
sought on the expenses.
the ground
that water
bills could
not be
proved.

30 Payment of Dr. M. Nov. Rs.
Electricity bill Kumar 2000 to 1,46,070/-
of flat no. C- 2005
6&7/6360
Vasant kunj,
New Delhi in
the name of
Sh. Prashnna
Kumar

Deduction
of Rs.
1,46,070/-
sought.

The contention o
to deduct Rs. 1,4
not tenable as Ex
32/B-5 is a handw
document which do
require certifica
Indian Evidenc
As per Ex. PW 32/
Rs. 52,117/- is t
total bill e
Contention of def
deduct the entire
denied. Consequen
amount of Rs. 52,
taken as expendit
incurred on elect
bills.

31	Payment Against Telephone no 26123876 installed at flat no 6360, C-6&7, Vasant Kunj, New Delhi in the name of Dr. M. Kumar	Sh. M. Kumar	24.04.2 Rs. 001 to 35,214/- 28.01.2 005	Deduction of Rs. 35,214/- sought on the ground that bill statement is not accompanie d by certificate u/s 65 B of the IE Act.	The contention of that the said doc computer document & the en amount is to be d being witho certificate issue IEA is not tenabl PW34/B has been c by the Telecom Of MTNL which bears stamp and signatu Hence amount of R 35,214/- ha correctly t expenditure.
32	Insurance of Dr. M. 14.11.2 9,126/- Car No. BR- Kumar 002 to			Deduction of	The contention of that this expendi
	17C 9991 in the name of Dr. Maheshwar Kumar		17.02.2 005	Rs.9,126/-	already been consider Sr. No. 36 of statemen is not tenable as Rs. 1,560/- only has been shown in ITR of 2004-0 and no car insurance expense has been shown ITR of 2003-04. The contention of defense deduct the en expenditure is denied Rs. 1560 is deducted f alleged expen Consequently, Rs. 7,56 has been considered as expenditure under this head.
33	Payment to Dr. M. 28.06.1 Rs. Oriental Kumar 999 2,177/- Insurance Company Ltd. Chandigarh as Mediclaim Worldwide for Policy no. 231200/2000/ 66.			No deduction claimed	Expenditure 2,177/- considered. of corre

34	Purchase of Dr. M. 19.07.2 43,627/- Foreign Kumar 001 Currency by Sh. Dr. Maheshwar Kumar from M/s PherozeFramr	Deduction of Rs.43,627/- sought on the ground that his expense has already been	The contention of defe that this expenditure already been considere at Sr. No. 36 of state D has not been objecte to by the prosecution has been reflected in
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oze& considered ITR of 2002-03. Hence Company Pvt. as reflected this amount of Rs.

Ltd. UGF-8,
IndraprakashB
idg, 21 on
19.07.2001

in the ITR. 43,627/- is liabl
deducted.

35	Certificate u/s Dr. M. Nov. 68(2) of the Kumar 1997 voluntary disclosure of income scheme,	Rs. 3,33,000/-	No deduction claimed.	Rs. 3,33,000/- considered expense.
36	Dr. Dr. M. Maheshwar Kumar Kumar in his IT returns has mentioned the following expenditure.	1998- 1999 1999- 2000 2000- 2001- 2002- 2003- 2004 2004- 2005 Total Rs. 5,85,860	No details No deduction claimed. 79,645/- 83,650/- 66,390/- 1,82,841 71,775/- 1,01,559 -	Rs. 5,85,860 ha correctly consi expenses as per

37	LIC Policy No. 542268677	Kanak Lata	28.03.01	Rs. 24,100/-	Deduction of Rs.24,100/- sought on the ground that this expenditure has previously been considered.	Prosecution do to this defense Hence, this amo 24,100/- is lia deducted.
38	Purchase of Foreign Currency by Mrs. Kanak Lata from M/s PherozeFramr oze& Company Pvt. Ltd.	Kanak Lata	19.07.2001	Rs. 44,417/-	Deduction of Rs. 44,417/- sought as this expense has already been accounted for in statement D at sr. no. 41.	The contention that this expen already been co at Sr. No. 41 o D is tenable as is mentioned in 03 of Kanak Lat "Foreign 50,000/-". Henc of Rs. 44,417/- be deducted fro expenses.

39 Stamp duty Kanak 03.06. 53,125/□ Deduction The contention of defense paid by Mrs. Lata 1997 of Rs. that this expense has Kanak Lata 53,125/□ already been declared in for the ITR for AY 2005□ 06 is not registration tenable as this expense has not been mentioned in of 8 Kanak the said ITR but has been land at duly proved vide EX.

	Dhumuspur village.					PW10/A (file Hence, the content defense is denied amount of Rs. 53,1 considered as expe incurred.
40	Payment to Kanak		28.06.1	Rs.	No	Rs. 2,177/-
	Oriental Insurance Company Ltd. Chandigarh as Mediclaim Worldwide for Policy	Lata	999	2,177/-	deduction claimed	considered a

41	Kanak Lata Kanak has mentioned Lata the following expenditure shown in her IT returns.	2001-2002	57,359	No deduction claimed.	Rs. 3,16,535/ considered as per ITR's.
		2002-2003	1,10,366		
		2003-	39,253		
		2004-2005	28,344		
		2005-	81,213		
		Total	Total - Rs. 3,16,535		

42	Dr. Maheshwar Kumar and Smt. Kanak Lata had purchased two Air Tickets on 26.06.1999 of Rs. 1,02,687/- from M/s	Dr. M. During Rs. Kumar June 1,02,687/- and Smt. 1999 Kanak Lata	Deduction of Rs. Rs. 1,02,687/- as expense not proved.	This amount h proved. Hen amount of Rs. is deducted f expenses.
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Travel
Heights,
Barakhamba
Road, New
Delhi for Air
travel from
Delhi-
London-
Delhi on Air
India

43	Dr. Maheshwar Kumar and Smt. Kanak Lata had visited United Kingdom in the month of July 1999 for	Dr. Maheshwar Kumar and Smt. Kanak Lata	During Rs. June 1,03,678/- 1999	No Deduction claimed	Rs. 1,03,678/- is correctl taken as expenditure incurred.
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which they
had
purchased
foreign
currency of
Rs. 49,757/-,
Rs. 2,082/-,
Rs. 49,757/-
and Rs.
2,082/-
(Dollar &
Pound) from
M/s New
Found Land
Enterprises
Pvt. Ltd.
against Cash
Memos

COURT'S OBSERVATION ON THE INCOME OF THE ACCUSED PERSONS WHICH ACCORDING TO THEM HAS NOT BEEN CONSIDERED BY THE I.O.

STATEMENT - C (II) Sl. Amount/Benefi Exhibit & Court's Observation No. Particulars Asset t
Claimed Document No. Holder The contention of defense

1. SB A/c 7617 Sanjiv Rs. 549/□Ex. PW□/ that Rs. 549/□may be added Allahabad Kumar (file D□
16 to income has not been Bank Panipat colly) objected to by the prosecution Hence Rs. 549/□is
added to the income of Sanjiv Kumar.

The contention of defense

2. OBC, Joint Rs. 1,21,838/□Ex. DW 5/3 that Rs. 1,21,838/□may be Panchkula a/c of added to
income as per Ex.

A/c no. Sanjiv
6064. Kumar
& Abha
Kumar

DW 5/3has not been
objected to by
prosecution. However, the
prosecution has claimed t
admission of A/c No. 6064
by the accused 1 & 2 and
perusal of Ex. DW 5/3 & D
32 B would show that the
figures mentioned in Ex.
DW 5/3 have been taken
from those mentioned in D
32 B which shows the
account balance of Rs.
6,18,671/- in the said

account at the end of period. The argument of prosecution is logical. Accrual of interest is possible only if there is principal amount in the account. Since the interest entries as proved in Ex. DW5/3 are the same which have been taken from account statement File B, the account statement to be taken as admitted of accused persons. Hence, income of Rs. 1,21,838/- added to income but Rs. 6,18,671/- at sl. No. 2 statement B is also taken as joint asset of Sanjiv Kumar and Abha Kumar at the end of check period. The additional interest income being divided between accused Sanjiv and Abha Rs. 60919 to each.

3. Gift from Sanjiv Rs. 20,000/-
accused Kumar
Kanak Lata
to accused
Sanjiv Kumar

ITR of Kanak
Lata for AY
02-03 (D-6),
(D-33) and
(Ex. DW2/1).

Gifts cannot be considered as income for public servants and their immediate dependents since gifts are a backdoor entry for generating illegitimate income. Under due intimation of the government given to the department by the public servant, it cannot be considered as legitimate income. Accused Sanjiv meticulously filed his returns and that of Abha

Kumar over the years in view of which it has to be presumed that he would have also intimated all to his parent department maintained proper record of such intimations. However, accused Sanjiv has not furnished any proof that

gift or loan received by
was ever intimated to hi
parent Govt./departm
Hence, benefit of income
received from gifts cann
be given to the accused.

4. Gift from late Sanjiv Rs. 20,000/-
mother- Kumar

Ex. DW 2/1

in-law of
accused
Sanjiv to
Sanjiv Kumar

Gifts cannot be consider
as income for public
servants and
immediate dependents sin
gifts can be a backdoor
for gaining illegitimate
income. Unless
intimation of the gifts
given to the p
department by the public
servant, it cannot be
considered as legitimate
income. Accused Sanjiv h
meticulously filed his H
returns and that of Abha
Kumar over the years in
view of which it has to
presumed that he would
have also intimated all
to his parent department
maintained proper record
such intimations. Howeve
accused Sanjiv has not
furnished any proof that

gift or loan received b
was ever intimated to hi
parent Govt./departm
Hence, benefit of income
received from gifts cann
be given to the accused.

5. Income of Sanjiv Rs. 5000/-
accused Kumar
Sanjiv Kumar
through
investments
and tax
saving
instruments
not added.

Not added as In the absence of any proo
income. brought on by the defense

as to consider income of
Rs.5,000/- out
investments & tax saving
instruments l
FD/NSC/MEP,
submission of defen
cannot be accepted and
income benefit of Rs.
5,000/- cannot be granted.

6. 438/B,

Rs. 2,62,896

Ex. DW6/1,

The contention of defens

Boring Canal
Road, Patna -
Saving from
Rental
Income of the
entire family
for two years.

Mark
PW46/DA ,
Mark
PW46/DB

to add Rs. 2,62,896 to
income for the whole fam
as being savings is deni
there is no ac
statement to prove these
savings from rental inco
Further, the property at
Boring Canal Road, Patna
was partitioned in 1988
before the check period
was not HUF property any
more. It has already bee
highlighted in the 'Find
that Flat B of Boring Ca
Road fell to the share o
of the HUF members.
Hence, no benefit of
savings income can be
given to the whole famil

7. Savings from
Agricultural
income of
the entire
family for
two years

Rs. 2,40,000/-

The contention of def
add Rs. 2,40,000/- to
income is not acceptab
is not comprehensible
on what ground is this
income sought to be ad
for the whole family.
Agriculture lands were
partitioned in 1988 an
thereafter, each of th
'erstwhile HUF' member
have been filing separ
returns claiming indiv
benefit of agri
income. There is nothi
even suggest
agricultural Income of
accused persons was po
and put in a savings a
Hence, the contention
defense to add
2,40,000/- to the inco
denied & no benefit is
given.

Savings from Sanjiv Rs. 2,50,000/-
8. salary before Kumar
the check
period and
cash in hand

The contention of defe
add Rs. 2,50,000/- to
income of Sanjiv Kumar
from pre-check savings
not supported by any
evidence. Hence, benef
additional savings inc

Oriental Bank of Commerce, Panchkula A/c no. 6064 standing in	Sanjiv Kumar & Abha Kumar	Rs. 6,93,860/- from brother Rajiv Kumar transferred from U.K [D-32(B)] (Pg.	cannot be given. The contention of defence DW- 5, DW- add Rs. 25,58,000/-to the 5/1, D-32 (B) income is not tenable, following reasons. Des opportunity, accused S did not get the account
--	--------------------------------------	--	---

the name of Sanjiv Kumar and Abha Kumar	2698) Rs. 3,40,000/- remitted by Late Sh. DNP Singh [file D-32 (B)]	of Rs. 6,93,860 proved which was purportedly transferred by his brother Rajiv from UK, benefit of which is now being claimed. Further, credit entry from DNP Singh whether accepted as gift or loan, cannot be taken to be legitimate income unless duly disclosed to the parent department of the public servant, of which no proof has been furnished by Sanjiv. At the cost of repetition, it is being highlighted that it is not believable that Sanjiv has not maintained any
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Rs. 25,000/- from DNP Singh (File D-32 (B))	records of intimation sent to his parent department
--	--

Rs. 15,00,000/- from Hukum Singh as per Mark PW- 46/DD, and Mark PW- 46/DE,	of gifts received. Further,
--	------------------------------------

Total benefit claimed - Rs. 25,58,000/-	the credit of Rs. 3,40,000 made over to Sanjiv Kumar was in his individual capacity and not to Sanjiv Kumar HUF and hence, if this amount was actually a legitimate transfer, must have been shown in his IT return as an IAS Officer but no such IT Return has been furnished. It has already been observed above that Gifts can be a backdoor entry for illegitimate income. Defense had to also prove that DNP Singh had transferred this amount from
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ICICI Bank,
10. Vasant Kunj,
New Delhi
A/c
0007015011
39 standing
in the name
of Abha
Kumar and
Sanjiv Kumar

Abha
Kumar
&
Sanjiv
Kumar

Rs. 3,00,000/-
from Manorama
Sinha, mother
of Abha Kumar

Rs. 2,50,000/-
from hobha

Singh, eldest
sister of Abha
Kumar

Rs. 75,000/-
from Poonam
Singh, sister of
Abha Kumar

Rs. 1,00,000/-
from Dr. M.
Kumar

Rs. 1,41,000/-
(1,00,000/- +
41,000/-) from
Dr. Rajiv
Kumar

Bank Interest of
Rs. 73,994/-

(file DW-18/1)

Total benefit
claimed - Rs.
9,39,994/-

DW-16
Simanti
Banerjee

Ex. DW-16/3 claiming benefit of the
Ex. Z-38 colly credit entries from
(file D-27)

his legitimate source as receipt of Rs. 15 lakhs from Hukum Singh is not concerned, same cannot be treated as income, for which detailed findings have already been given in the main body of the judgment. Hence, no benefit of doubt income is being given. The contention of defence to add Rs. 9,39,994/- to the income has to be denied for the following reasons: Ex. DW-16/3 claiming benefit of the Ex. Z-38 colly credit entries from accused persons had to prove the purpose of credit transfers as legitimacy of the source of these funds. DW 15 deposed that she received Rs. 2.5 lacs which was extended by Sanjiv to the marriage of her son but there is no corroborative entry from Sanjiv Kumar Shobha Singh. No reason has been explained for transfer of 3 lacs from Manorama to this joint account. No proof that this gift was intimated by Sanjiv to his parent department reflected in his ITR as an IAS officer in his individual capacity. Court has highlighted its

regarding the legitimacy of Dr. M Kumar's income. hence, any transfer/gift from him will be in a circle of defence. the source is explained. the reason for transfer is explained. Again, no

has been given for
of funds from Rajiv
to this joint accou
no benefit of claim
income can be given

11. Cash amount Abha Rs. 37,930/-
of Rs. Kumar
37,930/-
received by
Abha Kumar
as a gift from
her mother-
in-law

Ex. Z-53 Colly
- Declaration
Certificate by
Kanak Lata in
her ITR of
AY-2005-06

The contention of d
for adding Rs. 37,9
income on the basis
declaration in ITR
taken as proof when
receipt was not int
the accused Public
to the controlling
Hence, the contenti
defense is unaccept
For the reason alre
explained above, co
of defense for addi
3,50,000/- in incom
basis of self-decla
ITR cannot be taken
when such receipt w
intimated by the fa
Ms. Snigdha Kumar t
controlling
govt./department. I
course is permitted
public servant can
income by showing g
from relatives

Gift of Rs. M.
12. 3,50,000/- by Kumar Rs. 3,00,000/-
Maheshwar on 04.10.2004
Kumar to and Rs. 50,000/-
grand- on 10.04.2004
daughter
reflected in
his ITR AY
2005-06
through Abha
Kumar, as
grand-
daughter was
a minor.

Ex. Z-47 {file
D-1(A)} ITR
of Dr. M.
Kumar of AY
2005-06, relied
upon by the
prosecution
and admitted
by the accused)

File D-29,
Ex. Z-40
(Colly)

accounts and income have
not been put to scrutiny and
thereafter, explain his assets
on the basis of such income.
This amount of Rs. 3.5 lacs
thus cannot be taken as
income of Sanjiv or Abha
during the check period.
Hence, the contention of
defense is declined.

Bank interest Abha Rs. 9,694/□(Rs. Ex. DW 5/2 The contention of defense

13. of Oriental Kumar 5192/□interest Certificate of that Rs. 9,694 may be added Bank of from
Interest to income as per Ex. DW 5/2 Commerce, 30.06.2000 to has not been objected to by
Panchkula 31.12.2004 + the prosecution.

A/c no. 6000 Rs. 4,502/□ Hence the income of Rs.

in the name 9,694/□ is added to income.

of	Abha				
Kumar.					
Amount	in Abha	Rs.	4,52,880	File	D-7
14. PPF of Abha Kumar		being	the	-Prosecution	
Kumar		amount added		relied upon this	
bearing A/c		during	check	document,	
no. 11/180-		period	and	admitted as Ex.	
					There is balance
					4,74,889/- at the
					check period in t
					proved through Ex
					(file D-7) which

Dhanbad hence, sought to Z□9. admitted document. It is an Branch be included in Additionally, asset reflected at Sl. No.13 the income of Ex. DW 4/1 of Statement of B and hence, Abha Kumar and Ex. DW cannot be treated as income.

4/2

However, Rs. 3,14 which is the subs amount deposited check period, is reduced from the Abha, having alre shown as a part o Returns. Further, interest income o 1,38,880 accrued

					check period is bein
					to Abha Kumar.
VDIS	M.	Rs. 11,10,000/-	File D- 1 (B),		Though Rs. 11,10,000/
15. declared in	Kumar		relied upon by		disclosed under the V
Year 1997 by			the prosecution		Rs. 3,30,000 was paid
Late Sh. M.			and admitted		on this income. Hence
Kumar			by accused as		benefit of Rs. 7,80,0
(Certificate			Ex. Z-44		added to the income o
dated					M. Kumar.
6.12.97)					
Gifts	M.	Rs. 1,05,000/-	AY 2000-01	Of these gifts, gift of Rs.	
16. received by	Kumar	(1,00,000/- +	(Ex. Z-50);		
				1,05,000 by Dr. Rajiv	
Late Sh. M.		5,000/-) from	(file D-25(ii),		
			Kumar;	Rs.	2,06,7
Kumar	as	Rajiv Kumar	Ex. 46/9)		
				(transfer of GBP 3000 from	
reflected in		(HUF)	(Account UK by Dr. Rajiv Kumar)		
his ITRs.			Statement ofand Rs, 1,58,420 from Dr.		
		Rs. 30,000/-	Rajiv Kumar)	Rajiv Kumar are supported	
		from BP Singh		by corresponding bank	
				transfers. Additionally, gi	

Rs. 98,564/- AY 2001-02 of Rs. 1000 from Sanjiv from Rajiv (Ex. Z-49/2) being a nominal amount can Kumar also be accepted as a gift.

Rs. 75,000/- AY 2001-02 Accordingly, additional from Sandip (Ex. Z-49/2) income benefit of Rs.

Arora 4,71,120 is being given to Dr. M Kumar.

Rs. 1000/- from AY 2001-02
Sanjiv Kumar (Ex. Z-49/2)

Rs. 75,000/-
(Rs. 65,000/-) AY 2002-03
and Rs. 10,000/-) Ex. PW 6/C
from Rajiv

From Rajiv

2,06,700/-
(3000 British AY 2003-04,

Pounds) Ex. Z-46

Rs. 1,00,000/-
from Rajiv AY 2003-04,
Kumar (HUF), Ex. Z-46

Rs. 31,852/-
from Rajiv AY 2004-05,
Kumar Ex. Z-45/2

Rs. 4000/- from
Rajiv Kumar AY 2005-06,
Ex. Z-47/2

Rs. 1,98,420/-
(Rs. 1,58,420/- AY 2005-06,
+ 40,000/-) Ex. Z-47/2

From Kanak
Lata
Rs. 3,14,942/-

Total benefit
claimed - Rs.
11,40,478/-

17. Loans M. Rs. 1,17,875/- Ex. Z-47
received by Kumar
Sh. M.
Kumar from
Rajiv Kumar

The ITR of AY 2005-06
says that it is brought
forward but ITR of AY
2004-5 does not reflect a
such loan. No other

HUF in AY 2005-06					document is produced as evidence to claim the benefit of Rs. 1,17,875/- income. Hence, the benefit of Rs. 1,17,875/- to the income of M. Kumar is not being given.
19. Loans	M.	Rs. 63,275/-	Ex. Z-47		This is a loan brought
received by Kumar Sh. M. Kumar from Sanjiv Kumar HUF in AY 2005-06					forward as per ITR of 2005-06 of Dr. M. Kumar whereas ITR of AY 2004-05 does not reflect so. declaration in ITR with any other document to claim the benefit of Rs. 63,275/- as income is not tenable. Hence, the benefit of Rs. 63,275/- to the income of M. Kumar is not being given.
20. Loans received by Sh. M. Kumar from Kanak Lata in AY 2004-05	M. Kumar	Rs. 3,09,000/-	Ex. Z-45/2		Mere declaration in ITR without any other document is not sufficient to claim benefit of income of Rs. 3,09,000/-. There is no account to account transaction also to support this loan amount. Hence, the benefit of Rs. 3,09,000/- to the addition in income is not being given.
21. Loan received by Kanak Lata from Sanjiv Kumar (HUF) AY 2005-06	Kanak Lata	Rs. 2,75,000/-	Ex. (Colly)	Z-53	Mere declaration in ITR without any other document is not sufficient to claim benefit of income of Rs. 2,75,000/-. There is no account to account transaction also to support this loan transaction. It is surprising that a suspended public servant had so much funds to loan to his mother. Throughout the trial, Sanjiv Kumar has tried to take maximum benefit of his

HUF ITR's without b
on record in which B
account were such HU
funds parked/de
Hence, the benefit o
2,75,000/- is not be
given towards the in

Gifts Mrs.
22. received by Kanak
Kanak Lata Lata
from sons,
and others

From Rajiv File D-25 (ii); Of the total additiona
Kumar HUF Ex. 46/9 income benefit of Rs
AY 2000-01 = Account Rs.5,72,310/- claime
Rs. 10,000/- Statement of Kanak Lata, only the
Rajiv Kumar following gifts are
From Rajiv by bank transfers -
Kumar (HUF) AY 2001-02,
Rs. 40,000 Ex. Z- 52 HUF on 2.2.1999

(Colly.) (file 2. Rs. 2,48,310 by Dr. Rajiv From Santosh D-6/1) Rs. 75,000/- Hence, benefit of
addition AY 2001-02, of Rs. 258310 in the income From Rajiv Ex. Z-52 of Ms. Kanak Lata is being
Kumar (Colly.) (file given.

Rs. 50,000 D-6 (1), Pg.

From Sanjiv
Kumar (HUF) AY 02-03, Ex.
Rs. 1,15,000/- Z- 52 (Colly.)
(Rs. 65,000/- + (file D-6 (1)
Rs. 50,000/-)
AY 03-04, (Ex.
From Rajiv Z-52) (Colly.)
Kumar (HUF)
Rs. 34,000/-
AY 04-05,
From Rajiv ITR, 1877 (Ex.
Kumar Z-52) (Colly.)
Rs. 2,48,310/-
(Rs. 1,64,740 +
Rs. 83,570) AY 05-06 (Ex.
Z-53) (Colly.)

Total
additional
income benefit
claimed -
Rs. 5,72,310

Money
23. received in
the account
of daughter
of Abha

Amounts
received on File D-29 (Ex
Z-40)
06.04.2004- Ex. DW-16/2
Rs. 37,451/-; Ex. DW-18/2
Rs. 31,284/-;

The contention of
add Rs. 1,62,032/-
income as sum of d
amounts rece
dividends from Uni

Kumar, A/c	Rs. 42,300/-;	
no.		
00070123929	Rs. 25,583/-	
8, ICICI		
Bank, from	Amount	
Unit Trust of	received on	
India	05.10.2004- Rs.	
Dividend on :	2537/-	
(i) 6.04.2004		
(ii) 5.10.2004	Rs. 1877/-	
(iii)	(interest)	
2.09.2004	received on	
	02.09.2004	
	Total	
	additional	
	income benefit	
	claimed -	
	Rs. 1,62,032/-	

India is not tenable. The prosecution has raised no objection that Ms. [redacted] admittedly was a minor and having no source of income and any investment in her name had not been made by the accused. An account of amounts received by interest/maturity against investment in her name need to first be shown that the said investment was from a legitimate source and income of the public. Neither such source nor details of investments have been brought by the accused. In the absence of bringing the record the details of investments in the guardian in the name of Snigdha Kumar, the amount of Rs. 1,62,032/- given as additional income. Hence, the contentions of the defense is denied.

24. FD in the Sh. M. Rs. 1,40,000/-
 name of Sh. Kumar
 M. Kumar
 done on
 29.04.1995,
 matured in
 the year
 1996 during
 the check
 period.

File D- 25 (1)

The contention of defense for adding Rs. 1,40,000/- to the income is denied on the reason that maturity amount has not been mentioned nor can the amount be deciphered from the statement of Dr. M. [redacted]. It is also surprising that instead of asking for the maturity amount to be added in the additional income benefit, the accused is seeking to add the principal amount which was deposited in 1995 in the pre-charge period. In the absence of details of maturity benefit of Rs. 1,40,000/-, the income of Dr. M. [redacted] cannot be given.

25.	Interest accrued in account no. 470 in Allahabad Bank, Dhanbad	Mrs Kanak Lata & M. Kumar	Rs. 7,347.30/-	File D-25 (1) Ex-DW 13/5	The contention of de that Rs. 7,347/-may added to income as p DW 13/5has not been objected to by prosecution. However prosecution submits admission of A/c No. 25(1) by the accused perusal of Ex. DW 13 D-25(1) would show t he figures mentioned DW 13/5 have been ta from those mentioned 25(1) & the correspo amount of Rs. 6,465/ No. 48 of statement also taken as admitt
					However, perusal of D- (1) does not reflect th amount of Rs. 6465 as contended by prosecution. Further, e for the figure of Rs. 2 none of the other inter income figures match wi the account statement i File D-25 Consequently, ac interest of Rs. 7,347.3 this account during the check period is added t joint income of Mrs. Ka Lata and Dr. M Kumar whereas the plea of Prosecution stands deni
26.	Interest accrued in Account no. 0007012285 11, ICICI Vasant Kunj	Dr. M. Kumar, Kanak Lata, Abha Kumar	Rs. 9,722/- (Rs. 8677/- +1045/-)	File D-28, Ex Z-39, Ex. DW- 18/3	The defense has contend to add Rs. 9,722/- as i and the prosecution has objected to it. Hence, of Rs. 9,722/- as inter income is added and divided amongst 3 accus i.e. Rs. 3241 to each account holder.
27.	PPF A/c No. 1310 Dr. M. Kr		Rs. 11,537/-	File D-10 Ex. Z-10	Defense has contended t add Rs. 11,537/- as income and

			prosecution has agreed Hence, benefit of Rs. 11,537/- as income is to be given.
28.	Interest Mrs. accrued in Kanak Account No. Lata	Rs. 2207/-	Ex. DW-13/3 The contention of defense is that Rs. 2207/- may be added to income as per
	3609, Allahabad Bank		DW 13/3 is tenable as interest income has not been given. However, Prosecution contends that the admission of A/c No. SB 3609 D- 25(ii) by the accused (interest certificate 25(ii) (unexhibited a statement) shows that interest income have been taken from mentioned in Consequently, corresponding amount 4,949/- at Sl. No. 36 statement B be also to be admitted which is the outstanding amount at end of check period. However, the figure claimed by the prosecution is not borne out from - 25 (II). Hence, defense plea of adding interest 2207 to the income of Lata is allowed where prosecution submission declined.
29.	Interest accrued in Abha Rs. 2255/- Account no. Kumar 0119000774 2, SBI PB Div. Dhanbad of Ms. Abha		Ex. Z-11 Interest from Jan' 03 to Jan' 05 Ex. Z-11 - Interest from Dec' 01 - Dec' Hence, Rs. 2207/- is to income of Kanak Lata Defense seeks to add 2255/- as income from accrued interest to which prosecution has agreed Hence benefit of Rs. as income is to be given Abha Kumar.

			Ex. DW – 13/4 (Interest from March' 89 to March'2000) Ex. PW– 9/A	
30.	Amount of Sanjiv Rs. 1,32,500/- Rs. 1,32,500/- towards repayment of car loan, wrongly deducted as expenditure during the check period while calculating net income of the Sanjiv Kr. Amount of Sanjiv Rs. 2,63,940/- Rs. 2,63,940/- towards repayment of house loan, wrongly deducted as expenditure during the check period while calculating net income of Sanjiv Kumar.	of Kumar	Ex. PW-9/A	The contention of defense is to add Rs. 1,32,500/- as interest. This is not plausible as this amount was re-paid in installments during the check period, which is the expenditure incurred in repaying the installments of loan. Hence, this amount has been correctly taken as expenditure.
31.		Kumar		The contention of defense is to add Rs. 2,63,940/- as interest. This is not plausible as this amount was re-paid in installments during the check period, which is expenditure incurred in repaying the installments of loan. Hence, this amount has rightly been taken as expenditure.

171. It has already been highlighted above that source of acquisition of immovable assets by Abha and contentious expenditure incurred by her during the check period has to be attributed to accused Sanjiv. Accused Sanjiv Kumar and Abha Kumar have always had a joint household. There has been no assertion of the defense that accused Abha had sufficient income of her own to be able to manage her household independent of accused Sanjiv Kumar. In any case, the acquisition of contentious assets and contentious expenditure incurred by Abha has been flatly denied by the defense which disentitles accused Abha Kumar and Sanjiv Kumar to even explain them from their declared income, which observation has already been recorded in the preceding paras by the Court. The findings returned in the preceding paras leave no doubt that the income, expenditure and asset value of Sanjiv and Abha cannot be segregated. Hence, the expenditure incurred by Abha during the check period and the value of assets acquired by her during the check period are being clubbed with the asset value acquired by accused Sanjiv during the check period as also the expenditure incurred by

accused Sanjiv during the check period. As a corollary, their incomes during the check period are also being clubbed. In view of the detailed discussion above and the findings returned by this Court, and after due consideration of the chart submitted by the accused persons where $\square$ in they have sought deduction of certain expenses, variation in the value of Assets, and claimed additional income, of which benefit has been given wherever was found due and legitimate, the Court's conclusion is as under -

Total Income of accused Sanjiv Kumar during the check period is assessed as - Rs. 29,66,211 Total Income of accused Abha Kumar during the check period is assessed as - Rs. 18,74,028 Total asset value of accused Sanjiv Kumar at the end of the check period is assessed as - Rs. 19,98,402 Total asset value of accused Abha Kumar at the end of the check period is assessed as - Rs. 28,58,567 Total expenditure incurred by accused Sanjiv Kumar during the check period is assessed as - Rs. 12,81,692 Total expenditure incurred by accused Abha Kumar during the check period is assessed as under - Rs. 79,40,166 Resultantly,

1. Total assets of Accused Sanjiv Kumar and Abha Kumar at the beginning of the check period - Rs. 18,95,982
2. Total joint income of Accused Sanjiv Kumar and Abha Kumar during the check period $\square$ Rs. 48,40,239
3. Total joint assets value of Accused Sanjiv Kumar and Abha Kumar at the end of the check period - Rs. 48,56,969
4. Total joint expenses of Accused Sanjiv Kumar and Abha Kumar during the check period - Rs. 92,21,858 Hence, the calculation of Disproportionate assets of accused Sanjiv Kumar is assessed as under -

(a) Total joint assets acquired during the check period = Value of joint assets at the end of the check period - value of joint assets at the beginning of check period i.e. Rs. 48,56,969 - 18,95,982 = Rs. 29,60,987

(b) Total joint expenses during the check period = Value of joint assets acquired during the check period + joint expenditure incurred during check period i.e. Rs. 29,60,987 + Rs. 92,21,858 = Rs. 1,21,82,845

(c) Disproportionate assets acquired during the check period = Total joint expenditure - Total joint income Rs. 1,21,82,845 - Rs. 48,40,239 = Rs. 73,42,606

(d) Percentage of Disproportionate Assets = (Total disproportionate assets / Total income) x 100
 $(7342606/4840239) \times 100 = 151.69\%$ The calculation qua combined income, assets and expenditure of Kanak Lata and Dr. M. Kumar is as under:

(A) Total assets of Dr. M. Kumar and Mrs. Kanak Lata at the beginning of the check period - Rs. 6,15,312 (B) Total joint income of Dr. M. Kumar and Mrs. Kanak Lata during the check period □Rs. 50,98,707 (C) Total joint assets of Dr. M. Kumar and Mrs. Kanak Lata at the end of the check period - Rs. 67,25,263 (D) Total joint expenses of Dr. M. Kumar and Mrs. Kanak Lata during the check period - Rs. 15,76,449

172. It is clear that even qua Dr. M Kumar and Kanak Lata, the joint assets value at the end of check period and joint expenditure incurred by both during the check period i.e. C + D far exceed the total joint income earned by both of them during the check period.

However, since the prosecution has not been able to lead any clear evidence against Kanak Lata so as to prove her role as an abettor in relation to accused Sanjiv Kumar, she is given benefit of doubt and hence, acquitted. No finding is being returned against Dr. M. Kumar since he expired during the currency of the trial.

173. Before concluding, it needs to be clarified as to why has this Court bifurcated the income and expenditure of accused Kanak Lata and accused Maheshwar Kumar from that of accused Sanjiv Kumar. Apart from the reasons that Dr. Maheshwar Kumar was a retired civil servant, prosecution itself led evidence to show that he was running his private medical practice as a surgeon. Although the endeavour of the prosecution was to highlight that Dr. Maheshwar Kumar hardly earned from his private medical practice, the prosecution was unable to substantiate anything in this regard. On the contrary, prosecution evidence was helpful in establishing defense assertion to the effect that Dr. Maheshwar Kumar was running his private clinic as a general surgeon and even performed surgeries in other medical establishments. Prosecution was also unable to prove that Dr. Maheshwar and Mrs. Kanak Lata had a joint household with accused Sanjiv or that they were dependents of Sanjiv Kumar in any manner. But apart from these basic reasons, there is another significant reason for not clubbing the expenditure of Dr. Maheshwar and Kanak Lata with that of accused Sanjiv. All the big ticket expenditures of Kanak Lata on purchase of immovable properties i.e. in Bara Hindu Rao, Sushant Lok and Dhumuspur village were in the year 1996□97. In end of 1997, Dr. Maheshwar disclosed previously unaccounted income of more than Rs. 11 lacs under the VDIS floated by the deptt. of Income Tax and paid Rs. 3,30,000 as tax on the same. This fact is undisputed. 11 lacs was a huge amount in the year 1997 when the total take home salary of accused Sanjiv, a mid□level IAS officer was about Rs. 12000. Since he is no more, I do not wish to comment on whether Dr. Maheshwar earned this undisclosed income by fair or foul means, or whether accused Sanjiv was supplying him unaccounted cash for converting the same into white money but the fact that he possessed such a huge unaccounted amount coupled with acquisition of multiple immovable assets by his wife Kanak Lata during the same period when unaccounted money was disclosed gives sufficient reason for this Court to believe that Dr. Maheshwar Kumar had much more than he actually declared. If we co□relate the disclosure of this 11 lacs with the acquisition of immovable properties by Kanak Lata, it becomes quite clear that Dr. Maheshwar was using his unaccounted income for purchase of immovable properties and after having acquired a decent number of properties in the name of his wife, tried to come clean by disclosing Rs. 11 lacs as unaccounted

income. So far as purchase of flat by Dr. Maheshwar Kumar in Vasant Kunj, New Delhi is concerned, Prosecution concentrated its evidence to prove that it was accused Sanjiv Kumar who paid the entire purchase money but which endeavour of the prosecution fell short of required level of proof. For the above reasons, this Court concludes that Dr. Maheshwar Kumar was possessed of sufficient means, legal or illegal, to finance the acquisition of immovable assets by his wife and his own assets during the check period.

174. As a corollary to the above discussion, the Court holds accused Sanjiv Kumar proven as guilty u/s 13 (2) of the Prevention of Corruption Act 1988 read with section 13 (1) (e) of the Prevention of Corruption Act 1988 and accused Abha proven as guilty u/s 109 of the IPC read with Section 13(2) read with Section 13(1) (e) of the PC Act 1988, and consequently, both stand accordingly convicted. Accused Kanak Lata however is acquitted for lack of cogent link evidence.

ANNOUNCED IN OPEN COURT AJAY by AJAY GULATI ON 22nd JANUARY 2021 GULATI Date: 2021.01.25 15:13:20 +0530 (AJAY GULATI) Special Judge (PC Act) CBI-2 RADCC/ New Delhi/22.01.2021